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CITY OF BERKELEY

BERKELEY CITY COUNCIL MEETING

OCTOBER 28, 2025

>> CITY CLERK: JUST A QUICK CHECK IN WITH OUR CAPTIONER, IF YOU CAN CAPTION SOME TEXT SO WE CAN TEST THAT. YEP, THERE WE GO. OKAY. WHENEVER YOU ARE READY.

>> MAYOR ISHII: OKAY, GOOD EVENING, EVERYONE. THANK YOU VERY MUCH FOR YOUR PATIENCE. I'M GOING TO CALL TO ORDER THE BERKELEY CITY COUNCIL MEETING. TODAY IS TUESDAY, OCTOBER 28TH, 2025. CLERK, COULD YOU PLEASE TAKE THE ROLL?

>> CITY CLERK: OKAY, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: HERE.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: PRESENT. BARTLETT? IS CURRENTLY ABSENT. TREGUB?

>> I. TREGUB: PRESENT.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: HERE.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: HERE.

>> CITY CLERK: LUHANSK? LUNAPARRA?

>> C. LUNAPARRA: HERE.

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>> MAYOR ISHII: WE AREN'T GOING TO GET TO ITEM 32. SO WE ARE GOING TO PUSH THAT BACK TO ANOTHER MEETING. HOWEVER, IF ANYONE CAME HERE TO SPEAK TO THAT ISSUE, YOU MAY STILL DO SO DURING THAT TIME WE WOULD HAVE TAKEN THAT ITEM, WHICH WILL BE AT THE END OF OUR MEETING AGENDA. HOWEVER, IF YOU WANT TO COME BACK AND SPEAK ABOUT IT AT THE FUTURE MEETING WHEN WE ARE HEARING THE ITEM, CAN DO THAT AS WELL. WE WILL HAVE PUBLIC COMMENT, AS YOU JUST MENTIONED. THANK YOU ALL FOR YOUR UNDERSTANDING. AND JUST SO I HAVE A SENSE. I'M JUST TRYING TO SEE WHOSE HERE. OKAY. VERY GOOD. ALL RIGHT, SO WE ARE GOING TO MOVE ONTO CEREMONIAL MATTERS. WE HAVE ONE FOR THIS EVENING. PROCLAMATION HONORING WOMEN'S CANCER RESOURCE CENTER AND CELEBRATING BREAST CANCER AWARENESS MONTH. DO WE HAVE A REPRESENTATIVE HERE? OH, WONDERFUL. PLEASE COME UP HERE. THANK YOU. ALL RIGHT. SO, OCTOBER IS BREAST CANCER AWARENESS MONTH. AND WCRC DOES WORK IN THE EAST BAY TO SUPPORT WOMEN IMPACTED BY CANCER. THEY HAVE BEEN A LONG TIME PROVIDER OF HOLISTIC CARE TO THE BERKELEY COMMUNITY. AND LET'S SEE I'M GOING TO READ THE PROCLAMATION. RECOGNIZING WOMEN'S CANCER RESOURCE CENTER FOR 2025, BREAST CANCER AWARENESS MONTH. WHEREAS WRCR FOUNDED IN 1986 BY A SMALL GROUP OF WOMEN WITH CANCER BEGAN AS A GRASSROOTS EFFORT TO SUPPORT ONE ANOTHER AND ADVOCATE FOR CHANGE IN THE HEALTHCARE SYSTEM AND SERVING THOUSANDS ACROSS BERKELEY AND THE EAST BAY. AND WHEREAS WRCR HAS

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BUILT CULTURALLY RESPONSIBLE SERVICES, PATIENT SERVICES, FINANCIAL ASSISTANCE, HELPING INDIVIDUALS ACCESS THE SERVICES THEY NEED DURING AND AFTER TREATMENT, IT'S BERKELEY OFFICE CONTINUES TO BE A WELCOMING SPACE FILLED WITH COMPASSION. OFFERING SUPPORT. WRCR WORK'S SERVES THOSE MOST IMPACTED BY CANCER, LOW INCOME, SENIORS, BLACK AND AFRICAN AMERICAN WOMEN, LGBTQ+ MEMBERS, MAKING SURE NO ONE IS LEFT BEHIND. INNOVATIVE MODEL OF HOLISTIC CARE EARNED NATIONAL RECOGNITION AND PARTNERSHIP WITH INSTITUTIONS LIKE UCSF AND STANFORD HELPED BRIDGE GAPS BETWEEN MEDICAL SYSTEMS AND NEEDS. IN HONOR OF BREAST CANCER AWARENESS MONTH, THEIR ONGOING COMMITMENT SUPPORTING INDIVIDUALS IS EXEMPLIFIED BY FAITH BREAST CANCER EMERGENCY FUND, WHICH HAS PROVIDED FINANCIAL SYSTEM TO WOMEN AND MEN UNDERGOING TREATMENT IN BERKELEY. THROUGH ONGOING ADVOCACY AND FAITH VENTURE, BREAST CANCER EMERGENCY FUND, WCRC CONTINUES TO PROVIDE DIRECT SUPPORT TO THOSE UNDERGOING TREATMENT AND REMAINS A VITAL PART OF BERKELEY'S HEALTH AND SERVICE LANDSCAPE. BE IT RESOLVED I, ADENA ISHII, MAYOR OF THE CITY OF BERKELEY HEREBY RECOGNIZE WCRC AND RECOGNIZING OCTOBER 2025 AS BREAST CANCER AWARENESS MONTH IN THE CITY OF BERKELEY. [APPLAUSE]

>> THANK YOU SO MUCH. WE ARE DEEPLY GRATEFUL TO THE CITY OF BERKELEY, THE MAYOR AND COUNCILMEMBERS FOR THIS RECOGNITION, THE WOMEN'S CANCER RESOURCE CENTER GOT OUR START RIGHT HERE IN

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BERKELEY IN A SMALL APARTMENT ON SHATTUCK IN 1986. SINCE THEN WE HAVE GROWN TO SERVE 36,000 WOMEN AND CAREGIVERS AFFECTED BY CANCER, INCLUDING 7,300 BERKELEY RESIDENTS SINCE 2012. OUR MISSION IS TO HELP OUR CLIENTS ACCESS THE HEALTH, INFORMATION CARE AND SUPPORT NECESSARY TO HAVE A HIGHER QUALITY OF LIFE THROUGHOUT THEIR CANCER JOURNEY. 85% OF OUR CLIENTS ARE FEMALE OR GENDER EXPANSIVE, 80% ARE LOW INCOME. 70% OVER 50, AND 70% ARE BLACK INDIGENOUS AND WOMEN OF COLOR. OUR DIVERSE STAFF VOLUNTEERS AND BOARD MEMBERS REPRESENT THE COMMUNITIES WE SERVE. CULTURAL HUMILITY IS A GUIDING PRINCIPLE FOR OUR ORGANIZATION AND INFORMS HOW WE LISTEN, BUILD TRUST AND RESPOND TO EACH PERSON'S UNIQUE EXPERIENCE. WE MEET CLIENTS WHERE THEY ARE AT WITH COMPASSION AND RESPECT AND WE ENVISION A FUTURE WHERE ALL PEOPLE CAN ACCESS EQUITABLE CANCER INFORMATION, CARE AND SUPPORT. WE ARE PROUD TO CALL BERKELEY HOME. A CITY THAT HAS ALWAYS STOOD FOR COMMUNITY. THANK YOU FOR BELIEVING IN US, AND FOR THIS OPPORTUNITY TONIGHT TO SHARE OUR MISSION WITH EACH OF YOU, BOTH ONLINE AND IN PERSON. [APPLAUSE]

>> MAYOR ISHII: A GOOD REMINDER TO MAKE SURE EVERYONE IS GETTING ALL OF THEIR HEALTH CHECK-UPS. SO MOVING ON, WE HAVE CITY MANAGER COMMENTS.

>> CITY MANAGER BUDDENHAGEN: THANK YOU, MADAM MAYOR. I HAVE ONE COMMENT IN RELATION TO ITEM #7, THE REFERRAL REQUEST TO RESCIND

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INCORRECT INFORMATION FROM TURTLE MON M FROM THE CIVIC ARTS COMMISSION. MY REQUEST TO YOU TONIGHT FROM THE CITY MANAGER IS TO REFER THAT ITEM BACK TO THE CITY MANAGER TO ASSESS THE CIVIC ARTS COMMISSION RECOMMENDATION AND THEN REPORT BACK TO COUNCIL.

>> MAYOR ISHII: THANK YOU. SO WE NEED TO TAKE A VOTE TO -- NO, WE DON'T NEED TO TAKE A VOTE TO ADDRESS THAT.

>> CITY CLERK: IT WILL BE PART OF THE ACTION ON THE CONSENT CALENDAR.

>> MAYOR ISHII: THANK YOU. AND ANY OTHER COMMENTS?

>> CITY MANAGER BUDDENHAGEN: THAT'S ALL, MADAM MAYOR.

>> MAYOR ISHII: THANK YOU. MOVING ONTO OUR AUDITOR'S COMMENTS.

>> ALL RIGHT. GOOD EVENING. THANK YOU SO MUCH. I'M JUST HERE TO COMMENT ON A FEW OF THE INFORMATION ITEMS. THESE ARE AUDIT FOLLOW-UPS. FIRST, IN JANUARY, OUR OFFICE RELEASED A FOLLOW-UP REPORT ON THE 2009 AUDIT OF CITY LEASES. WE FOUND MANY OF THE SAME ISSUES STILL EXISTED 16 YEARS LATER FOR NEED FOR A CLEAR PLAN AND INCOMPLETE INVENTORY FOR LEASE AND LICENSE AGREEMENTS. THE FIRST UPDATE ON IMPLEMENTING OUR RECOMMENDATIONS TO COUNCIL. THE DEPARTMENT HAS REPORTED THAT THEY HAVE STARTED WORK ON MANY OF THE RECOMMENDATIONS. THEY NOW HAVE SOMEONE IN THE ROLE OF REAL PROPERTY ADMINISTRATOR, AND THE STAFF MEMBERS WORKING WITH AN INTER-DEPARTMENTAL TEAM TO PROVIDE INPUT TO THE CITY MANAGER ON A PROPERTY MANAGEMENT PLAN. WHICH WILL HELP CLARIFY THE

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CITY'S APPROACH TO LEASE MANAGEMENT. ADDITIONALLY, THE REAL PROPERTY ADMINISTRATOR IS TAKING THE LEAD ON DEVELOPING A COMPLETE CENTRAL INVENTORY OF LEASES AND LICENSES, AND THAT INCLUDES USEFUL INFORMATION LIKE CONTRACT NUMBERS, THE ANNUAL COST OF LIVING ADJUSTMENTS, HOPING TO SEE MARKET RATE INCREASES, MAINTENANCE INFORMATION. HAVING A MORE COMPLETE INVENTORY SHOULD ALLOW THE CITY TO SEE THE COST AND BENEFITS OF LEASING AND MAKING SURE THE CITY DOESN'T LOSE TRACK OF ITS PROPERTIES, TWO ISSUES IDENTIFIED IN OUR REPORT. TODAY I LEARNED SEVERAL LEASES WERE DISCUSSED AT YESTERDAY'S MEETING AND I'M GLAD TO SEE THAT THIS IS TAKING PLACE TO UPDATE THOSE LEASES THAT HAVE BEEN HOLD OVER. SECOND, I WANTED TO SHARE THAT PUBLIC WORKS HAS IMPLEMENTED THE FINAL TWO RECOMMENDATIONS RELATED TO OUR 2020 AUDIT ON BERKELEY'S STREET MAINTENANCE CALLED ROCKY ROAD. AND THAT OFFICIALLY CLOSES THE AUDIT. SO SINCE THAT UPDATE, BERKELEY RESIDENTS PASSED MEASURE FF, A PARTIAL TAX EXPECTED TO GENERATE $15 MILLION OVER FOUR YEARS WITH A PORTION DEDICATED TO STREET PAVING. THANK YOU TO BERKELEY VOTERS. HOWEVER, EVEN WITH A COMBINED INCREASE OF PAVING ALLOCATIONS FROM THE GENERAL FUND, ZERO WASTE FUND, STORM WATER FUND, THIS AMOUNT IS STILL LESS THAN THE ESTIMATED $42 MILLION NEEDED ANNUALLY. I JUST WANTED TO SET EXPECTATIONS THAT WE HAVE INCREASED COSTS, AND WITH THE DEFERRED MAINTENANCE, THAT DOESN'T QUITE GET US TO THE P.C.I. OF

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70. BUT WITH THIS INFUSION OF FF WE WILL STILL IMPROVEMENTS OVERALL ON BERKELEY STREETS. PUBLIC WORKS STAFF HAS ALSO CONTINUED TO PRESENT UPDATED REVENUE AND PCI PROJECTIONS TO COUNCIL AND I REALLY APPRECIATE THAT REPORT. FINALLY, WITH FLEET, PUBLIC WORKS HAS CONTINUED TO MAKE PROGRESS ON IMPLEMENTING RECOMMENDATIONS FROM THE 2021 AUDIT. 11 OF THE 12 ARE PARTLY IMPLEMENTED AND ONE IS FULLY IMPLEMENTED. AS OF MAY OF THIS YEAR, ASSET WORKS IS THE ONLY SYSTEM USED BY EQUIPMENT MAINTENANCE DIVISION, SUCCESSFULLY PHASING OUT FUNDS, OUR OLD SYSTEM OF TRACKING THIS, THUS IMPLEMENTING THIS RECOMMENDATION. PUBLIC WORKS SENIOR MANAGEMENT IS CURRENTLY REVIEWING A DRAFT UPDATE OF THE EQUIPMENT AND VEHICLE REPLACEMENT POLICY. I CAN'T EMPHASIZE HOW IMPORTANT IT IS TO HAVE A POLICY THAT DOES THIS WORK, WHICH INCLUDES SEVERAL UPDATES RECOMMENDED IN THE AUDIT. I DO WANT TO NOTE THAT REPLACEMENT COSTS USED TO FUND PERSONNEL, THAT STILL NEEDS TO BE ADDRESSED AND WE POINT OUT IN OUR AUDIT THAT REPLACEMENT FUND SHOULD BE USED TO FUND VEHICLES AND NOT OTHER EXPENSES THAT ARE NOT PUT INTO THAT FUND FOR THAT PURPOSE. SO I LOOK FORWARD TO SEEING PROGRESS ON THIS. ADDITIONALLY, PUBLIC WORKS SENT OUT A RIGHT-SIZING SURVEY EARLIER THIS YEAR TO BETTER UNDERSTAND THE NEEDS ACROSS THE CITY GOING FORWARD. I JUST WANT TO GIVE PUBLIC WORKS A BIG ROUND OF APPLAUSE FOR ALL OF THEIR WORK ON ALL OF THESE AUDITS. [APPLAUSE] THANK YOU

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VERY MUCH.

>> MAYOR ISHII: I SEE YOU IN THE BACK, TERRANCE, THANK YOU. THANK YOU VERY MUCH, MADAM CITY AUDITOR. MOVING ON TO PUBLIC WORK ON NON-AGENDA MATTERS?

>> CITY CLERK: IF YOU WOULD LIKE TO GIVE PUBLIC COMMENT ON NON-AGENDA MATTERS AND YOU ARE PARTICIPATING REMOTELY, NOW IS THE TIME TO RAISE YOUR HAND. AND I'LL DRAW FIVE NAMES FROM THE BIN FOR IN-PERSON. NON-AGENDA COMMENTS. AND EACH SPEAKER WILL HAVE ONE MINUTE EACH. THERE'S LOTS OF BLANK ONES IN HERE. SO THE FIVE IN-PERSON SPEAKERS ARE CAROL MARASOVIC, BETSY MORRIS, JOHN CURL, RENEE, AND SUSAN L. YOU CAN COME UP IN ANY ORDER. YOU WILL HAVE ONE MINUTE EACH.

>> I CEDE MY MINUTE TO CAROL.

>> MAYOR ISHII: OKAY, CAROL, YOU HAVE BEEN GIVEN TWO MINUTES.

>> OKAY, AT THE LAST 3 BY 3, THE HOUSING DIRECTOR STATED IT WOULD BE SIGNIFICANT IF THE CITY OF BERKELEY ENFORCED THE SOURCE OF INCOME DISCRIMINATION ORDINANCE TO HOUSE OUR LOW-INCOME PERSONS. THAT'S CONSISTENT WITH AN ARTICLE FROM DISABILITY RIGHTS EDUCATION DEFENSE FUND, WHICH WAS WRITTEN ON OCTOBER 27TH, 2025. NO, NO, I'M SORRY. WHICH WAS WRITTEN, ANYWAY, IT WAS OCTOBER 2024 THEY WROTE IT. WHERE THEY STATE HOMELESSNESS IS THE RESULT OF THE UNAFFORDABLE HOUSING MARKET WHICH FEDERAL RENT SUBSIDIES HELPED ADDRESS, ENFORCEMENT IS NECESSARY. THIS ITEM

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CAME BEFORE COUNCIL ON MARCH 9, 2021. IT WAS PASSED UNANIMOUSLY. IT WAS BASED ON A HOMELESS COMMISSION RECOMMENDATION FROM 2019 TO ESTABLISH ADMINISTRATIVE ENFORCEMENT PROCEDURES. COUNCIL PASSED IT UNANIMOUSLY WITH A FIVE POINT RECOMMENDATION, INCLUDED DRAFTING AMENDMENTS FOR ADMINISTRATIVE PROCEDURE TO ENFORCE THE ANTI-DISCRIMINATION, PROPERTY RENTAL ORDINANCE PARALLEL TO THE FAIR CHANCE ORDINANCE, SUBMIT TO COUNCIL IN 2022, A REPORT REVIEWING THE EFFECTIVENESS OF THE SOURCE OF INCOME DISCRIMINATION, FIRST FIVE YEARS. TWO OTHER POINTS AND ALSO TO REFER TO THE 4 X 4 THE DISCUSSION FEASIBILITY OF ENFORCEMENT OF SOURCE OF INCOME, ALONGSIDE THE FAIR CHANCE ORDINANCE, BASED ON THE FIRST STAND TIME RECOMMENDATION. NONE OF THIS HAS HAPPENED IN ALMOST FIVE YEARS. WE NEED TO HAVE THIS HAPPEN. NOW WE ARE REFERRING BACK AGAIN TO THE -- ARTICLE. THEY STATE SANTA MONICA IS THE ONLY CITY, THANK YOU, DAVE. [BEEP]

>> MAYOR ISHII: I'M SORRY, CAROL, YOUR TIME IS UP, BUT FEEL FREE TO SEND US AN EMAIL WITH THE REST OF THE INFORMATION. THANK YOU. COME ON UP.

>> HELLO, CITY COUNCIL. MAYOR ISHII, MY NAME IS SUSAN L, I WILL GIVE MY MINUTE TO JOHN KROL IN SUPPORT OF TURTLE MONUMENT. THANK YOU.

>> MAYOR ISHII: THANK YOU. YOU HAVE TWO MINUTES.

>> I THOUGHT SHE JUST GAVE ME HER TIME. WE ARE SPEAKING NOW

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BECAUSE FIRST WE WERE ON THE ACTION AGENDA AND THEN MOVED TO THE CONSENT AND NOW WE ARE OFF THE CONSENT CALENDAR.

>> CITY CLERK: THE ITEM IS STILL ON THE CONSENT CALENDAR.

>> WE CAN SPEAK ABOUT IT LATER? NOW IS NOT THE TIME TO SPEAK.

>> CITY CLERK: IF YOU ARE JUST SPEAKING ABOUT TURTLE ISLAND, THAT IS STILL ON CONSENT.

>> LET ME ASK, THE ORIGINAL AUDIT, 30 YEARS AGO.

>> MAYOR ISHII: SORRY, CAN YOU BRING THIS UP?

>> CAN THEY SPEAK ON ZOOM AT THAT TIME?

>> MAYOR ISHII: PEOPLE CAN SPEAK ON ZOOM DURING THAT TIME.

>> THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. YOU WILL HAVE ONE MINUTE.

>> YES, MY WIFE PASSED ONE MINUTE TOO, HER NAME IS LILLIANA.

>> CITY CLERK: HER CARD WASN'T PICKED.

>> HERS WASN'T PICKED, BUT MINE WAS PICKED.

>> CITY CLERK: SHE DOESN'T HAVE A MINUTE IF HER CARD WASN'T PICKED.

>> MAYOR ISHII: SHE DOESN'T HAVE A MINUTE TO GIVE YOU. YOU STILL HAVE A MINUTE THOUGH.

>> MY NAME IS RENEE. WE HAVE A BIG PROBLEM BECAUSE MOST OF OUR FRIENDS IN THE COMMUNITY WHERE WE LIVE ON DISTRICT 4 AND BY SACRAMENTO, WE DON'T HAVE THE MONEY TO PAY THE TAXES THAT YOU ARE CHARGING. AND WE REALLY DON'T GET THE SERVICES YOU SAY YOU

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ARE GIVING. THE CITY IS IN REALLY, REALLY BAD SHAPE. THE STREETS EVERYTHING IS A MESS. YOU CAN WALK AROUND MY NEIGHBORHOOD, THERE'S GARBAGE EVERYWHERE. AND WELL, IT'S BASICALLY LIKE WE HEAR ALL THIS STUFF ABOUT YOU ARE TOING ALL THIS AND YOU GUYS GIVE YOURSELF PRICES AND ALL THAT. THERE'S MUTUALISM. AND YOU KNOW, BUT IT'S MORE LIKE PARASITISM. WE HAVE PEOPLE WITH CANCER. AND NOTHING IS BEING DONE. YOU KNOW, YOU GUYS DECIDE, YOU TAKE THE MONEY FROM THE POOR, AND I DON'T KNOW WHAT YOU DO, I DON'T EVEN KNOW YOUR SALARIES.

>> CITY CLERK: CAN YOU TELL US YOUR WIFE'S NAME?

>> LILLIANA.

>> MAYOR ISHII: IF YOU HAVE COMMENTS OR QUESTIONS ABOUT SPECIFIC TAXES OR SERVICES, YOU CAN REACH OUT TO YOUR COUNCILMEMBER OR TO MY OFFICE. THANK YOU FOR YOUR COMMENT.

>> OKAY.

>> MAYOR ISHII: THANK YOU. I APPRECIATE IT.

>> CITY CLERK: SUSAN L.?

>> MAYOR ISHII: SORRY.

>> I'M HERE TO SUPPORT MARLENE.

>> CITY CLERK: YOU ARE HERE FOR THAT AS WELL. OKAY. WE JUST HAD TWO SPEAKERS. SO I'LL PICK ANOTHER CARD. ADAM STONE? AND BERNARDO LOPEZ.

>> HI, YEAH. I WANTED TO COMMENT ON THE ENCRYPTION FOR BPD, BUT

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THAT'S ON THE AGENDA.

>> CITY CLERK: THAT'S ON THE AGENDA.

>> I'LL SIT DOWN THEN.

>> MAYOR ISHII: THANK YOU.

>> HI, EVERYONE, I'M BERNARDO LOPEZ AND I'M HERE TO SUPPORT LEE AND MARLENE.

>> MAYOR ISHII: OKAY, SO YOU WILL SPEAK LATER ON THE CONSENT ITEM. THANK YOU. SORRY. ANYONE ELSE?

>> CITY CLERK: HOW ABOUT PAUL KILOBLAKE AND MONI LAW.

>> MAYOR ISHII: ARE YOU SPEAKING ON NON-AGENDA OR TURTLE ISLAND?

>> [OFF MIC]

>> CITY CLERK: HE HAS TO BE HERE.

>> [OFF MIC]

>> CITY CLERK: YEAH, PAUL IS HERE. HE IS IN THE BACK.

>> GOOD EVENING, GOOD EVENING. MY COUNCILMEMBER TREGUB, IN ABSENCE AND COUNCILMEMBER --

>> MAYOR ISHII: HE IS HERE.

>> ON SCREEN? HI, IGOR. THERE YOU ARE. AND MAYOR, AND CITY MANAGER AND CITY ATTORNEY. QUICKLY, I HAVE A CONCERN ABOUT, SOMEBODY LEFT THEIR PHONE UP HERE. REPLACEMENT OF OUR VEHICLES FOR THE CITY TO BE CLIMATE POSITIVE. AND I SAW A FLEET OF TRUCKS GO BY THE OTHER DAY, I DON'T KNOW IF THE POLICE HAVE PURCHASED ANOTHER FLEET OF TRUCKS AND VEHICLES BUT I DON'T KNOW WE ARE

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MEETING OUR GREEN STANDARDS WE ARE SEEKING. SO THAT, I'M CONCERNED ABOUT. JUST YESTERDAY I SAW A NEW TRUCK I HADN'T SEEN IN A FLEET BEFORE. I WANT TO DOUBLE DOWN ON THE CONCERN THAT CAROL SHARED ABOUT INCOME DISCRIMINATION. I SPEAK TO A LOT OF TENANTS WHO HAVE SECTION 8 VOUCHERS BUT NO LANDLORD THAT WILL TAKE THEIR VOUCHER. THEY ARE MOTHERS, DISABLED, ELDERS, INDIVIDUALS WITH LOW INCOME. AND THEY CAN'T FIND HOUSING IN BERKELEY EVEN THOUGH THEY HAVE A VOUCHER TO USE FOR LANDLORD, SO WE NEED ENFORCEMENT PROCEDURES TO MAKE THAT A MEANINGFUL LAW. THANK.

>> MAYOR ISHII: THANKS, MONI.

>> THANK YOU, FOLLOWING UP WITH MY EARLIER COMMENTS.

>> MAYOR ISHII: SORRY, PAUL, YOU ARE GIVING CAROL YOUR MINUTE? YES? I'M SORRY, I CAN'T -- PAUL, ARE YOU GIVING HER YOUR MINUTE?

>> YES.

>> MAYOR ISHII: THANK YOU.

>> THE DISABILITY RIGHTS EDUCATION DEFENSE ARTICLE WRITTEN PUBLISHED OCTOBER 9, 2024, READS SINCE ADDITIONALLY DREDF ATTEMPTED EXCHANGE WITH EACH MUNICIPALITY WITH ORDINANCE THAT'S REPORTED NO AFFIRMATIVE ENFORCEMENT EFFORTS WITH LARGELY DISAPPOINTING RESULTS. ONLY THE CITIES OF ALAMEDA, CORTE MADERA AND -- THE OTHER MUNICIPALITIES CONTACTED INCLUDING CITIES WITH LARGE UNHOUSED POPULATIONS LIKE BERKELEY, LOS ANGELES AND SAN

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DIEGO COMPLETELY IGNORED DREDF'S COMMUNICATIONS. WE REALLY NEED TO MOVE HEAD WITH WHAT WAS PASSED IN 2021 AND THIS COLLABORATION SHOULD, THE CITY SHOULD ENGAGE WITH THE DISABILITY RIGHTS --

>> MAYOR ISHII: THANK YOU. THANKS, CAROL AND PLEASE DO STILL SEND IT OVER TO MY OFFICE, IT'S HARD TO CAPTURE EVERYTHING IN THE COMMENT.

>> CITY CLERK: OKAY, MOVING TO NON-AGENDA COMMENTS FROM PEOPLE PARTICIPATING REMOTELY, FIRST IS JANICE SCHROEDER.

>> THANK YOU. MY COMMENTS ADDRESS TRANSPARENCY, ACCOUNTABILITY AND PROTECTION OF THE MOST VULNERABLE IN OUR BERKELEY COMMUNITY. I AM VERY OPPOSED TO CHIEF LOUIS'S PROPOSAL TO ENCRYPT THE LAST --

>> MAYOR ISHII: JANICE, I'M SORRY, THAT'S AN ITEM ON OUR AGENDA. WE ARE CURRENTLY DOING PUBLIC COMMENT ON NON-AGENDA MATTERS. YOU ARE WELCOME TO GIVE YOUR COMMENT LATER IN OUR AGENDA TONIGHT. THANK YOU.

>> CITY CLERK: NEXT IS MADELEINE ROBERTS RICH.

>> HI, GUYS, MY YOUNG DAUGHTER IS HERE IN THE BACKGROUND. I'M CALLING ONCE AGAIN TO ASK YOU TO EXPLORE WAYS THAT YOU CAN COLLABORATE IN A SMARTER FASHION WITH THE DEVELOPERS THAT ARE DEVELOPING UNPRECEDENTEDLY HIGH BUILDINGS ON SHATTUCK IN THE DOWNTOWN. IT'S REALLY IMPORTANT THAT DOWNTOWN SHATTUCK HAS ACCESS TO NIGHTLIFE ENTERTAINMENT AMENITIES, PARTICULARLY

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CINEMA. I WAS THERE THIS WEEKEND AND IT'S REALLY EMPTY WITHOUT THE CINEMAS OPERATING. THERE'S WAYS TO GET THAT DONE IN A CREATIVE FASHION. IT DOESN'T MEAN NECESSARILY HAVING A FULL SCALE MOVIE THEATER BUT MOVIE NIGHTS OR SCREEN MOVIES USING THEIR PARK SPACE, ET CETERA, IT'S REALLY IMPORTANT THAT GETS DONE. THE RETAILERS NEED IT, THE COMMUNITY NEEDS IT, IT'S IN THE DOWNTOWN AREA PLAN. AND I WAS VERY DISAPPOINTED WHAT HAPPENED WITH THE U.A. THEATER, NEGOTIATIONS WEREN'T MADE WITH PATRICK KENNEDY.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS NATHAN MIZELL.

>> HELLO, MADAM MAYOR, CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> OKAY, HELLO, MAYOR AND COUNCIL, MY NAME IS NATHAN MIZELL. I WILL SKIP TO THE CHASE HERE. THE CITY HAS A LONG HISTORY OF SLOW-ROLLING PUBLIC RECORDS REQUESTS. I WILL SPEAK SPECIFICALLY TO THE BERKELEY POLICE DEPARTMENT AS I KNOW THAT BEST. I WILL GIVE YOU JUST ONE EXAMPLE. BACK ON AUGUST 11, 2023, I REQUESTED ANY TEXT MESSAGES THAT RELATED TO PUBLIC BUSINESS FROM THE PERIOD OF SEPTEMBER 2020 TO NOVEMBER 2022. BASICALLY THE PRIMARY PERIOD OF THE TEXT MESSAGE SCANDAL, RIGHT? WELL, THE CITY TOOK 450 DAYS PLUS TO RESPOND TO THAT REQUEST. AND AT THAT POINT THEY PROVIDED NO ADDITIONAL TEXT MESSAGES. IN FACT THEY SLOW ROLLED

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FOR OVER A YEAR, SIMPLY TO TELL ME THERE WERE NO DISCLOSABLE RECORDS. PLEASE CONSIDER THIS STORY AND A LOT OF OTHERS WHEN YOU GO THROUGH YOUR OTHER ITEMS TODAY. THANK.

>> MAYOR ISHII: THANKS, NATHAN.

>> CITY CLERK: NEXT IS CALLER WITH A NUMBER ENDING IN 211.

>> HI, GOOD EVENING, OUR MANAGER -- READ THEM AND RESPOND TO THEM, I'M REQUESTING A MEETING AS SOON AS POSSIBLE WITH MAYOR ISHII TO DISCUSS THIS MATTER. DONALD TRUMP HAS A WRECKING BALL TO THE COUNTRY. HE IS DOING ALL KINDS OF ILLEGAL THINGS. FIRING PEOPLE, CAUSING ALL KIND OF -- TAKING MONEY FROM THE POOR AND HUNGRY TO GIVE IT TO HIS PUPPET MASTER BILLIONAIRES, THAT HAS TO STOP. ALSO THE WORST PART OF IT, WORLD WAR III HE HAS A -- IN HIS HAND AND HE IS VERY HATEFUL, THE WAY HE KILLED. HE IS A VERY, VERY DANGEROUS AND VERY BAD MAN. HAVE A GOOD EVENING. I WOULD LOVE TO MEET YOU SOMETIME. GOOD NIGHT.

>> MAYOR ISHII: THANK YOU. FEEL FREE TO REACH OUT. THERE'S OFFICE HOURS THAT WE HAVE THAT WE RELEASE VIA OUR NEWSLETTER.

>> CITY CLERK: NEXT IS LOOKS MAYBE LIKE LEAGUE OF WOMEN VOTERS, USCT SWIFT.

>> THANK YOU. I'M -- SWIFT, THANK YOU FOR LISTENING TO ME. I'VE BEEN A HOMEOWNER FOR -- YEARS AND I LOVE MY TOWN, AS I'M SURE YOU DO. WE NEED TO REFORM OUR WAY TO ISSUE PERMITS. I TRIED TO REPLACE A SINGLE BANK OF ONE STORY WINDOWS THAT WERE SIMPLY

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LEAKING. SIMPLE LIKE FOR LIKE REPLACEMENT, $10,000 JOB. OUR PERMIT REQUEST WAS RETURNED FIVE TIMES FOR NON SUBSTANTIVE REVISIONS OVER TWO MONTHS. CLASSIC RED TAPE. MY CASE IS NOT UNIQUE AND WE NEED TO IMPROVE THE SYSTEM. EFFICIENT PERMITTING IS CRITICAL, ESPECIALLY IN OUR GROWING HOUSING CRISIS. SAN FRANCISCO HAS RECOGNIZED THE PROBLEM AND HAS BEGUN WHAT THEY CALL PERMIT SF TO REVAMP P THEIR PERMITTING PROCESS AND WE CAN LEARN FROM THEM.

>> MAYOR ISHII: THANKS, DIZ. I APPRECIATE YOUR COMMENT. FEEL FREE TO SEND US FOLLOW-UP IF YOU HAVE MORE COMMENTS.

>> CITY CLERK: AND THE LAST COMMENTER IS MARLENE.

>> YES, THIS IS MARLENE WATSON. I KNOW WE HAVE OUR TOPIC HERE. BUT IT'S FOR THE CIVIC ARTS COMMISSION ACTION ITEM. AND MY SPECIFIC COMMENT IS ABOUT THE --

>> MAYOR ISHII: DID YOU, SO I THINK YOU HAVE A COMMENT THAT'S ON TURTLE ISLAND MONUMENT, IS THAT RIGHT?

>> YES. PARKS AND REC DEPARTMENT. SO I WOULD BE ABLE TO COMMENT ON THEM TOO?

>> MAYOR ISHII: THAT'S ACTUALLY A LITTLE BIT LATER ON OUR AGENDA. IF THERE'S A PIECE OF OUR COMMENT ON NON-AGENDA MATTERS, FEEL FREE TO SHARE IT, OTHERWISE WE WILL GO TO THE NEXT SPEAKER.

>> CITY CLERK: OKAY, LAST SPEAKER IS ZAE.

>> HELLO TO THE MEMBERS OF THE BODY. MY NAME IS ZAE ALO; I'M ON

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STAFF WITH -- ARTWORKS. AND WE HAVE OUR HEADQUARTERS THERE ON ALCATRAZ AVENUE. I JUST WANT TO COMMEND ALL OF THE MEMBERS FOR ALL OF THE REALLY HARD WORK WE ARE DOING SPECIFICALLY FOR OUR UNSHELTERED RESIDENTS AND JUST SPECIFICALLY CONTINUE TO CHALLENGE US TO DISAGGREGATE DATA, SPECIFICALLY FOR TRANSITIONAL HU. TALKING ABOUT INTERIM SHELTERS, CRISIS RESPONSE, ESPECIALLY THE CHANGES IN OUTREACH MODULES, AND I LOOK FORWARD TO OUR EXECUTIVE DIRECTOR SCHEDULING A MEETING WITH YOU, MADAM MAYOR. THANK YOU FOR YOUR WORK. I KNOW THIS WORK IS PARTICULARLY CHALLENGING AND IT MATTERS TO ALL OF YOU AND THAT'S WHY YOU ARE SERVING. THANK YOU, AGAIN.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT AND LOOK FORWARD TO SOMEONE REACHING OUT.

>> CITY CLERK: ALL RIGHT. THAT'S TEN.

>> MAYOR ISHII: OKAY, VERY GOOD. THANK YOU, EVERYONE. I KNOW IT'S CONFUSING. THERE'S LIKE DIFFERENT PARTS OF THE AGENDA. OKAY, SO WE ARE MOVING ON TO THE CONSENT CALENDAR. SO FIRST THING I WANT TO DO IS, THERE'S AN URGENCY ITEM, WHICH, ACTUALLY, SORRY. I'M REALIZING, I DON'T KNOW IF I HAVE IT RIGHT HERE.

>> CITY CLERK: IT'S IN THE SUP 2 PACKET.

>> MAYOR ISHII: EXCUSE ME, ONE MINUTE. OKAY, SO THE URGENT ITEM TODAY, THE REASON IT'S BEING SUBMITTED IS FOR AN EMERGENCY SITUATION. THIS ITEM, LIMITING THE USE OF CITY PROPERTY AND

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FACILITIES FOR CITY PURPOSES CONSTITUTE AN EMERGENCY SITUATION, BECAUSE OF THE IMMINENT THREATS OF THE IMMIGRATION ENFORCEMENT ACTIVITIES IN THE SAN FRANCISCO BAY AREA. LAST WEEK ON OCTOBER 22, 2025, PRESIDENT TRUMP ANNOUNCED THE OPERATIONAL SEARCH OF CUSTOMS AND BORDER CONTROL, ENFORCEMENT AND POTENTIALLY THE NATIONAL GUARD AROUND A 40 MILE RADIUS AROUND THE CITY AND COUNTY OF SAN FRANCISCO. THIS OF COURSE INCLUDES BERKELEY, WHICH IS WITHIN 22 MILES OF SAN FRANCISCO, DEEP WITHIN THE DESIGNATED TARGET AREA. WHILE THE PRESIDENT ANNOUNCED THE RESCISSION OF THE IMMEDIATE THREAT OF SEARCH AND IMMIGRATION ENFORCEMENT IN SAN FRANCISCO, OCTOBER 23RD, THE ONGOING THREAT LOOMS OVER THE REGION. FOR THIS REASON IT IS URGENT THAT THE CITY OF BERKELEY DESIGNATE OPEN SPACES AND PUBLIC PARKING LOTS BE DESIGNATED FOR THE CITY PURPOSES ONLY AND NOT FOR THE STAGING OF FEDERAL IMMIGRATION OPERATIONS. THIS ITEM, WE NEED TO VOTE FOR IT TO PUT IT ONTO THE AGENDA.

>> CITY CLERK: YES, THAT IS CORRECT.

>> MAYOR ISHII: I'M GOING TO MOVE THAT WE ADD THIS ITEM ONTO OUR CONSENT CALENDAR.

>> SECOND.

>> CITY CLERK: OKAY, MOTION AND SECONDED. TO ADD THE URGENT ITEM TO THE CONSENT CALENDAR. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

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>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, ITEM IS ADDED TO THE AGENDA.

>> MAYOR ISHII: OKAY, THANK YOU VERY MUCH. I WOULD ALSO LIKE TO VOTE TO REMOVE ITEM 18 TO ACTION. WE HAVE RECEIVED SOME CONCERNS, SORRY, ITEM 18 JUST SO FOLKS KNOW. IS THE AUTHORIZATION TO ENCRYPT BERKELEY POLICE DEPARTMENT PRIMARY RADIO CHANNELS. I WOULD LIKE TO MOVE THAT ITEM TO ACTION. WE HAVE RECEIVED SOME CONCERNS FROM THE COMMUNITY ABOUT THE

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ENCRYPTION ITEM. COUNCILMEMBER LUNAPARRA AND I WORKED CLOSELY WITH CHIEF LOUIS AND OUR CITY MANAGER TO MAKE SURE WE BALANCE TRANSPARENCY AND ACCESS TO INFORMATION WITH PUBLIC SAFETY, VICTIM SAFETY. WE WOULD LIKE TO PULL IT OFF THE CONSENT ITEM FOR PEOPLE TO UNDERSTAND THE WORK DONE, SO IF FOLKS HAVE SEEN THE CHIEF WROTE A SUPPLEMENTAL AND WE WANT TO GIVE HER AN OPPORTUNITY TO ADDRESS IT. ALL RIGHT.

>> C. LUNAPARRA: I CONCUR.

>> R. KESARWANI: I'M HAPPY TO BE A THIRD TO PULL THAT TO ACTION.

>> MAYOR ISHII: THANK YOU VERY MUCH. THAT ITEM WILL BE MOVED TO ACTION. OKAY. ALL RIGHT; DO WE HAVE ANY COUNCIL COMMENTS ON CONSENT? APPARENTLY OUR SYSTEM IS NOT WORKING. BUT COUNCILMEMBER BLACKABY?

>> B. BLACKABY: I THINK COUNCILMEMBER LUNAPARRA, YOU WANT TO GO FIRST AND I WILL FOLLOW YOU. I THINK YOU BEAT ME TO THE BUTTON.

>> C. LUNAPARRA: SURE, I WANT TO START WITH SOME OF THE EASIER STUFF. I WANT TO REGISTER A RESOUNDING YES FOR ITEM 2. I WANT TO THANK CITY STAFF AND FOR THEIR WORK AND RECOMMENDATION. I WOULD ALSO LIKE TO CONTRIBUTE $200 TO ITEM 31. THANK YOU, COUNCILMEMBER HUMBERT. AND I LOVE HALLOWEEN, PERSONALLY, SO THIS IS EXCITING. ON ITEM 9, I WOULD LIKE TO INTRODUCE ADDITIONAL LANGUAGE TO THE WAIVER FOR THE SANCTUARY CITY ORDINANCE FOR OUR CRITICAL CONTRACT WITH SUPERION, SO WE HAVE THE UPDATED

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INFORMATION ON IPT ACTIONS WITH FEDERAL IMMIGRATION DEPARTMENTS. I HAVE THE LANGUAGE I WILL PULL UP. AND WE HAVE SHARED WITH THE CITY MANAGER. AS WELL. THESE READ, THIS IS THE RED LANGUAGE IS THE ADDED LANGUAGE INTO THE CONTRACT AND I CAN READ IT INTO THE RECORD. WHEREAS FOR PURPOSES OF THE RESOLUTION IMMIGRATION AUTHORITY MEANS ANY PERSON OR AGENCY ENGAGING IN EFFORTS TO INVESTIGATE, ENFORCE OR ASSIST IN THE INVESTIGATION OR ENFORCEMENT OF FEDERAL IMMIGRATION LAW AGAINST NATURAL PERSONS, INCLUDING BUT NOT LIMITED TO THE U.S. DEPARTMENT OF HOMELAND SECURITY OR ITS COMPONENT AGENCIES, U.S. IMMIGRATION, CUSTOMS ENFORCEMENT, U.S. CUSTOMS BORDER, U.S. IMMIGRATION SERVICES WHEREAS IT'S THE UNDERSTANDING OF THE CITY COUNCIL SUPERION DOESN'T CURRENTLY PROVIDE INFORMATION AUTHORITY AS DEFINED IN CHAPTER 13.105 AND AT THE END, BE IT FURTHER RESOLVED BY THE COUNCIL OF THE CITY OF BERKELEY THE CITY MANAGER IS TO INCLUDE IN THE CONTRACT WITH SUPERION TO NOTIFY THE CITY IN THE EVENT IT ENTERS INTO A CONTRACT WITH IMMIGRATION AUTHORITY TO PROVIDE DATA, BROKER OR EXTREME VETTING SERVICES AS DEFINED IN CHAPTER 13.105 AND BE IT FURTHER RESOLVES THE CITY MANAGER IS DIRECTED TO CONTACT SUPERION BY DECEMBER 31ST EACH YEAR DURING THE DURATION OF THE CONTRACT TO REQUEST THEY AFFIRM IN WRITING THE FOLLOWING STATEMENT IS TRUE. AT THE CURRENT MOMENT SUPERION DOESN'T PROVIDE ANY AS DEFINED IN CHAPTER 13.105. PROVIDED THEY

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HAVE NOT PREVIOUSLY NOTIFIED THE CITY THAT SUPERION HAS ENTERED INTO A CONTRACT WITH IMMIGRATION AUTHORITY TO PROVIDE DATA, BROKER EXTREME VETTING SERVICES. THANK YOU. CAN I JUST, DO YOU MIND?

>> CITY MANAGER BUDDENHAGEN: YES, I DID CONFER WITH COUNCILMEMBER LUNAPARRA AND THOSE ARE FINE.

>> C. LUNAPARRA: HOW DOES THIS WORK PROCEDURALLY?

>> CITY CLERK: JUST EMAIL THAT TO ME, AND WHEN WE PROCESS THE RESOLUTION WE WILL ADD THE NEW LANGUAGE.

>> C. LUNAPARRA: OKAY. IS THERE, DO WE HAVE TO DO A VOTE TO INCLUDE?

>> CITY CLERK: NO IT'S READ INTO THE RECORD, THAT'S FINE.

>> MAYOR ISHII: AS LONG AS THERE'S NO OPPOSITION.

>> THERE'S NO OBJECTION.

>> MAYOR ISHII: I'M NOT SEEING ANY RIGHT NOW. GO AHEAD.

>> C. LUNAPARRA: FINALLY, I THINK WE SHOULD PULL ITEM #28 FROM THE CONSENT CALENDAR GIVEN THERE IS A SUPPLEMENTAL AND I THINK IT WARRANTS MORE DISCUSSION.

>> B. BLACKABY: I SUPPORT THAT. I WAS GOING TO MAKE THE SAME ASK.

>> MAYOR ISHII: OKAY. THAT WILL MOVE ON TO ACTION AS WELL. ALL RIGHT, MOVING ON. I'M NOT SURE IF THIS IS WORKING NOW, BUT I WILL GO TO COUNCILMEMBER BLACKABY SINCE HE HAD BEEN TRYING TO

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EARLIER.

>> B. BLACKABY: THANKS, MADAM MAYOR. FIRST I WANT TO THANK FOR ADDING THE URGENT ITEM, IT'S CONSISTENT WITH OUR SANCTUARY CITY STATUS. IT'S REALLY THE NEXT STEP OF AFFIRMING AND PROACTIVELY TAKING ACTION TO ACT ON OUR VALUES, SO I APPRECIATE YOU BRINGING THAT. I DID NOTE ONE, THERE'S A CLAUSE, WE ARE IN THE AMENDMENT PHASE IN THE CONSENT CALENDAR. BUT THERE'S A BIT WHERE IT REFERENCES COUNTY-OWNED PROPERTY, I THINK THAT SHOULD BE CITY-OWNED PROPERTY IN THE SECOND BULLET. SO MARK, IF YOU SEE AS WELL. POLICY ORDINANCE DEVELOPMENT, DRAFT POLICY RHODE RESTRICTING THE USE OF CITY-OWNED PROPERTY INSTEAD OF COUNTY-OWNED PROPERTY, SINCE THIS AFFECTS THE CITY. I'LL KEEP GOING, I THINK IT WAS A DRAFTING ISSUE, I WANTED THAT TO BE CLEAR IN THE PROCESS. A COUPLE OTHER PIECES ON ITEM 4, I THINK THE CITY MANAGER PETER RADU AND TEAM WITH HOMELESS PROGRAMS OUTSIDE OF BERKELEY. WE NEED TO BE CLEAR AND I KNOW WE TALKED ABOUT IT BEFORE GIVEN OUR BUDGET SITUATION, WE SIMPLY CAN'T AFFORD TO PROVIDE THE SAME LEVEL OF SUPPORT FOR OUR UNHOUSED NEIGHBORS WITHOUT COUNTY SUPPORT, FULL STOP. I THINK ANY COMMUNICATION TO THE COUNTY, I KNOW THE MAYOR IS DOING A LOT OF WORK AT THE WORKING GROUP LEVEL. BUT WE NEED THEIR SUPPORT. WE NEED THEIR PARTNERSHIP AS WE ARE ENTERING THIS DIFFICULT BUDGET PERIOD. I WANT TO THANK THE CITY MANAGER AND TEAM FOR CONTINUING TO

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COMMUNICATE AND WORK WITH THE COUNTY BECAUSE WE NEED ACCESS TO THE DOLLARS THEY COLLECTED TO HELP FUND THE PROGRAMS WE DO RUN. QUESTION ON ITEM #5, QUICKLY FOR THE CITY MANAGER. IT HAS NOTHING TO DO IN PARTICULAR WITH THE PUBLIC ART PROGRAM STRATEGIC PLAN. BUT I NOTE, THERE ARE A NUMBER OF BUDGET REQUESTS WE GET THAT MOVE ON THE CONSENT CALENDAR. I THINK MY QUESTION MORE, ARE WE TRIAGING, HOW DO WE THINK ABOUT AND TRIAGE SOME OF THESE THINGS? AGAIN, I SUPPORT PUBLIC ART, I SUPPORT DOING A STRATEGIC PLAN FOR SORT OF THE PUBLIC ART PROGRAM IN THE CITY. BUT I ALSO KNOW THERE ARE CERTAIN THINGS WE MAY NEED TO TRIAGE, AND I WAS CURIOUS HOW YOU AND THE TEAM ADVANCED SOME OR IF THERE IS SOME WE CAN PAUSE AND DELAY AS WE ARE HEADING INTO THE BUDGET CYCLE. HOW DO YOU THINK ABOUT THAT?

>> CITY MANAGER BUDDENHAGEN: THAT'S A GREAT QUESTION, COUNCILMEMBER. WE WILL SIT DOWN WITH THE GROUP WHO WANTS TO ADVANCE AN INITIATIVE LIKE THIS. WE WILL LOOK AT BOTH WHAT IS THE RATIONALE FOR ADVANCING THE INITIATIVE AND HOW IT'S FUNDED. IT'S NOT FUNDED WITH GENERAL FUND, WHICH IS A BIG THING FOR US RIGHT NOW. WE ARE LOOKING AT A VERY SIGNIFICANT STRUCTURAL DEFICIT. TO THE EXTENT THAT THINGS THAT COME UP THAT ARE IMPORTANT AND NOT FUNDED THROUGH GENERAL FUND AND THERE'S A RESOURCE STREAM, THOSE ARE ONES WE WOULD BE MORE LIKELY TO BRING FORWARD AND PUT ON CONSENT.

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>> B. BLACKABY: THANK YOU. I APPRECIATE THAT. JUST ENCOURAGE US ALL AS WE MOVE FORWARD, WE WILL HAVE TO USE OUR OWN DISCRETION AS WELL IN OUR REQUESTS. I JUST APPRECIATE HEARING ABOUT THE PROCESS. SO THANK YOU. ITEM #19, THANKS TO THE CHIEF AND POLICE DEPARTMENT FOR SECURING OFFICE OF TRANSPORTATION OF TRAFFIC SAFETY GRANT TO STEP UP TRAFFIC ENFORCEMENT HERE IN BERKELEY THROUGH SEPTEMBER 2026 AS WE HAVE SEEN TOO MANY INCIDENTS OF TRAFFIC VIOLENCE ON OUR STREETS. WE HAVE BEEN IN CONVERSATION, I KNOW A NUMBER OF OUR COLLEAGUES HAVE BEEN IN COP VERSATION WITH THE DEPARTMENT, HOW CAN WE DO MORE ON THE ENFORCEMENT FRONT SO WE CAN GET A HANDLE ON WHAT'S HAPPENING. I APPRECIATE SECURING AN ADDITIONAL REVENUE SOURCE THAT WILL HELP CONTRIBUTE TO THAT EFFORT. THANK YOU TO COUNCILMEMBER LUNAPARRA FOR MOVING ITEM 28, I SUPPORT THAT. I WOULD LIKE TO ADD $250 FROM MY OFFICE BUDGET FOR THE RUSSELL STREET HALLOWEEN FESTIVITIES, I THINK THAT'S IT. THANK YOU VERY MUCH.

>> MAYOR ISHII: ALL RIGHT, THANK YOU VERY MUCH. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I WANT TO THANK YOU FOR BRINGING THE URGENCY ITEM AS WELL. IT'S CRITICALLY IMPORTANT AND I REALLY APPRECIATE YOUR DILIGENT WORK ON PUTTING THAT TOGETHER. FIRST ALL, I WANT TO COMMENT ON CONSENT ITEM #2 WHICH IS STAFF PREFERENCE FOR THE VIRGINIA STREET BIKEWAY. THANK YOU, STAFF,

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FOR ALL YOUR GREAT WORK ON THIS. I KNOW IT'S BEEN A LONG PROCESS. BUT WHEN BALANCING SAFETY OF PEDESTRIANS AND CYCLISTS AGAINST THE LOSS OF A HANDFUL OF PARKING SPACES, THE CHOICE IS CLEAR. EACH OF THE AFFECTED HOMES, AS I UNDERSTAND IT, HAS A DRIVEWAY ANYWAY. SO THE COST BENEFIT ANALYSIS IS REALLY CLEAR TO ME AND YOU MADE THE RIGHT DECISION AND I APPRECIATE AND AFFIRM IT. THIS HAS GONE TO ACTION. LET ME GO THROUGH MY AGENDA HERE. THIS HAS GONE TO ACTION. GETTING TO THE RENEWAL OF THE ELMWOOD BID FOR CALENDAR YEAR 2026, THAT'S CONSENT ITEM #29. I'M PLEASED AND THRILLED TO RENEW FOR ANOTHER YEAR. OUR ELMWOOD SHOPPING AREA WITH THE ONLY REMAINING CINEMA IN TOWN, THE ELMWOOD, ASIDE FROM THE PACIFIC FILM ARCHIVE IS A TREASURE. THERE ARE FEW VACANCIES IN THE DISTRICT. WE HAVE SMALL MERCHANTS APPLYING THEIR TRADES ALONG THIS PART OF CHARMING AVENUE. MRS. BIRD, BOOKSTORE, STATIONERY STORE AND DON'T FORGET RESTAURANTS LIKE LA GORDAS. SO MANY OTHERS, I CAN'T NAME THEM ALL. WE HAVE A GOOD LITTLE GROCERY STORE ON ASHBY BELOW THE COLLEGE AND DREAM FLUFF DOUGHNUTS. I CAN'T NAME THEM ALL OR I WOULD VIOLATE OUR TIME RULES. I CAN'T DO THAT. ON COUNCIL CONSENT #31, MY ITEM, RUSSELL STREET HALLOWEEN, I'M DONATING $150 FROM MY DISCRETIONARY BUDGET. I WANT TO SAY THANK YOU TO MY COLLEAGUES WHO HAVE CONTRIBUTED AND COLLEAGUES WHO WILL CONTRIBUTE. I WANT TO THANK THE RUSSELL STREET NEIGHBORS AND NEIGHBORHOOD ASSOCIATION WHO

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HAVE PUT THIS ON EACH YEAR AND CARRY THIS TREASURED BERKELEY TRADITION. IT'S A PLEASURE TO SUPPORT THIS EVENT EACH YEAR. MY CHIEF OF STAFF, ERIC, WANTED ME TO SAY THANK BOO FOR THIS. BUT I COULDN'T BRING MYSELF TO DO THAT. SO WITH RESPECT TO THIS EVENT, HERE IS HOPING IT NEVER GIVES UP THE GHOST. THANK YOU. THAT'S ALL I HAVE.

>> MAYOR ISHII: OKAY, THANK YOU. MOVING ON TO COUNCILMEMBER BARTLETT.

>> B. BARTLETT: THANK YOU, MADAM MAYOR. I WANT TO THANK YOU, COUNCILMEMBER HUMBERT FOR BRINGING FORWARD THE HALLOWEEN FESTIVAL ON RUSSELL STREET. A GOOD EVENT AND I URGE EVERYONE TO ATTEND. IT'S PRETTY CROWDED THOUGH, YOU HAVE TO HAVE SHARP ELBOWS TO NAVIGATE IT, I'M NOT GOING TO LIE. $200 TO SUPPORT THIS EVENT, ITEM #31. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. I ALSO WANT TO THANK YOU FOR YOUR LEADERSHIP ON THE URGENCY ITEM. AND I'M PROUD TO BE A CO-SPONSOR THAT TO LIMIT THE USE OF CITY PROPERTY AND FACILITIES FOR CITY PURPOSES, GIVEN THE ONGOING THREAT WE FACE FROM FEDERAL IMMIGRATION AND CUSTOMS ENFORCEMENT. AND I ALSO WANTED TO CALL ATTENTION TO, AS OTHERS HAVE DONE, ITEM #2 IS THE VIRGINIA STREET BIKEWAY THAT WILL CREATE AN UNINTERRUPTED CONNECTION BETWEEN NORTH BERKELEY B.A.R.T. STATION AND

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REGIONALLY SIGNIFICANT OHLONE GREENWAY, AND THIS IS VERY IMPORTANT, GIVEN THE FUTURE DEVELOPMENT OF THE STATION AND THE REDUCTION IN PARKING SPACES THAT WE WILL HAVE THERE. WE DO NEED TO MAKE SURE THAT IT IS SAFE AND EASY TO ACCESS THE NATION WITHOUT NEEDING TO DRIVE. 0 THAT ONE IS VERY IMPORTANT. AND I ALSO, OTHERS HAVE NOT MENTIONED ITEM #24, WHICH IS -- I DON'T WANT TO RANK ORDER THEM BUT IT IS ALSO VERY IMPORTANT. THIS IS THE CONTRACT TO DO THE OHLONE GREENWAY MODERNIZATION AND SAFETY PROJECT SO THE IMPROVEMENTS YOU SEE RIGHT NOW FROM THE B.A.R.T. STATION TO VIRGINIA GARDENS THAT HAVE BEEN DONE BY B.A.R.T., ESSENTIALLY, THOSE IMPROVEMENTS OF WIDENING THE GREENWAY AND ADDING LIGHTING AND IMPROVING THE CROSSINGS OF STREETS AT CEDAR ROSE AND ALL THE STREETS ALL THE WAY TO THE ALBANY BORDER, ALL THAT WORK WILL BE DONE THROUGH THIS CONTRACT FOR OHLONE MODERNIZATION AND SAFETY PROJECT. THAT'S A HUGE UNDERTAKING. I KNOW OUR STAFF HAVE BEEN WORKING FOR A NUMBER OF YEARS TO GET THE CONCEPTUAL DESIGN AND GET THE FEEDBACK. I DID AN ITEM TO GET SOME ADDITIONAL FUNDING THAT WAS NEEDED. THAT'S A VERY IMPORTANT ITEM FOR US. I WANT TO BE RECORDED AS DONATING $100 TO THE VERY ESSENTIAL RUSSELL STREET HALLOWEEN FESTIVITIES, ITEM #31. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK. ON ITEM 31, I WOULD LIKE TO BE RECORDED AS

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CONTRIBUTING $250.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU, MADAM MAYOR. THERE ARE MANY ITEMS ON THIS CONSENT CALENDAR THAT REPRESENT MANY YEARS OF WORK ON THE PART OF STAFF AND MEMBERS OF THIS COUNCIL. SO I WANT TO THANK EVERYONE FOR YOUR FORTITUDE. I WOULD LIKE TO SPEAK TO A FEW; I WOULD LIKE TO ECHO OTHERS APPRECIATION TO THE MAYOR'S URGENCY ITEM FOR LIMITING THE USE OF CITY PROPERTY AND FACILITIES FOR CITY AND COUNTY PURPOSES. ON ITEM #4, WHICH IS A LETTER WE ARE SENDING TO THE ALAMEDA COUNTY BOARD OF SUPERVISORS REGARDING OPPORTUNITIES TO COLLABORATE WITH ALAMEDA COUNTY ON HOMELESSNESS PROGRAMS OUTSIDE OF BERKELEY. THIS REPRESENTS JUST THE LATEST PHASE, BUT CERTAINLY NOT THE BEGINNING NOR THE END OF AN EFFORT TO ENSURE THAT WE ARE LOOKING AT REGIONAL SOLUTIONS TO CONTINUE TO FIGHT HOMELESSNESS IN THE REGION. AND THAT NO CITY, INCLUDING BERKELEY, CAN DO IT ALONE. AND THIS WOULD ENSURE THAT WE CONTINUE TO PARTNER WITH THE COUNTY TO MAKE SURE THAT EVERYONE IN THE REGION IS DOING ITS FAIR SHARE. AND I ALSO WANT TO THANK THE MAYOR FOR HER LEADERSHIP AS THE CHAIR OF THE MAYOR'S TASK FORCE ON THIS ISSUE. I'M GETTING FEEDBACK THAT MY AUDIO IS VERY LOW. SO, I WILL TRY TO SPEAK LOUDER. THERE WE GO. OKAY. APOLOGIES. ITEM #9, I WANT TO THANK COUNCILMEMBER LUNAPARRA FOR THE EXCELLENT ADDITIONS ON THE WAIVER OF SANCTUARY CITY

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CONTRACTING ORDINANCE WITH SUPERION, LLC. FOR FUND SOFTWARE. I FEEL MUCH MORE COMFORTABLE VOTING FOR THIS ITEM WITH THOSE ADDITIONS. ITEM -- I'M GOING TO, FOR TIME, MOVE PAST SOME OTHER ITEMS. BUT I WANTED TO GIVE $100 OUT OF MY D-13 ACCOUNT FOR THE RUSSELL STREET HALLOWEEN FESTIVITIES. AND LET ME JUST MAKE SURE, I THINK, YEAH. ON THE ITEM #18, I ALSO JUST WANT TO SAY, ON THE ISSUE OF TURTLE ISLAND, WHICH IS ON THE CONSENT CALENDAR TONIGHT, WITH THE AMENDED RECOMMENDATION, I VERY MUCH, AND I THINK I SPEAK FOR MANY, IF NOT ALL OF US, WHEN I SAY, I LOOK FORWARD TO A RESOLUTION OF THIS ITEM. IN THE MOST EXPEDITIOUS MANNER POSSIBLE. WE WANT TO GET THIS RIGHT. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: TWO THINGS, I WANT TO THANK COUNCILMEMBER LUNAPARRA FOR MOVING #28 TO ACTION AND BE RECORDED DONATING $250 TO ITEM #31, WHICH IS ONE OF THE TWO BEST HALLOWEEN CELEBRATIONS IN BERKELEY, MARIPOSA BEING THE OTHER ONE, DISTRICT 5. YOU GOT A HOT TIP. I READ THE ITEM, BUT I WILL BE HONEST, I DIDN'T READ THE RESOLUTION THAT WAS ATTACHED TO IT, I BET SOME OF YOU DIDN'T EITHER BUT YOU SHOULD, BECAUSE IT'S VERY, VERY FUNNY. GOOD WORK, COUNCILMEMBER HUMBERT.

>> M. HUMBERT: IT'S ERIC.

>> S. O'KEEFE: GOOD WORK, ERIC.

>> MAYOR ISHII: THANK YOU, EVERYONE. I ALSO WANT TO VOICE MY

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SUPPORT FOR #2, WHICH IS THE VIRGINIA STREET BIKEWAY. THANK YOU VERY MUCH TO STAFF. I KNOW THOSE DECISIONS CAN BE REALLY CHALLENGING BUT I JUST WANT TO AFFIRM I'M VERY SUPPORTIVE. AND THANK COUNCILMEMBER LUNAPARRA FOR #9, AS WELL AS GIVE $250 TO #31 FOR COUNCILMEMBER HUMBERT'S ITEM. SO THANK YOU ALL VERY MUCH FOR THAT. OKAY. MOVING ON. TO PUBLIC COMMENT ON CONSENT CALENDAR AND INFORMATION ITEMS ONLY. IF YOU ARE HERE FOR CONSENT CALENDAR AND INFORMATION ITEMS, PLEASE COME ON UP TO THE FRONT.

>> DO YOU MIND JUST CLARIFYING IF THE PULLED ITEMS WILL BE UP RIGHT AFTER, OR WILL THEY BE AT THE END?

>> MAYOR ISHII: SO THE PULLED ITEMS WILL BE ON ACTION. AND THEY ARE GOING TO GO IN THE ORDER OF, HOLD ON, I'M SCROLLING DOWN. THEY WILL BE ON THE ORDER OF #18, WHICH IS THE AUTHORIZATION TO ENCRYPT BERKELEY POLICE DEPARTMENT PRIMARY RADIO CHANNELS AND THEN #28, WHICH IS THE REMOVED PRETRANSFER ELIGIBILITY DISTRICT OF THE REBATE FOR WILDFIRE HARDENING AND THEN IT WILL GO TO #33, TELEGRAPH MULTI-MOW DAL CONCEPTUAL DESIGN. AND IF PEOPLE ARE HERE AND STILL HAVE COMMENTS ON #32 EVEN THOUGH IT'S BEEN MOVED TO ANOTHER AGENDA THEY MAY GIVE THEIR PUBLIC COMMENTS FOR ITEM #32. ALL RIGHT. COME ON UP. YOU WILL HAVE ONE MINUTE A PIECE. GO AHEAD.

>> HELLO, MY NAME IS DAVID WHITE. NOT TO BE CONFUSED WITH THE PERSON WHO HAS A SAME NAME AND WORKS IN THE CITY OFFICES. I GAVE

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A HANDOUT, THE PERALTA HOPKINS DEATH TRAP, #24. HEARD THE COUNCILMEMBER MENTION CEDAR AND ROSE, SHE DIDN'T MENTION HOPKINS AND PERALTA BECAUSE THAT'S THE MOST DANGEROUS INTERSECTION I'VE SEEN AFTER THE CHANGES. I LIVE ON PERALTA; I HAVE RIDDEN A BICYCLE SINCE YOU HAVE TO HAVE A LICENSE TO CARRY IT ON B.A.R.T. I SAID HOW IS THIS GOING TO MAKE ME SAFER. IF I WANT TO GET TO THE PATH, THERE'S TWO WAYS I CAN DO IT. UNDER THIS CONSTRUCTION, BOTH OF THOSE WAYS MAKE IT MORE DANGEROUS FOR ME TO DO IT. I COULD GO STRAIGHT DOWN PERALTA TO THE STOP SIGN AT HOPKINS BUT I HAVE TO GO OVER A RAISED WALKWAY AND I HAVE THE BULB PUSHING ME OUT IN TRAFFIC, THE WAY I COULD GO ALONG THE RED LINE RIGHT NOW.

>> MAYOR ISHII: THANKS FOR YOUR COMMENT. AND WE WILL TAKE A LOOK AT THIS.

>> TOTALLY UNSAFE, YOU SHOULD TAKE IT OFF THE CONSENT CALENDAR.

>> MAYOR ISHII: THANK YOU, VICE MAYOR WILL RUN THE COMMENT. I'LL BE RIGHT BACK.

>> THANK YOU. THIS LETTER IS AT LEAST IN PART TRIGGERED BY THE DENIAL BY THE COUNTY FOR ANOTHER MOTEL CONVERSION UNDER MEASURE W, COUNTY MEASURE W FUNDS. THIS IS, THAT THEY CHOSE QUANTITY OVER QUALITY. OUR MOTEL CONVERSIONS HAVE BEEN EXEMPLARY AT PROVIDING UNHOUSED PERSONS A PLACE TO STAY THAT WORKS WITH THEM ON PERMANENT HOUSING, WHILE PROVIDING THEM PRIVACY AND DIGNITY. AND WE NEED TO CONTINUE THESE MOTEL CONVERSIONS. THIS IS REALLY

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FRIGHTENING BECAUSE OUR OTHER, CURRENT MOTEL CONVERSIONS, WE ARE IN JEOPARDY AFTER 2026, WE CAN'T EVEN SUSTAIN THEM WITH OUTSIDE MONEY. SO WE HAVE TO BE GETTING COUNTY MEASURE W MONEY OR OTHER MONEY TO CONTINUE THIS EXCELLENT MODEL. THANK YOU.

>> M. HUMBERT: THANK YOU. NEXT?

>> GOOD EVENING, MY NAME IS LAURA MONYANI, I WANT TO ASK #2 BE TAKEN OFF CONSENT AND PUT IT OVER TO ANOTHER MEETING. WE LEARNED 24 HOURS AGO THIS WAS COMING UP TONIGHT AND YOU ARE GOING FORWARD WITH THE PLAN. I'M ONE OF THE PEOPLE WHO WOULD LOSE A PARKING PLACE. THERE ARE BIKE LANES ONE 100 FEET FROM MY CURB INTO THE B.A.R.T. STATION THAT GOES DIRECTLY INTO THE OHLONE, THAT'S WHAT IT WAS BUILT FOR AND ONE ON DELAWARE. I HOPE YOU LOOK CLOSELY; WE DIDN'T HAVE TIME TO WRITE TO YOU ABOUT THIS BEING ON THE AGENDA. I HOPE IT WILL BE PUT OVER FOR ANOTHER MEETING. THAT'S MY REQUEST. I'M SORRY THE MAYOR DIDN'T GET TO HEAR IT. I'M OPPOSING ITEM #2 BEING ON THE CONSENT CALENDAR, MAYOR ISHII AND HOPING YOU WILL MOVE IT TO ANOTHER MEETING SO THOSE WHO LIVE ON THE STREET WILL HAVE A CHANCE TO CONTINUE THE CONVERSATION.

>> MAYOR ISHII: THANK YOU.

>> HI, MY NAME IS ANDREA, I LIVE AT 1417 17TH STREET, I WOULD BE DIRECTLY AFFECTED. I'M AGAINST THE PROPOSAL, BOTH THE WAY IT WOULD AFFECT MY NEIGHBORS AND ME, BOTH DISABILITY AND --

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TAXPAYER DOLLARS. I'M WELL AWARE OF THE RISKER OF CYCLING BUT THERE'S LITTLE ON VIRGINIA STREET BASED ON EXISTING CONDITIONS AND MANY YEARS OF OBSERVATION, I HAVE LIVED IN MY HOUSE 36 YEARS AND HAVEN'T SEEN A SINGLE BIKE ACCIDENT OR TOLD ABOUT ONE. THE EVIDENCE FOR THE NEED TO BUILD THIS IS VERY NON-EXISTENT TO MY THINKING. BUT VERY SPECIFICALLY FOR MY FAMILY, AND MY HUSBAND DEALS WITH PHYSICAL DISABILITIES AND HAS A BLUE DISABLED PARKING PLACARD, OUR DRIVEWAY IS NARROW AND GETTING IN AND OUT OF THE CAR IS INCREASINGLY DIFFICULT. WE ARE ELIGIBLE FOR A SPACE IN FRONT OF OUR HOUSE, BUT IF IT'S THERE WE WOULD BE DENIED. IF WE PARK ACROSS FROM OUR DRIVEWAY IT WOULD NEGATE THE NEED FOR THE BIKE LANE.

>> MAYOR ISHII: THANKS FOR YOUR COMMENT.

>> IMAGINE YOU HAVE YOURSELF AND A PARENT.

>> MAYOR ISHII: I'M SO SORRY, I APPRECIATE YOUR COMMENT. THANK YOU.

>> PLEASE DON'T DO THIS.

>> MAYOR ISHII: I'M SORRY, YOUR TIME IS FINISHED. THANK. GO AHEAD, KIT.

>> I WANT TO COMMENT ON THE URGENCY ITEM THAT'S BEEN ADDED AND ALSO ON #9. I REALLY APPRECIATE COUNCILMEMBER LUNAPARRA'S CHANGES TO #9, I THINK THOSE ARE REALLY GOOD CHANGES BUT BOTH CASES YOU REALLY NEED TO NOT UNDERESTIMATE I.C.E. AND BORDER

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PATROL AND SO FORTH DESIRE TO PUSH WHATEVER BOUNDARIES THERE ARE AND NOT TO ACT LEGALLY. SO I HOPE THAT WHAT YOU COME UP WITH IN TERMS OF DEFENDING CITY PROPERTY IS REALLY STRONG, THAT FOR INSTANCE WOULD FORBID ARMED OFFICERS TO GO INTO THE PUBLIC LIBRARIES. THERE'S NO REASON FOR ANYONE TO TAKE WEAPONS IN THE PUBLIC LIBRARY UNLESS IT'S THE POLICE RESPONDING TO AN EVENT HAPPENING IN THE LIBRARY, AND I SHOULD NOT BE ALLOWED TO COME IN WITH WEAPONS EVEN THOUGH IT'S A PUBLIC SPACE. IN TERMS OF THE SUPERION, I HOPE THIS IS A TEMPORARY THING AND YOU WILL LOOK AT GETTING OUT OF THE CONTRACT WITH THEM BECAUSE OF THEIR CONNECTIONS WITH I.C.E., YOU CAN'T REALLY COUNT ON THEM NOT REPORTING TO THE I.C.E. FOLKS.

>> MAYOR ISHII: THANK YOU. THANKS, KIT.

>> HI, I'M HALLE FRAZER. ABOUT CONSENT ITEM #27. I YIELD MY TIME TO MARLENE WATSON.

>> MAYOR ISHII: YOU HAVE TWO MINUTES.

>> MY NAME IS SUSAN, AND I'M YIELDING MY TIME TO MARLENE WATSON. THANK YOU VERY MUCH.

>> I'M FERNANDO LOPEZ, I'M CEDING MY TIME FOR MARLENE WATSON.

>> MAYOR ISHII: OKAY, THANK YOU. THAT IS THREE.

>> I'M JOHN CROLL, I'M ALSO SPEAKING ABOUT TURTLE ISLAND MONUMENT.

>> MAYOR ISHII: SORRY, MARLENE IS?

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>> SHE IS ON PHONE OR ONLINE SOMEWHERE.

>> MAYOR ISHII: OKAY, WE WILL JUST GIVE HER THREE MINUTES. OKAY, GO AHEAD.

>> I THINK SHOULD BE ONLINE OR ON PHONE. WE WERE SO EXCITED THAT WE WERE FINALLY DOING THIS. I PERSONALLY HAVE WAITED 30 YEARS FOR THIS MOMENT. OVER 30 YEARS. YOU KNOW, BACK IN 1991, ME AND MARLENE, TWO NATIVE AMERICAN PEOPLE WORKING ON INDIGENOUS PEOPLE'S DAY WHICH WE BROUGHT TO THE WORLD HERE, AND THIS IS PART OF WHAT WE WERE DOING. THEY PROPOSED TURTLE ISLAND MONUMENT. THEY FOUND HAD BEEN BROKEN FOR 30 YEARS AND THEY PROPOSED THIS BEAUTIFUL VISION OF TRANSFORMING THE FOUNTAIN INTO A MONUMENT FOR NATIVE PEOPLE IN AMERICA, WHICH DOES NOT EXIST ANYWHERE. THE CITY HAS THE TIME, THE MAYOR AND CITY COUNCIL AND ENTIRE CITY GOT BEHIND IT ENTHUSIASTICALLY. AND SHORTLY AFTER IT WAS DONE, IT GOT SWEPT UP INTO THIS LANDMARKING OF THE ENTIRE DOWNTOWN CITY. AND THE AUDIT, FOR 30 YEARS THEY HAVE BEEN WAITING FOR THIS.

>> MAYOR ISHII: I'M SO SORRY, BUT YOUR TIME IS UP.

>> THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. THANKS FOR BEING HERE AND YOUR WORK.

>> THANK, MAYOR AND CITY COUNCIL. MY NAME IS BETSY MORRIS. I WANT TO SPEAK TO ITEM 16 AND THANK SCOTT FERRIS FOR BRINGING THIS. I UNDERSTAND IT IS FOR YOUTH BUILD. AND I WANT TO FULLY

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SUPPORT CONTINUING OUR TRADITION OF SUPPORTING YOUNG PEOPLE TO GET INTO WORK BY OFFERING INTERNSHIPS OR SHORT-TERM EMPLOYMENT. I NOTE THAT THERE'S ANOTHER, ALMOST $6 MILLION ON THE CONSENT CALENDAR IN THE FORM OF GRANTS OR ACTUAL CONTRACTS THAT YOU WILL BE SIGNING, OR AGREEING TO TONIGHT. ANOTHER $6 MILLION WITH VARIETY OF SKILLED CONTRACTORS. TREE ARBORISTS, LANDSCAPING. I WOULD LIKE TO SUGGEST CONSIDERING A 1% REQUEST OF OUR CONTRACTORS IN GRANTS WE RECEIVE GO TO YOUTH AND EMPLOYMENT.

>> MAYOR ISHII: THANK YOU. THANKS, BETSY. [APPLAUSE]

>> MONI LAW. RESIDENT OF BERKELEY. CAL GRAD CLASS OF AN 82. #16. I ENDORSE WHAT THE PRIOR SPEAKER JUST SPOKE TO. THE IMPORTANCE OF YOUTH IS SO URGENT RIGHT NOW. WITH THEM HAVING A BLEAK FUTURE, MANY OF THEM NOT THINKING THEY HAVE AN OPPORTUNITY FOR EDUCATION, LET ALONE A JOB. THEY GET JOB TRAINING SKILLS AND PAY. THEY USE SKILLS TRAINING, THERE WERE PRIOR PROGRAMS THAT EXIST IN BERKELEY, WE HAVE YOUTH WORKS BUT IT WAS UNDER FUNDED, THEY HAD THOUSANDS OF YOUTH APPLY FOR A COUPLE HUNDRED JOBS. WE NEED MORE EMPLOYMENT. SECONDLY, I WOULD LIKE TO SUPPORT THE FACT THAT WE GIVE CULTURAL APPRECIATION, NOT CULTURAL ERASURE AND WE ARE ON INDIGENOUS LAND. AND MARLENE AND, THEIR WORK SHOULD BE UPLIFTED, LET'S SEE A TURTLE ISLAND MONUMENT.

>> MAYOR ISHII: THANKS, MONI.

>> HELLO, GOOD EVENING, MY NAME IS ELANA AUERBACH, I ALSO

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SUPPORT A TURTLE ISLAND MONUMENT IN THE CIVIC CENTER. I WANT TO THANK YOU CECILIA FOR TRYING TO ADHERE TO OUR ORDINANCE AND WANT TO ECHO THE SPEAKER WHO SAID YES, LET'S TRY TO GET OUT OF THIS AND UNWIND THIS, I KNOW YOU COULDN'T FIND SOMETHING IMMEDIATELY BUT THIS IS GOOD LANGUAGE AND WE SHOULD TRY TO FIND SOMEONE ELSE WHO IS NOT, AND NOT AT RISK OF DOING BUSINESS WITH I.C.E. I AM ALL FOR SAFE BIKES, BICYCLE AREAS. AND I LIVE RIGHT NEAR THERE. I RIDE MY BIKE THERE ALL THE TIME. THERE'S NO CARS AROUND. THERE'S NO, GENERALLY, I'M JUST THE LONE BIKE. SO I WOULD REALLY LISTEN TO THE NEIGHBORS HERE AND MAKE SURE EMERGENCY VEHICLES CAN GET BY. MAKE SURE YOU HAVE DONE YOUR DUE DILIGENCE, IT DOESN'T MAKE SENSE TO SPEND, I DON'T KNOW HOW MUCH YOU ARE SPENDING ON THIS. BUT TAKE A LOOK AGAIN, PLEASE. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> I THINK I HAVE TWO MINUTE THAT'S ARE BEING YIELDED TO ME.

>> MAYOR ISHII: I SEE ONE AND TWO. OKAY.

>> THANK YOU. MEMBERS OF THE COUNCIL. I'M SPEAKING IN REGARD TO ACTION ITEM, CONSENT CALENDAR ITEM #4, LETTER TO ALAMEDA COUNTY BOARD OF SUPERVISORS ABOUT OPPORTUNITIES TO COLLABORATE WITH ALAMEDA COUNTY ON HOMELESSNESS PROGRAMS OUTSIDE OF BERKELEY. I THINK THAT'S A GOOD IDEA AND I'M GLAD THERE'S A LETTER GOING OUT. WHAT I WANT TO SAY TO YOU IS ONE OF THE COLLABORATIONS THAT DIDN'T WORK, OR ABOUT TO ENTER INTO A NEW COLLABORATION AROUND

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EMERGENCY RESPONSE. BECAUSE OF THE FAILURE OF THE SPECIAL CARE UNIT, ALAMEDA COUNTY IS NOW GOING TO BE THE PROVIDER IN EMERGENCY RESPONSE. I JUST WANT TO SAY, I HAVE SERVED FOR SIX YEARS AS A MENTAL HEALTH COMMISSIONER. I HAVE STRUGGLED AND WRESTLED WITH THIS ISSUE OF GETTING CARE TO PEOPLE WHO NEED IT IN A TIMELY MANNER. OUR CITY FAILED. WE FAILED. I WOULD LOVE AN OPPORTUNITY TO REALLY TALK TO YOU ABOUT WHY THAT SPECIAL CARE UNIT FAILED. THE REPORT YOU GOT FROM RDA WAS ABSOLUTELY FLAWED. IT DIDN'T GET TO THE ROOT CAUSE. I BELIEVE THERE WAS A FEW CAUSES. ONE WAS THE FAILURE OF THE POLICE DEPARTMENT TO COOPERATE WITH INTEGRATING THE SPECIAL CARE UNIT INTO THE INFRASTRUCTURE OF EMERGENCY RESPONSE IN OUR CITY. THEY JUST REFUSED. THEY DIDN'T WANT TO CEDE ANY TERRITORY. THEY DIDN'T WANT TO CEDE ONE DOLLAR OF THEIR BUDGET TO SOMETHING THAT MIGHT WORK. I'M DISAPPOINTED, COUNCILMEMBERS, BECAUSE THE MENTAL HEALTH COMMISSION IS FAILING. IT IS REQUIRED BY THE STATE. OUR CITY IS EXPOSED TO LAWSUITS BECAUSE WE ARE NOT IN COMPLIANCE WITH STATE REGULATIONS ABOUT THE STAFFING OF THE MENTAL HEALTH COMMISSION. WE DON'T HAVE A CITY COUNCIL MEMBER. OVER THE SIX YEARS I'VE BEEN THERE, I HAVEN'T HAD A CITY COUNCIL MEMBER ATTEND MORE THAN TWO MEETINGS. COUNCILMEMBER TAPLIN NEVER SHOWED UP. LUNAPARRA CAME TO A COUPLE. KATE HARRISON CAME TO ONE OR TWO. WE CAN'T GET TRACTION ON THESE ISSUES. THE MENTAL HEALTH,

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AND I'M NOT WILLING TO GIVE UP ANY MORE OF MY TIME TO SIT FOR HOURS AND HOURS AND HOURS TALKING ABOUT THINGS, RESEARCHING THEM, CREATING PROPOSALS THAT GO NOWHERE. SO I REALLY WANT TO ASK YOU, IF YOU ARE GOING TO COLLABORATE, YOU NEED SOME HANDS-ON INVOLVEMENT. I DON'T KNOW WHO YOU GUYS IMAGINE IS DOING THAT WORK, BUT IT'S NOT GETTING DONE. WE ARE NOT REFORMING OUR POLICIES; THE FAILURE OF THE SPECIAL CARE UNIT DIDN'T TEACH US ANY LESSONS. WHAT ARE WE LEARNING FROM THOSE MILLIONS OF LOST DOLLARS AND LIVES THAT COULD HAVE BEEN IMPROVED OR SAVED WITH A PROPER EMERGENCY RESPONSE. I WOULD LOVE TO MEET WITH YOU; YOUR CHIEF OF STAFF DID NOT RESPOND TO MY EMAIL BUT I HOPE THEY WILL SOON.

>> MAYOR ISHII: THANK YOU. [APPLAUSE] CALLERS ONLINE?

>> CITY CLERK: YES, SO NOW WE ARE GOING TO PUBLIC COMMENT ON CONSENT AND INFORMATION ITEMS. WE ARE GOING TO PEOPLE PARTICIPATING REMOTELY. IF YOU WOULD LIKE TO SPEAK TO A CONSENT CALENDAR ITEM, OF COURSE, NOTING THAT ITEM #18 REGARDING THE POLICE RADIOS, THAT IS ON ACTION, SO NOW IS NOT THE TIME TO COMMENT ON THAT. ALSO, ITEM #28 REGARDING THE TRANSFER TAX REBATE HAS BEEN MOVED TO ACTION. SO NOW IS NOT THE TIME TO COMMENT ON THAT ONE EITHER. YOU WILL HAVE ONE MINUTE. THE FIRST SPEAKER IS BEN GERHARDSTEIN.

>> HI, EVERYONE. THIS IS BEN GERHARDSTEIN WITH WALK, BIKE

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BERKELEY. GOOD EVENING. WALK BIKE BERKELEY STRONGLY SUPPORTS THE TWO OHLONE GREENWAY ITEMS YOU ARE LOOKING AT TONIGHT, ITEM #2, PROVIDES STANDARD WIDTH BIKE LANES AND SIDEWALKS ON VIRGINIA STREET CONNECTING OHLONE TO NORTH BERKELEY B.A.R.T. AND ITEM 24, FOR SAFETY IMPROVEMENTS ON OHLONE TO THE NORTH OF NORTH BERKELEY B.A.R.T. WE JOINED WITH A CELEBRATORY RIBBON CUTTING FOR BIKE IMPROVEMENTS AND WE ARE EXCITED FOR YOU TO APPROVE THESE ITEMS TONIGHT WHICH WILL CONNECT AND IMPROVE ON THOSE INVESTMENTS B.A.R.T. MADE. WE COMMEND STAFF FOR THE EXCELLENT WORK, ALONG WITH THE MILVIA STREET BIKEWAY, THAT WAS A TOP PRIORITY, SO IT'S GREAT TO FINALLY BE GETTING TO CONSTRUCTION ON THAT. VIRGINIA AVENUE, PRIORITIZING SAFE ACCESS FOR PEOPLE WALKING AND BIKING OVER PRESERVING A FEW PARKING SPOTS.

>> MAYOR ISHII: BEN, YOUR TIME IS UP. BUT THANK YOU VERY MUCH.

>> CITY CLERK: OKAY, NEXT IS GEORGE LIPPMAN.

>> HI, I HAVE A SARAH WHO WILL CEDE ME HER MINUTE.

>> MAYOR ISHII: TWO MINUTES, GEORGE.

>> THANKS. I WOULD LIKE TO EXPRESS MY CONCERNS ABOUT ITEM #9. I AGREE WITH EVERYTHING THAT KIT SAGINOR SAID ON THE TOPIC. I WOULD LIKE TO CLARIFY WHAT THIS IS ABOUT, IT GRANTS A WAIVE FOR ADMINISTRATOR AND FINANCIAL SOFTWARE FOR SUPERION ABSORBED BY CENTER SQUARE L.L.C. THIS ITEM WAS MADE NECESSARY BECAUSE THEY ARE A PUBLIC SAFETY VENDOR WHO CANNOT DECLARE IT WON'T WORK WITH

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I.C.E. I ALSO APPRECIATE THE COMMUNICATIONS FROM COUNCILMEMBER LUNAPARRA WITH NEW LANGUAGE FOR THIS ITEM. IT'S CERTAIN THE VENDOR AT SOME POINT WILL WORK WITH I. C.E. OR NATIONAL SECURITY AGENCIES WHICH WILL PUT OUR RESIDENTS AT RISK AND VIOLATE OUR SANCTUARY ORDINANCE. FOR MY BACKGROUND IN IT MANAGEMENT, I KNOW THEY ARE REPLACING MISSION CRITICAL AND COMPLEX SOFTWARE IS A BIG JOB AND COULD TAKE YEARS TO ACCOMPLISH. IF WE DEPEND ON THIS VENDOR TO DECLARE, WE WILL LIKELY BE STUCK WITH THEM FOR YEARS IN THE FUTURE. I HEARD THE PROPOSED CONTRACT EXTENSION IS ONLY FOR TWO YEARS AND IT APPEARS FROM THE WORDING OF THE ITEM THAT CITY MANAGER IS LOOKING FOR A DIFFERENT SYSTEM. IF SO, THAT'S GOOD NEWS AND GIVES THE CITY A TARGET OF TWO YEARS TO REPLACE THE VENDOR. IT WOULD BE WISE TO SPEED UP THE REPLACEMENT PROCESS. AND FIND A VENDOR OUTSIDE OF THE PUBLIC SAFETY INDUSTRY. AND JUST WHILE I'M ON THIS TOPIC, I WANT TO REFER TO THE HISTORY OF THE NUCLEAR-FREE BERKELEY ACT WAIVER THAT WAS GRANTED TO VENDOR 3M FOR THEIR WORK WITH THE PUBLIC LIBRARY SOME 5-10 YEARS AGO. THE COUNCIL MADE A WISE DECISION AT THIS POINT TO GIVE THE LIBRARY TWO YEARS TO FIND A SUITABLE VENDOR. AND THE LIBRARY WAS ABLE TO MANAGE THE SWITCH IN THAT TIME. LET'S GET STARTED ON THAT NOW.

>> MAYOR ISHII: THANKS, GEORGE.

>> THANK YOU.

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>> CITY CLERK: NEXT IS NATHAN MIZELL.

>> THANK YOU, MAYOR, AND COUNCIL. I JUST WANT TO THANK COUNCILMEMBER LUNAPARRA FOR HER WORK ON ITEM #9 IN REGARDS TO THE CONTRACT. CERTAINLY, THEY CAN'T BE ALIGNED WITH OUR SANCTUARY STATUS. IT MAKES A LOT OF GOOD SENSE. I'M SUPPORTIVE OF THE TWO BIKE ITEMS AS WELL. AND I BELIEVE, I FORGET WHICH ITEM IS THE TRAFFIC ENFORCEMENT CONTRACT FOR THE TRAFFIC BUREAU, BUT, YOU KNOW, SPEAKING ON THAT, THE PUBLIC RECORDS REQUEST I MENTIONED RELATED TO THAT TYPE OF WORK. AND IT TOOK, AGAIN, 450 DAYS FROM THE ORIGINAL REQUEST THAT THE P.A.D. PUT OUT FOR THE TEXT MESSAGES TO COME UP. THAT WAS A SEVERE VIOLATION OF THE PUBLIC RECORDS ACT. IF THE CITY IS GOING TO RELY ON PUBLIC RECORDS FOR ACCESS TO ANY OTHER COMMUNICATIONS IT SHOULD DEFINITELY WORK ON THOSE RESPONSE TIMES. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, NEXT IS LISA BULLWINKEL.

>> GOOD EVENING, EVERYBODY. I'M LISA BULLWINKEL ON THE ARTS COMMISSION AND CHAIR OF THE COMMITTEE; I PUT FORWARD THE REFERRAL #27 CONCERNING TURTLE ISLAND IN THE HOPE THAT WE CAN HAVE AN INCREDIBLY BEAUTIFUL ART PROJECT IN THE CENTER OF OUR CITY THAT SHOULD HAVE BEEN THERE A LONG TIME AGO AND NOT HAVE A HOLE IN THE GROUND FOR THE NEXT 40 YEARS. THANK YOU FOR PUSHING THIS FORWARD AND I HOPE WHEN IT COMES BACK TO YOU, YOU WILL

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RECTIFY THIS MISTAKE THAT THE CITY MADE AND HELP THESE ARTISTS COME TO SOME HEALING.

>> MAYOR ISHII: THANK YOU, LISA.

>> CITY CLERK: NEXT IS MARLENE.

>> MAYOR ISHII: HOW MANY FOLKS ARE LEFT?

>> CITY CLERK: THERE'S FIVE MORE.

>> MAYOR ISHII: THANK YOU.

>> THIS IS MARLENE WATSON, GRADUATE OF U.C. BERKELEY, I JUST RECEIVED THE ACADEMY OF DISTINGUISHED ALUMNI INDUCTEE OF CLASS OF 2024. I STARTED THIS PROJECT WHEN I WAS A GRADUATE STUDENT IN COLLEGE OF ARCHITECTURE AT BERKELEY, ASSISTING IN WORKING WITH LEE ON THIS PROJECT. WE WERE CONTACTED ABOUT THREE YEARS AGO BY THE PARKS AND REC AND CIVIC ARTS DEPARTMENTS. AND IT WAS CAPITAL FUNDS WITH THE STATE FUNDS. IT WAS A CAPITAL PROJECT. AND AN ART PROJECT. AND WE SPENT ALMOST TWO AND A HALF TO THREE YEARS ON THIS PROJECT. YOU HAD THE NATIVE DESIGNERS. BUT WE WERE SIDELINED. WE WERE NOT TOLD, AND THE CITY NEVER GOT OUR CONSENT TO HAVE A NON-NATIVE ARTIST TO TAKE CREDIT FOR OUR, CONTRACTED AND PAID AND A RESOLUTION FOR THIS PROJECT. AND AS WE MET WITH THEM, ZOOM MEETINGS, THROUGHOUT ALL THAT TIME, THEY KEPT SAYING THAT THE STATE FUNDS, YOU KNOW, THERE WAS AN URGENCY, BUT YOU CAN'T HAVE CAPITAL FUNDS WITH A CAPITAL PROJECT ON A NATIVE DESIGN WITH NATIVE DESIGNERS AND THE NATIVE COMMUNITY SUPPORT TO

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GET THE FUNDING FOR THIS PROJECT TO CONTINUE AFTER ALL THESE YEARS AND THEN GO TO BID AS A NON-NATIVE PROJECT. AND I TRIED TO SAY THAT FOR THE THREE YEARS TO FERRIS AND TO LAVERNE, BOTH OF THEM. AND TO THE WHOLE DESIGN TEAM. THEY WERE WELL AWARE OF IT. BUT YET THEY STILL MADE DECISIONS TO GO FORWARD TO SIDELINE LEE AND I AND TRY TO SAY THAT WE HAD AN ISSUE. WELL, OUR ISSUE WAS THAT WE KNEW WE WERE BEING UNDER MINDED BEHIND OUR BACKS AND THE CITY COUNCIL AND THE MAYOR HAD RECOGNIZED THIS NON-NATIVE ARTIST ALL ALONG. AND SO THAT PART WOULDN'T HAPPEN IN ANY OTHER PROJECT, IN 30 YEARS OF DOING ARCHITECTURAL ENGINEERING WORK IN NATIVE LAND, NATIVE COUNTRY, I NEVER EXPERIENCED THAT, NEVER CAME ACROSS THAT EVER. I GREW UP IN OAKLAND, FROM THE BAY AREA. ALL THE NATIVES IN THE COMMUNITY HAVE KNOWN ME AND MY FAMILY SINCE I WAS, WE WERE ALL TRANSPLANTED FROM THE RESERVATIONS TO THE BOARDING SCHOOLS TO OAKLAND. AND I WAS A STRUCTURAL ENGINEER MAJOR AT 16 YEARS OLD AT BERKELEY. AND SO I'M PROUD OF WHAT I HAVE ACCOMPLISHED IN LIFE. I'M PROUD TO BE STILL PART OF THIS PROJECT. AND I APPRECIATE THAT THE CIVICS COMMISSION IS BRINGING THIS FORTH AS AN ACTION ITEM. AND THIS SHOULD HAVE HAPPENED A LONG TIME AGO. AND FOR US TO BE HERE TO SAY THAT IT NEEDS TO GO BACK TO THE CITY MANAGER, IT'S JUST UNCALLED FOR. AND SO, LEE AND I NEED TO HAVE ANOTHER CONTRACT TO BE ABLE TO CONTINUE THIS PROJECT, ACCORDING TO THE ORIGINAL DESIGN. AND WE NEED THE CITY

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TO RECOGNIZE WHAT THEY HAVE DONE.

>> MAYOR ISHII: THANK YOU SO MUCH FOR YOUR COMMENT. I APPRECIATE IT. AND THANK YOU ALL. I KNOW YOU GAVE HER YOUR MINUTES AS WELL.

>> CITY CLERK: OKAY. NEXT IS WY WII WAK OH ME. YOU SHOULD BE ABLE TO UNMUTE. WE CAN COME BACK. NEXT IS CALLER WITH A PHONE NUMBER ENDING IN 405.

>> I THINK THE VIRGINIA RESIDENTS TO HAVE TIME TO TUNE IN ABOUT WHAT SHOULD HAPPEN, 24 HOURS NOTICE IS REALLY NOT THE WAY OUR CITY SHOULD RUN AND SHAME ON THE PEOPLE WHO GAVE THE RESIDENTS ONLY 24 HOURS. SECOND, COUNCILMEMBERS WHO CONTRIBUTED TO THE RUSSELL HALLOWEEN, WHAT DID OUR MAYOR SAY? LOS DIAS DE MUERTOS BECAUSE OF FEAR OF KIDNAPPING BY I.C.E. THANK YOU.

>> CITY CLERK: OKAY, NEXT IS THEO GORDON.

>> HELLO, COUNCIL. SO THERE'S A LOT OF GREAT THINGS ON THE AGENDA. I WON'T HAVE TIME TO SUPPORT ALL OF THEM, BUT I WANT TO SAY I'M SUPPORTIVE OF THE URGENCY ITEM, THANK YOU FOR PICKING THAT UP AND I WANT TO TALK ABOUT ITEM #2. SAY I'M STRONGLY IN SUPPORT OF HAVING A GREAT BIKE LANE, WE NEED MODE SHIFT, THAT MEANS PRIORITIZING BIKES AND TRANSIT. THIS IS A GREAT PLACE WITH BIKE LANES AND TRANSIT THERE. EVERY BIKE LANE WE HAVE TRIED TO BUILD HAS A FEW RESIDENTS WHO SUPPORT BIKE LANES IN GENERAL BUT FOR SOME REASON THIS PARTICULAR ONE BECAUSE OF THEIR PARKING. IF WE LOOK TO PARTICULAR GROUPS OF RESIDENTS WE WOULD HAVE NEVER

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BUILT ANY BIKE LANES. THANK YOU FOR KEEPING THIS ON CONSENT AND FOLLOWING MODE SHIFT AND BIKE LANES AND BUILDING FASTER. WE NEED MORE CONCRETE ON THE GROUND AND LESS PAPERWORK.

>> CITY CLERK: OKAY.

>> MAYOR ISHII: THANK YOU, THEO.

>> CITY CLERK: LET GOES BACK AND TRY WY WII WAK OH ME.

>> MAYOR ISHII: DO YOU WANT TO SPELL IT?

>> WY WII WAK OH ME.

>> OKAY. THAT'S MY INDIGENOUS NAME. I'M FROM THE CRANE CLAN, GUN LAKE, I'M SPEAKING FROM THE RESERVATION. THANK YOU FOR BRINGING THIS ISSUE UP, IT'S BEEN 35 YEARS. JUST BECAUSE THE CITY APPROPRIATES OUR ARTIST TO A NON-NATIVE ARTIST DOESN'T MEAN IT'S RIGHT. IT NEEDS RESOLUTION TO PROTECT FUTURE NATIVE ARTISTS AND THEIR RIGHTS FROM BEING APPROPRIATED. I WOULD ALSO LIKE TO RECOMMEND THAT WE HAVE A TRUTH AND RECONCILIATION COMMITTEE THAT WE CAN LOOK AT THIS IN DEPTH, WHAT HAS HAPPENED FOR THE LAST 35 YEARS SHOULD HAVE NEVER HAPPENED. WE HAVE BEEN GASLIGHTED, THE HARDER WE FIGHT FOR OUR RIGHTS AS ARTISTS, THE MORE WE ARE PORTRAYED AS BEING UPPITY, HOSTILE, ALL THE OLD TROPES ABOUT AMERICAN INDIAN. BERKELEY SHOULD NEVER FIND ITSELF IN THIS POSITION AGAIN. I'M HOPING WE CAN SIT DOWN THROUGH THE RECONCILIATION PROCESS.

>> MAYOR ISHII: I'M SORRY, YOU ARE OUT OF TIME. BUT THANK YOU,

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APPRECIATE IT.

>> CITY CLERK: THAT'S IT. THAT'S THE LAST SPEAKER. [APPLAUSE]

>> CITY CLERK: FOR CONSENT ITEMS.

>> MAYOR ISHII: YES, THE LAST CONSENT AND INFORMATION ITEM SPEAKER. JUST REALLY QUICKLY, SOMEONE ASKED ABOUT WHY WE CANCELLED DIA DE LOS MUERTOS, IT WAS THE ORGANIZERS WHO CANCELLED BECAUSE THERE WERE PEOPLE WHO SAID THEY DIDN'T FEEL SAFE. THAT'S A HORRIBLE THING AND REALLY SAD WE HAD TO CANCEL THAT. IT'S SUCH A LOSS FOR THE COMMUNITY. AND CERTAINLY, HAS NOTHING TO DO WITH OUR HALLOWEEN AND OUR SUPPORT OF OUR HALLOWEEN CELEBRATION. THANK YOU ALL. COUNCILMEMBERS, IS THERE A MOTION TO APPROVE THE CONSENT AGENDA? CALENDAR?

>> R. KESARWANI: SO MOVED.

>> MAYOR ISHII: JUST TO BE CLEAR, BECAUSE THERE WERE A LOT OF THINGS THAT CHANGED. WE TOOK TWO THINGS OFF THE CONSENT CALENDAR, THEY MOVED ONTO ACTION. THAT WAS ITEMS, JUST TO DO THIS AGAIN, ITEM NUMBER, SORRY... ITEM #18, WHICH WAS AUTHORIZATION TO ENCRYPT BERKELEY POLICE DEPARTMENT -- FOLKS, COUNCILMEMBERS, PLEASE. THAT'S 18, AUTHORIZATION TO ENCRYPT BERKELEY POLICE DEPARTMENT PRIMARY RADIO CHANNELS. REMOVE PRETRANSFER ELIGIBILITY OF THE TRANSFER TAX REBATE FOR WILDFIRE HARDENING. THOSE ARE MOVED OFF TO ACTION. WE ADDED AN URGENCY ITEM AND ALSO THERE WERE SOME ADJUSTMENTS MADE BY COUNCILMEMBER

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LUNAPARRA TO ITEM #9.

>> CITY CLERK: AND THE CITY MANAGER'S REQUEST ON ITEM 27, TO HAVE THE ITEM REFERRED TO THE CITY MANAGER TO CONSIDER THE COMMISSION'S RECOMMENDATION, REPORT BACK TO THE COUNCIL.

>> MAYOR ISHII: YEP. OKAY, THANK YOU. AND SORRY, DID SOMEONE MAKE THE MOTION?

>> CITY CLERK: RASHI.

>> M. HUMBERT: AND I SECONDED.

>> CITY CLERK: COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

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>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: THANK YOU, APPROVED.

>> MAYOR ISHII: WE HAVE STILL A FEW ITEMS ON OUR ACTION CALENDAR, BUT I WOULD LIKE US TO TAKE A TEN MINUTE BREAK. WE WILL TAKE A TEN MINUTE STRETCH BREAK AND WE WILL BE BACK AT 7:57. [RECORDING STOPPED] [BREAK] [RECORDING IN PROGRESS]

>> MAYOR ISHII: OKAY, SORRY ABOUT THAT FOLKS. LET'S CALL THIS MEETING BACK TO ORDER. ALL RIGHT; WE ARE MOVING ON. WE HAVE FINISHED THE CONSENT CALENDAR AND WE ARE MOVING ON TO ACTION. AS KNOW WE HAVE MORE THINGS ON ACTION NOW. SO, WE ARE GOING TO MOVE ON TO ITEM #18, AUTHORIZATION TO ENCRYPT BERKELEY POLICE DEPARTMENT PRIMARY RADIO CHANNELS. AND I BELIEVE WE HAVE SOME QUESTIONS FOR THE CHIEF. SO I THINK WE SHOULD START THERE. SORRY, WE HAVE SOME QUESTIONS FOR THE CHIEF. THANK YOU.

>> SORRY, ONE MOMENT, IS THAT FOR ME? OKAY, GIVE ME ONE SECOND.

>> C. LUNAPARRA: OKAY, THANK YOU. FIRST, DO YOU MIND ELABORATING A LITTLE BIT ABOUT SOME OF THE ALTERNATIVE APPROACHES YOU HAVE EXPLORED AND WHY YOU BELIEVE THEY MIGHT NOT BE FEASIBLE.

>> MAYOR ISHII: SORRY, BEFORE THAT, CAN YOU GIVE ME BACKGROUND HOW WE GOT HERE.

>> I CAN COVER SOME OF THE QUESTIONS IN ADVANCE. WE ARE HERE

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TONIGHT TO ASK COUNCIL'S POSITION TO ENCRYPT OUR POLICE DEPARTMENT'S PRIMARY CHANNELS. AS BACKGROUND, EVERY LAW ENFORCEMENT IN ALAMEDA AND CONTRA COSTA COUNTY SHARES TECHNOLOGY AND INFRASTRUCTURE FOR OUR POLICE RADIO COMMUNICATIONS, THAT LOUS US TO ENSURE ACCESSIBILITY AND INTEROPERABILITY FOR MUTUAL AID EVENTS. WE BROUGHT THIS FORWARD TONIGHT BECAUSE OF THREE DISTINCT CHANGES OF CONDITIONS THAT MADE IT IMPORTANT FOR US TO MAKE THIS REQUEST. SO FIRST, THIS MONTH EVERY SINGLE LAW ENFORCEMENT AGENCY IN ALAMEDA AND CONTRA COSTA COUNTY MOVED TO ENCRYPTION EXCEPT BERKELEY, TO MOVE TO FEDERAL MANDATES REQUIRED BY THE D.O.J. WHICH REQUIRED. IF IT WERE NOT TRANSMITTED OVER AN ENCRYPTED CHANNEL. WE HAVE HAD DOCUMENTED CASES WHERE SUSPECTS ARE USING LIVE RADIO TRAFFIC VIA SCANNER APPS TO COORDINATE RESPONSES AND AVOID CAPTURE. WE HAVE HAD THREE OF THOSE SPECIFIC INSTANCES IN THE LAST MONTH AND A HALF. WE HAVE HAD SEVERAL MORE IN THE LAST SEVERAL YEARS. THESE RANGED FROM SUSPECTS INVOLVED IN SHOOTINGS, ROBBERIES, COMMERCIAL BURGLARIES, VEHICLE THEFTS WHERE THEY ACKNOWLEDGED OR ADMITTED IN AN INTERVIEW THEY WERE USING A SCANNER APP, WE LOCATED THE SCANNER APP OR EVIDENCE TURING THE INVESTIGATION WE CAN TELL THEY ARE MONITORING OUR APP. THIRD, ONE OF THE WORK AROUNDS OF SWITCHING TO AN ALTERNATIVE CHANNEL. SO THAT'S NO LONGER FEASIBLE WITH OUR CURRENT STAFFING LEVEL IN THE COMMUNICATIONS CENTER. AND

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ADDITIONALLY, IT REMOVES OUR ABILITY TO HAVE EVERYONE WHO IS RESPONDING TO AN INCIDENT ON A SAME OPERATIONAL CHANNEL AT THE SAME TIME, HAVING ACCESS TO THE FULL INFORMATION THAT'S THERE. ENCRYPTION ADDRESSES THESE CONCERNS THAT HAVE EMERGED AND BECOME MORE PREVALENT RECENTLY. WE DO UNDERSTAND THERE'S A LEVEL OF ACCESS THAT'S GOING TO BE LOST BY MOVING TO ENCRYPTION AND WE WANT TO CONTINUE TO PROVIDE AS MUCH INFORMATION AS WE CAN, AS QUICKLY AS WE CAN THAT'S ACCURATE. SO WE DID LOOK AT A NUMBER OF ALTERNATIVES. ANY OPTION THAT DIDN'T RESOLVE THE CRITICAL ISSUES, THAT INCLUDED SETTING TIME DELAY ON RADIO TRAFFIC OR ENCRYPTION KEY, THAT STILL LEAD TO PERSONAL IDENTIFYING INFORMATION BEING ACCESSIBLE, IN VIOLATION OF STATE AND FEDERAL LAUMANN DATES. WE WERE ABLE TO ACCOMMODATE A NUMBER OF OPTIONS TO ENSURE THAT WE HAVE ONGOING TRANSPARENCY AND AS MUCH INFORMATION AS POSSIBLE, SHARING AS POSSIBLE, AT THE SAME TIME WE ARE TOING THAT BALANCE. AND ARLO TALK THROUGH THOSE OPTIONS WE WILL BE ABLE TO IMPLEMENT AS WE MOVE THIS ITEM FORWARD.

>> SO WE LANDED ON -- WE LANDED ON THREE MEASURES. SO FIRST, THE FIRE DEPARTMENT RADIO CHANNEL WILL REMAIN UNENCRYPTED. THAT CHANNEL OFTEN CARRIES TIMELY INFORMATION ON CRITICAL INCIDENTS LIKE FIRES, AND COLLISIONS. SECOND THE POLICE DEPARTMENT WILL MAINTAIN PUBLIC ACCESS TO INFORMATION THROUGH OUR MEDIA RELEASES, OUR ALERTS, OUR SOCIAL MEDIA UPDATES AND FINALLY AS WE

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SHARED IN OUR SUPPLEMENTAL WE INTEND TO LAUNCH A NEAR REAL-TIME CALL LOG ON OUR TRANSPARENCY HUB. THIS CALL LOG WILL PULL INFORMATION FROM THE CAD SYSTEM, COMPUTED AIDED DISPATCH. AS CALLS COME IN AND DISPLAY THE INFORMATION, INCLUDING CALL TYPE, SO WHETHER A DISTURBANCE OR COLLISION OR ROBBERY, THE TIME THAT CALL CAME OUT, THE SOURCE THE CALL, WHETHER IT WAS AN EMERGENCY CALL TO 9-1-1 OR NON-EMERGENCY CALL. THE PRIORITY LEVEL. SO FOR EXAMPLE, PRIORITY LEVEL ONE IS OUR HIGHEST PRIORITY LEVEL AND WE WILL DETAIL THAT. THE PROGRESS STATUS, WAS IT A COLD REPORT, AN ONGOING INCIDENT, IT OCCUR JUST PRIOR. AND AS WELL AS GENERAL LOCATION OF THE CALL. SO THIS WILL BE PUBLICLY AVAILABLE ON THE TRANSPARENCY HUB. ALREADY ON THE TRANSPARENCY HUB, WE UPDATE OUR CALLS FOR SERVICE DATASET ON A DAILY BASIS. SO THIS NEAR REAL-TIME CALL LOG WILL BRIDGE THE GAP FROM WHEN A CALL COMES OUT AND WHEN THE CURRENT DATASET GETS UPDATED. I KNOW THIS WILL BE A DIFFERENT WORKFLOW FOR PEOPLE WHO ARE ACCUSTOMED TO LISTENING IN ON THE RADIO CHANNEL. BUT WE ARE EXCITED TO WORK WITH THOSE USERS TO ITERATE ON THIS CALL LOG, TO MAKE IT AS VALUABLE AS POSSIBLE. SO I'M EXCITED ABOUT THE SOLUTION, I THINK IT COULD BE A WIN/WIN FOR PUBLIC SAFETY AND TRANSPARENCY.

>> AND JUST TO BE CLEAR, WE KNEW THIS, THERE WERE GOING TO BE CONCERNS AROUND TRANSPARENCY, WE TOOK THAT INTO ACCOUNT, IT WAS IMPORTANT FOR ME TO BALANCE THAT IN LIGHT OF THE REAL OFFICER

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SAFETY AND PRIVACY RIGHTS OUR COMMUNITY. AND SO, YOU KNOW, IT WAS A THOUGHTFUL PROCESS, I APPRECIATED THE ENGAGEMENT FROM BOTH THE COMMUNITY AND COUNCILMEMBERS AROUND HOW WE COULD FIND SOLUTIONS THAT WORKED. AT THIS POINT WE WOULD BE HAPPY TO ANSWER ANY OTHER SPECIFIC QUESTIONS, IF THERE ARE ANY.

>> MAYOR ISHII: THANK YOU, I APPRECIATE IT. I KNOW COUNCILMEMBER LUNAPARRA HAS SOME QUESTIONS THAT CAME FROM THE COMMUNITY. I WILL PASS IT OVER TO HER.

>> C. LUNAPARRA: THANK YOU. I GUESS THE FIRST QUESTION IS THE SAME, COULD YOU ELABORATE ON SOME OTHER ALTERNATIVE APPROACHES THAT YOU HAVE EXPLORED THAT OTHER JURISDICTIONS MIGHT DO, AND WHY YOU THINK THEY MIGHT NOT BE FEASIBLE.

>> FOR EXAMPLE, BURBANK HAS A 30-MINUTE DELAY. ANY DELAY DOESN'T PREVENT THE ACCESS TO PERSONALLY IDENTIFIABLE INFORMATION OR CRIMINAL JUSTICE INFORMATION, THAT DOESN'T RESOLVE THE STATE AND FEDERAL MANDATE. WE LOOKED AT RADIO ENCRYPTION KEY FOR THE MEDIA OR THEM HAVING THEIR OWN RADIO. THAT DOESN'T RESOLVE THE PI AND I CRIMINAL JUSTICE SOLUTION. SO KNOW, THE OTHER SOLUTIONS THAT WERE RAISED TO US WERE HAVING THE CALL LOG. WE LOOKED AT WHAT SAN FRANCISCO HAS IN PLACE, HOW OTHER JURISDICTIONS ARE COMMUNICATING. AND LOOKED AT OPTIONS WITH THE FIRE DEPARTMENT CHANNEL, TO TRY TO FIND AS MANY WAYS AS WE CAN CONTINUE TO PROVIDE UPDATED INFORMATION AS NEAR REAL-TIME AS POSSIBLE.

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>> C. LUNAPARRA: THANK YOU. I APPRECIATE THAT. DO YOU MIND CLARIFYING THE DIFFERENCE BETWEEN PII AND OTHER TYPES OF IDENTIFYING INFORMATION THAT MIGHT STILL POSE RISKS TO INDIVIDUALS AND WHY THOSE NEED TO BE PROTECTED?

>> YEAH, CERTAINLY. SO PII IS A VERY SPECIFIC THING. IT'S THE NAME, BIRTH DATE, SOCIAL SECURITY NUMBER, IDENTIFYING PIECES OF INFORMATION. EVERYBODY IS PRETTY CLEAR HOW THAT BEING PUBLICLY AVAILABLE COULD BE PROBLEMATIC. THERE'S OTHER PIECES OF PRIVACY AND SAFETY THAT AFFECT THE COMMUNITY BASED ON INFORMATION BEING OUT IN A PUBLIC WAY. FOR EXAMPLE, IF WE HAVE A WITNESS OR VICTIM THAT IS REPORTING A CRIME, OFTEN TIMES WE GET THEIR NAME AND PHONE NUMBER, AND OFFICERS ON THE WAY TO THE SCENE ARE GETTING INFORMATION ABOUT WHERE THE CALLER IS CALLING FROM, WHAT THEY ARE OBSERVING, WHAT HAPPENED. SOME OF THE BASIC FACTS AN OFFICER NEEDS TO RESPOND SAFELY. I DON'T THINK INDIVIDUALS WHO ARE CALLING ARE CLEAR THAT WHEN THEY SAY THOSE THINGS TO A DISPATCHER, KNOWING THE POLICE WILL COME AND HELP RESOLVE SOMETHING, WHAT THEY ARE SAYING MIGHT BE IN A PUBLICLY AVAILABLE FORUM FOR ANYONE FOLLOWING THAT THE SCANNER APP. THAT'S WHY WE ARE TALKING ABOUT SAFETY AND PRIVACY. IF A SUSPECT IN A CRIME USES THAT SCANNER APP AND FIGURED OUT WHO CALLED ON THEM AND WANTS TO DO SOMETHING ABOUT IT, THAT'S CONCERNING TO ME.

>> MAYOR ISHII: I WANT TO COMMENT FOR THE FOLKS STANDING UP, YOU

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ARE WELCOME TO STAND THERE, BUT WE HAVE A LOT OF QUESTIONS SO YOU MIGHT BE STANDING FOR A WHILE. JUST WANTED TO LET YOU KNOW IN CASE YOU NEED TO SIT.

>> C. LUNAPARRA: THANK YOU. THANK YOU SO MUCH. MY NEXT QUESTION IS AROUND THE SUPPLEMENTAL THAT YOU BROUGHT FORWARD. DO YOU MIND WALKING THROUGH HOW THAT INFORMATION WOULD BE FUNCTIONALLY AUTO POPULATED TO THE TRANSPARENCY HUB AND WHAT THAT WOULD LOOK LIKE?

>> A CALL COMES IN; DISPATCHERS IMMEDIATELY START ENTERING INFORMATION INTO THE CAD INTERFACE. WHAT IS THE GENERAL CALL TYPE, WHERE IS IT OCCURRING, SO ON. THAT DATA GETS TRANSFERRED TO AN INTERIM DATABASE EVERY COUPLE OF MINUTES AND EVERY NIGHT IT GOES TO A REPORTING DATABASE THAT IS MORE STABLE. THAT REPORTING DATABASE IS WHAT WE PULL AND UPLOAD INTO THE TRANSPARENCY HUB CURRENTLY. WE ARE PROPOSING THIS REAL-TIME TO CALL FROM THE PRODUCTION DATABASE UPDATED EVERY COUPLE MINUTES AND UPDATING THAT INFORMATION TO THE TRANSPARENCY HUB.

>> C. LUNAPARRA: THANK YOU. I AM WONDERING IF THERE ARE ANY STEPS TO MINIMIZE THE DELAY BETWEEN WHEN A CALL OCCURS AND WHEN THE INFORMATION IS PUBLISHED ON THE TRANSPARENCY HUB.

>> YEAH, WE ARE BALANCING TWO THINGS THERE. ONE, OUR I.T. LIMITATIONS OR ABILITIES, AS WELL AS THE PUBLIC SAFETY CONCERNS. SO WE ARE WORKING WITH I.T. TO FIGURE OUT HOW OFTEN WE CAN RUN QUERIES AGAINST THAT PRODUCTION DATABASE. THEY ARE GOING TO BE

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AN IMPORTANT RESOURCE AS WE FIGURE OUT HOW TO OPTIMIZE THAT REFRESH RATE. BUT WE WANT TO CONSIDER THE PUBLIC SAFETY CONCERNS. AS A CALL COMES IN, THAT INFORMATION WILL BE AVAILABLE, OFTEN BEFORE AN OFFICER DISPATCHED TO THAT CALL. WE WANT TO MAKE SURE THERE IS SOME DELAY THAT WE GET OFFICERS ON THE SCENE HANDLING A SITUATION BEFORE WE ARE PUTTING ALL THE DETAILS OUT THERE ON THE TRANSPARENCY HUB.

>> C. LUNAPARRA: THANK YOU. AND CONVERSATIONS WITH SOME COMMUNITY ORGANIZATIONS, THERE WAS A COUPLE MORE SUGGESTIONS OF THINGS WE COULD IDEALLY ADD TO THE SHORT-TERM TRANSPARENCY HUB INFORMATION, INCLUDING, I'M CURIOUS WHAT YOU THINK ABOUT THESE ADDITIONS. INCLUDING SPECIFICALLY AROUND COLLISIONS. THE TYPE OF COLLISION WITH PARTIES INVOLVED, FOR EXAMPLE, WHETHER IT'S VEHICLE AND PEDESTRIAN, VEHICLE AND CYCLIST, VEHICLE AND VEHICLE. WHAT KIND OF COLLISION IT IS. THE STATUS OF INDIVIDUALS INVOLVED. AND UPDATE, EVENTUAL UPDATE ON THE SITUATION, SUCH AS THE LEVEL OF RESPONSE OR CAUSE OF COLLISION. THIS IS ALREADY DONE ON TRANSPARENCY HUB BUT THE THOUGHT IT WOULD BE MORE EFFECTIVE IF CENTRALIZED.

>> YEAH, SO WE ARE ABLE TO ADD SOME FEATURES SPECIFICALLY AROUND COLLISIONS. WE ARE IN CONTACT WITH AND HAVE A MEETING SET AND ARE EXCITED TO WORK WITH GROUPS LIKE WALK, BIKE BERKELEY TO MAKE SURE THIS CALL LOG IS AS VALUABLE TO THEM FOR THEIR WORK. WE ARE

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LIMITED TO WHAT INFORMATION IS AVAILABLE TO DISPATCHERS AT THE TIME THE CALL COMES IN, RIGHT? AS WELL AS WHAT THE CAD INTERFACE ALLOWS US TO SUBMIT IN A STRUCTURED WAY. SOME OF THE INFORMATION YOU MENTIONED COMES AFTER THE ORS OF THE INVESTIGATION. WHICH OF COURSE WOULD NOT BE AVAILABLE IN REAL-TIME. THAT'S EXACTLY THE INFORMATION WE SHARON THE TRAFFIC PAGE OF THE TRANSPARENCY HUB.

>> C. LUNAPARRA: YEAH, NO, THAT MAKES A LOT OF SENSE. DEFINITELY NOT EXPECTING -- THE INFORMATION YOU COULD HAVE IN THE SHORT-TERM, BASICALLY.

>> YEAH, ABSOLUTELY. AND WE ARE EXCITED TO FIGURE OUT THE BEST WAY TO SET UP THE CALL LOG TO MEET THE NEEDS OF THOSE GROUPS.

>> C. LUNAPARRA: GREAT, THANK YOU SO MUCH. THOSE ARE MY QUESTIONS.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. WE ARE GOING TO DO QUESTIONS AND THEN PUBLIC COMMENT AND THEN COUNCIL COMMENT. SO COUNCILMEMBER HUMBERT, IT YOU HAVE ANY QUESTIONS?

>> M. HUMBERT: I DID HAVE SOME QUESTIONS. I WANT TO PREFACE THE QUESTIONS -- WELL, FIRST I WANT TO THANK COUNCILMEMBER LUNAPARRA FOR HER GOOD AND PROBING QUESTIONS AND ELIMINATED SOME OF THE QUESTIONS I HAD ON MY LIST. I'M FAVORABLE TO THIS, I WANT TO PREFACE THAT, ESPECIALLY WITH THE SUPPLEMENTAL. WITH CITIES AROUND US ENCRYPTED AND WE ARE NOT, WE BECOME A TARGET FOR THESE CRIMINAL CREWS. I UNDERSTAND SWITCHING BETWEEN AN UNENCRYPTED

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CHANNEL FOR RUN OF MILE AND HIGH SECURITY IS NOT FEASIBLE GIVEN OUR DEPLETED STAFFING. IF WE COULD STAFF UP, KNOCK ON WOOD, COULD WE LOOK AT THIS AGAIN, THE POSSIBILITY OF TOGGLING BACK AND FORTH?

>> THAT IS WHAT I WAS TRYING TO DRIVE AT A LITTLE BIT. IF YOU CAN IMAGINE OFFICERS ARE RESPONDING TO THE SCENE AND YOU WANT EVERY OFFICER RESPONDING TO HAVE EVERYTHING THAT IS IMPORTANT FOR THAT SCENE. IF HAVE A PIECE OF CONFIDENTIAL INFORMATION, YOU HAVE EITHER HAVE EVERYONE HAS TO SWITCH TO THAT CHANNEL, AND THEN SWITCH BACK. THAT'S CHALLENGING. OR SOME WILL SWITCH AND GET IT AND OTHERS WON'T HAVE IT. IT CREATES A BREAK DOWN. ANY TIME YOU HAVE TO GO TO ANOTHER CHANNEL TO DO WORK YOU ARE MISSING WHAT IS HAPPENING ON THE PRIMARY CHANNEL AND POTENTIALLY GETTING INFORMATION OTHER PEOPLE DON'T HAVE.

>> M. HUMBERT: SO IT'S REALLY NOT DEPENDENT ON DISPATCH STAFFING LEVELS?

>> IF YOU HAVE ENOUGH DISPATCHERS AND GOING TO A PRIORITY CALL, COULD MOVE EVERYONE TO THAT CHANNEL GOING TO THAT CALL. THERE'S LESS OPERATIONAL AWARENESS FOR OFFICERS GOING TO OTHER CALLS TO KNOW IF THEY NEED TO BREAK AND ASSIST ON THAT. BUT IF YOU HAD ENOUGH DISPATCHERS THAT COULD BE AN OPTION WHERE YOU JUST MOVED EVERYBODY OVER, AND WE DO THAT SOMETIMES ON CRITICAL INCIDENTS WE WILL MOVE TO ANOTHER CHANNEL.

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>> M. HUMBERT: I HOPE WE GET UP TO FULL STAFFING, MAYBE WE COULD TAKE ANOTHER LOOK AT THAT. ANYWAY, THAT WOULD BE AT LEAST SOMETHING. ALSO, AND I THINK I HEARD THE ANSWER TO THIS, WILL YOU WORK WITH THE COMMUNITY AND PRESS TO ENHANCE THE CALL LOG DATA, AND IT SOUNDS LIKE YOU ALREADY ANSWERED THAT QUESTION. YOU ARE WILLING TO DO THAT, YOU ARE ALREADY GOING TO MEET AS I UNDERSTAND WITH WALK, BIKE, BERKELEY. THAT'S A GOOD THING AND MEETING WITH THE PRESS, I HOPE, FOR THEIR IDEAS AND WHAT THEY NEED.

>> IT'S NOT JUST THE CALL LOG. I WANT TO CONTINUE CONVERSATIONS AROUND HOW WE CAN PASS INFORMATION, THAT'S VERIFIED INFORMATION, IN WAYS THAT ARE MORE EFFICIENT AND EFFECTIVE. CERTAINLY WHENEVER WE HAVE A COMMUNITY SAFETY ISSUE, THAT'S WHEN YOU SEE A NIXLE GO OUT, A SHELTER IN PLACE KIND OF ORDER, THAT'S WHAT NIXLE IS FOR, BUT THERE'S ABSOLUTELY SPACE WE CAN STEP TO IMPROVE COMMUNICATION WITH MEDIA AND ADVOCACY GROUPS IN LIGHT OF WHAT IS P HAPPENING HERE.

>> M. HUMBERT: OKAY, THANK YOU. THOSE WERE MY QUESTIONS. APPRECIATE IT.

>> MAYOR ISHII: GOING ONTO COUNCILMEMBER BLACKABY AND THEN COUNCILMEMBER TREGUB AFTER.

>> B. BLACKABY: THANK YOU, MADAM MAYOR, CHIEF AND ARLO FOR BEING HERE. THANK YOU FOR BEING WILLING TO ENGAGE WITH US AND MEMBERS

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OF THE COMMUNITY. I KNOW WE HAVE BEEN THROWING IDEAS OUT AT YOU. IT WAS IMPORTANT TO ME AND MANY US, OFFICER SAFETY, PUBLIC PRIVACY, BUT AT THE SAME TIME IF WE ARE REDUCING TRANSPARENCY IN ONE AREA, IT WAS IMPORTANT TO ME, AND IMPORTANT TO YOU, TO FIND OUT HOW WE CAN ADD MORE TRANSPARENCY IN OTHER WAYS. I APPRECIATE THIS FEELS LIKE MOVEMENT IN THAT DIRECTION. I WANT TO THANK YOU FOR THAT. ON THE LOG ITSELF, SO THIS IS BASICALLY GOING TO BE A FEED OF THE CAD, RIGHT? ARE YOU ENVISIONING ANY FILTERS OR REALLY PRETTY MUCH THE WHOLE THING?

>> YEAH, SO THERE WILL BE, WE WON'T PUBLISH ANY ADDRESS INFORMATION FOR SENSITIVE CALL TYPES, FOR EXAMPLE. SO THERE WILL BE A FEW FILTERS BUILT IN TO PROTECT SENSITIVE INFORMATION. BUT OTHERWISE IT WILL BE A LOG OF EVERY CALL THAT COMES IN.

>> B. BLACKABY: JUST KIND OF PUTTING IN CONTEXT, IT FEELS LIKE WHAT WE ARE TALKING ABOUT, UP UNTIL NOW, BECAUSE FOLKS HAVE BEEN ABLE TO MONITOR THE RADIO, THE KIND OF ONUS HAS BEEN ON MEMBERS OF THE MEDIA. THERE WAS PUBLIC TO FIND THE INFORMATION AND DO WITH IT WHAT THEY WILL. BUT IN A SENSE THIS WILL REQUIRE A BIT OF A CULTURE SHIFT, THAT'S TOO STRONG A WORD, IT WILL REQUIRE THE DEPARTMENT TO BE MORE PROACTIVE, BECAUSE NOW WE CAN'T JUST RELY ON EVERYONE HAVING ACCESS TO WHATEVER DATA, WE HAVE TO BE PROACTIVE AND MAKE SURE WE ARE PUTTING THE DATA OUT THERE IN WAYS THAT IS APPROPRIATE. THANK YOU FOR ALREADY MAKING THAT

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SHIFT. JUST A COMMENT, IT WILL REQUIRE I THINK EVERYBODY, THAT BECOMES AN IMPORTANT CONSIDERATION ON A DAILY BASIS AND CERTAINLY WHEN IT COMES TO KEY EMERGENCY EVENTS. WE TALK ABOUT, I KNOW THERE ARE ALREADY PROTOCOLS NOW, WE ARE TALKING ABOUT THE DAY-TO-DAY LOG FOR KEY EMERGENCY EVENTS OR COMMUNITY EVENTS. CAN YOU ALSO TALK ABOUT HOW THAT PROCESS WORKS, IS THERE ANY ENHANCEMENT FOR PUTTING INFORMATION OUT, PRESS CONFERENCES, THE NIXLE ALERTS? HOW DOES THAT WORK?

>> YEAH, JUST ONE SMALL POINT OF CLARIFICATION ABOUT THE CALL LOG LOCATIONS. WE WILL BE PUTTING LOCATIONS OUT WHERE INCIDENTS OUT, BUT NOT A SPECIFIC ADDRESS. IT WILL EITHER BE THE BLOCK, OR CLOSEST IPT SECTION. I WANTED TO CLARIFY THAT REAL QUICK. AS FAR AS WHEN WE HAVE A LARGER CRITICAL EVENT OR INCIDENT WE WILL OFTEN SET A MEDIA STAGING POINT OR BECOME A PRIMARY POINT OF CONTACT, EVEN IF IT'S AN OFF DUTY TIME, WEEKEND OR NIGHT, OUR WATCH COMMANDER WILL HAND THAT RESPONSIBILITY OVER TO OUR PUBLIC INFORMATION OFFICER TO HAVE MORE REGULAR UPDATES. IT WAS NOT LOST ON ME IN COMMUNICATIONS WITH COUNCILMEMBERS ABOUT THE EXPERIENCE OF SOMEONE WHO IS MAYBE ON THE OUTSKIRTS OR INVOLVED IN A CRITICAL INCIDENT NEEDING INFORMATION AND HOW THEY CAN GET REGULAR UPDATES. SO I BROUGHT THAT BACK TO OUR PUBLIC INFORMATION OFFICER AND OUR TEAM AND WATCH COMMANDER TO TALK ABOUT HOW RECOGNIZING THAT IMPORTANT COMMUNITY NEED, JUST TO

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HAVE MORE INFORMATION. WE ARE ALWAYS WORKING MAKING SURE IT'S VERIFIED INFORMATION AND GOOD INFORMATION. BUT JUST TO LET THEM KNOW WE ARE STILL WORKING ON GETTING VERIFIED INFORMATION OR TO LET THEM KNOW THINGS THEY CAN DO TO STAY SAFE, AND GIVE REASSURANCE, THAT WAS HELPFUL FOR ME TO HEAR AND CERTAINLY SOMETHING WE WILL IMPLEMENT.

>> M. HUMBERT: THANK YOU, CHIEF. THANK YOU, ARLO.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER TREGUB, IT YOU HAVE QUESTIONS?

>> I. TREGUB: I DO. AND BEFORE I ASK MY QUESTIONS, I ALSO WANT TO ECHO WHAT OTHERS HAVE SAID. I APPRECIATE IT. I AND MY TEAM HAVE SPOKEN WITH THE CHIEF ON THIS MATTER AND JUST REALLY APPRECIATE YOUR CONTINUED ENGAGEMENT WITH COUNCIL AND THE COMMUNITY. I JUST WANT TO MAKE SURE THERE IS A COMMON UNDERSTANDING. SO CAN YOU JUST CONFIRM, IS IT TRUE, IF WE DO NOT TAKE ACTION, BERKELEY WILL BE THE ONLY JURISDICTION IN BOTH ALAMEDA COUNTY AND CONTRA COSTA TO BE IN A DIFFERENT, USING A DIFFERENT SECURITY PROTOCOL THAN OUR NEIGHBORING JURISDICTIONS?

>> THAT'S CORRECT.

>> I. TREGUB: OKAY. CAN YOU CONFIRM HOW THIS WORK AROUND IN SUPPLEMENTAL 2 IS IT SIMILAR TO OR DIFFERENT FROM WHAT THE CITY AND COUNTY OF SAN FRANCISCO IS DOING?

>> IT'S SIMILAR.

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>> I. TREGUB: OKAY. AND MY LAST QUESTION WITHOUT, AND YOU KNOW, CAN GO INTO WHATEVER LEVEL OF DETAIL FEELS APPROPRIATE, BUT BEYOND WHAT YOU HAVE ALREADY SAID ABOUT WHO WOULD HAVE ACCESS TO THIS DATA NOW THAT COULD HAVE THE POTENTIAL TO USE IT FOR NEFARIOUS MEANS, WHO ELSE, OR WHICH OTHER AGENCIES MAY POTENTIALLY HAVE ACCESS TO INFORMATION ON AN UNSECURED LINE?

>> YEAH, I THINK THE QUESTION IS, IF WE DON'T ENCRYPT WHO ELSE MIGHT BE LISTENING. ONE OF THE THINGS THAT STRUCK ME IS LAST WEEK WHEN WE WERE WORKING ON A POSSIBLE INFLUX OF NATIONAL GUARD PERSONNEL, AND ADDITIONAL IMMIGRATION AGENCIES, FEDERAL IMMIGRATION AGENCIES IN OUR CITY, THEY TOO WOULD HAVE ACCESS TO OUR SCANNER APP.

>> I. TREGUB: THANK YOU, NO FURTHER QUESTIONS.

>> MAYOR ISHII: THANK YOU. ANY OTHER COUNCILMEMBERS HAVE QUESTIONS? OKAY, I HAVE JUST TWO REAL QUICK QUESTIONS. I KNOW YOU SAID NEAR REAL-TIME, WERE SAYING MINUTES. DO YOU KNOW? OR YOU ARE JUST NOT SURE YET? I JUST WANT TO MAKE SURE I UNDERSTAND.

>> WE WILL HAVE TO BOUNCE BETWEEN THOSE TWO PRIORITIES. IT WILL BE UNDER 30 MINUTES.

>> MAYOR ISHII: UNDER 30 MINUTES. OKAY, THANK YOU, I APPRECIATE THAT. AND I THINK THAT MAYBE YOU MENTIONED ALSO INCREASING NIXLE ALERTS OR DIFFERENT TYPES OF NIXLE ALERTS. COULD YOU SPEAK TO

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THAT MORE?

>> RIGHT NOW WE USE NIXLE ALERTS, I THINK YOU HAVE SEEN MISSING PERSONS, A ROAD CLOSURE, AVOID AN AREA ALERTS. SO CERTAINLY, IT'S A BALANCE BETWEEN NOT OVER REPORTING ON A METHOD OF COMMUNICATION, BECAUSE WHEN IT'S AN EMERGENCY WE WANT PEOPLE TO KNOW IT'S SOMETHING IMPORTANT. IT'S NOT LOST ON ME THAT COMMUNICATING MORE ABOUT A SPECIFIC EVENT MIGHT BE HELPFUL. SO ONE OPTION WE PUT A NIXLE OUT AT THE START OF AN EVENT, THROUGH MEDIA CHANNELS OR PRESS OFFICER, IF YOU ARE INTERESTED IN KEEPING TRACK OF THIS EVENT, HERE IS THE PLACE TO GET INFORMATION, OR MAKE SURE YOU ARE FOLLOWING OUR INSTAGRAM. WHATEVER IT IS SO WE CAN COMMUNICATE THAT MORE REGULARLY. AND/OR BALANCING NOT AN OVERUSE OF NIXLE BUT KNOWING THAT'S A FIRST STEP TO GET COMMUNICATION WITH PEOPLE.

>> MAYOR ISHII: THAT'S GREAT. VERY HELPFUL. THANK YOU, BOTH. WE ARE GOING TO MOVE ON TO PUBLIC COMMENT. YOU WILL EACH HAVE ONE MINUTE. SORRY, I KNOW THAT WAS A LONG WAIT. I WARNED YOU. OKAY. THANK YOU VERY MUCH.

>> HELLO. I JUST WANTED TO SHARE A COUPLE THINGS ABOUT ENCRYPTION THAT CONCERNED ME ABOUT THIS. ENCRYPTION UNDERMINES COMMUNITY TRUST AND PUBLIC SAFETY. IT RESTRICTS OUR ABILITY TO HOLD AUTHORITIES ACCOUNTABLE. ESPECIALLY IN LIGHT OF PROMISES MADE AFTER THE MURDERS OF GEORGE FLOYD AND BREONNA TAYLOR. OPEN

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ACCESS TO POLICE ACTIVITY ALLOWS PUBLIC TO MAKE SURE THEY ARE SERVING COMMUNITY FAIRLY AND EFFECTIVELY. POLICE MISCONDUCT IS A PUBLIC HEALTH ISSUE, PARTICULARLY WHEN MANY VIOLENT ENCOUNTERS STEM FROM MENTAL HEALTH CALLS. I BELIEVE TRUE SAFETY COMES FROM COMMUNITY CARE AND COMMUNITY OBSERVATION IS A VITAL PART OF THAT CARE. ENCRYPTING BLOCKS JOURNALISTS FROM RECEIVING TIMELY INFORMATION ABOUT EMERGENCIES, SUCH AS SHOOTINGS, MENTAL HEALTH CRISES, AND PROTEST RESPONSE.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS.

>> YAAY!

>> THAT'S A GREAT QUESTION. YOU HAVE YIELDED MINUTES.

>> MAYOR ISHII: I DON'T SEE HIM BUT YOU WILL HAVE THREE MINUTES.

>> WITH ALL RESPECT I HAVE 35 YEARS OF TRYING TO HOLD THE BERKELEY POLICE ACCOUNTABLE. DO I GET ONE MINUTE FOR EVERY TEN YEARS? MY NAME IS ANDREA PRITCHETT; IN 1990 I STARTED BERKELEY COP WATCH WITH OTHERS. FOR 35 YEARS I WALKED THE STREETS OF THIS TOWN TRYING TO HOLD THESE POLICE ACCOUNTABLE. FOR 35 YEARS, HUNDREDS IF NOT THOUSANDS OF HOURS OF DIRECTLY MONITORING POLICE. BECAUSE YOU KNOW WHAT, HOMELESS PEOPLE IN THIS TOWN, PEOPLE WITH MENTAL HEALTH DISABILITIES, POLICE MISCONDUCT HAPPENS TO THEM ALL THE TIME. WE'VE GOT THE VIDEOS. WE ARE HAPPY TO SHOW THEM TO YOU IF GIVEN A FORUM. BUT UNDER THE PROPOSED SYSTEM THAT THE CHIEF HAS OFFERED, WE WILL MERELY BE STATISTICS.

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YEAH, WE LISTEN TO THE SCANNER, WE GO THERE, WE DOCUMENT. ASK TREGUB, ASK THE POLICE ACCOUNTABILITY BOARD WHO ISN'T HERE, FOR SOME UNKNOWN REASON, HOW MANY COMPLAINTS COME FROM US? BECAUSE WE SPEAK FOR THOSE WHO CAN'T SPEAK. WE SPEAK THAT IF TURN THIS SYSTEM INTO A WAS, INSTEAD OF AN, THAT ALL THAT WILL BE GONE. AND THE POLICE CAN CONTINUE. YOU GUYS HAVE A LITTLE BUBBLE YOU LIVE IN. I HOPE IT'S A GOOD ONE. BUT WHERE IS THE COMMUNITY INPUT? HOW IS IT THE CHIEF GETS TO PROPOSE LEGISLATION ON THE VERY DAY IT GETS VOTED ON? WHERE IS OUR CONSTITUENCY? WHERE IS OUR COMMUNITY? WHERE IS THE COMMUNITY OF PEOPLE WHO ARE DIRECTLY INFECTED BY THIS? THE TREND IN THIS TOWN IS TOWARDS SECRECY AND DIGITIZATION. YOU HAVE DRONES. YOU WANT ALL KINDS OF DIGITAL RESPONSES. YOU WANT TO CLOSE RANKS. HOW WILL YOU HOLD THEM ACCOUNTABLE? WE ARE THE ONLY REAL ACCOUNTABILITY IN THIS TOWN. IT IS OUR VIDEOS ON INSTAGRAM THAT LET PEOPLE KNOW WHAT IS REALLY GOING ON. AND IF YOU CONTINUE TO JUST FEED YOURSELVES ON THE PRE-DIGESTED SUMMARIES COMING FROM THE CHIEF ON THE SAME DAY YOU ARE TAKING A VOTE, YOU DO A GRAVE DISSERVICE. YES, BERKELEY WILL BE, IF WE CONTINUE TO HAVE UNENCRYPTED CHANNEL, YES WE WILL BE THE ONLY ONE AND IF EVERYONE IN THE COUNTY TURNS FASCIST AND COLLABORATES WITH ICE DOES THAT MEAN WE WILL DO IT TOO? THERE WAS ANOTHER TIME BERKELEY WAS THE ONLY ONE, BERKELEY IN 1973 WAS THE ONLY CITY IN AMERICA THAT HAD CIVILIAN OVERSIGHT. THAT WAS A

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TIME WHEN LEADERS LED, NOT FOLLOWED. THEY STOOD UP AND HAD A LITTLE COURAGE. WHAT WILL YOU DO FOR US? HOW WILL YOU ENSURE WE GET TO DIRECTLY OBSERVE POLICE? WE CAN'T WATCH THEM IF WE CAN'T FIND THEM. HOW WILL YOU HELP THAT PART OF THE COMMUNITY? THIS TALK OF COMMUNITY YOU HAVE? BEHIND CLOSED DOORS. BEHIND OFFICES, OR WAS THAT ALL HAPPENING IN THE CHIEF'S OFFICE, IS THAT THE COMMUNITY?

>> MAYOR ISHII: THANKS, ANDREA. [APPLAUSE] NEXT SPEAKER. COME MOVE UP CLOSER, YEAH. SO YOU CAN HEAD STRAIGHT TO THE NEXT SPEAKER. GO HEAD.

>> SO, OUT IN THE REAL WORLD, IT'S AS IF THE POLICE ARE NOT OPAQUE ENOUGH, ACCOUNTABLE ENOUGH, UNCOOPERATIVE ENOUGH ALREADY. THAT'S NOT EVEN ACCOUNTING FOR ALL THE EXEMPTIONS THEY ALREADY HAVE TO USE ENCRYPTION. AND A LOT OF PEOPLE ARE JUST WONDERING WHAT THE HELL YOU PEOPLE ARE THINKING.

>> MAYOR ISHII: OKAY, THANK YOU.

>> I'M GLEN TURNER FROM DISTRICT 5. I'M ACTUALLY SHOCKED THAT ALL THESE OTHER PLACES ARE GETTING ENCRYPTION AND IT'S ONLY BERKELEY THAT HASN'T JOINED THE CLUB. BECAUSE THIS, IF YOU LOOK AT THINGS, IF YOU LOOK AT SOME OF THE STATISTICS, EVERYTHING EXCEPT ARSON IS DOWN. SO WHERE IS ALL THIS PARANOIA COMING FROM? WE HAVE BEEN HYPED UP TO A VIGILANCE OF DANGER IS EVERYWHERE. BUT IT'S NOT, WHAT'S EVEN MORE CONCERNING IS PUBLIC RECORD ACTS

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ARE NOT BEING OBSERVED AND AVAILABLE. I WOULD LIKE TO SEE BODY CAMS ON ALL THESE POLICE, CONNECTED TO THESE REPORTS. I WANT TO SEE WHETHER THEY ARE SMOTHERING SOME PERSON WITH A MENTAL ILLNESS, PILING ON SOMEBODY. WE SHOULD BE TAKING CARE OF PEOPLE, NOT JUST SURVEILLING EVERYBODY CONSTANTLY. THIS HAS GOT TO STOP.

>> MAYOR ISHII: THANK YOU.

>> THANK YOU, GLEN.

>> HELLO, COUNCIL. MY NAME IS SHERRY, I'M SPEAKING AS A U.C. BERKELEY STUDENT, CONSTITUENT OF DISTRICT 8 AND COP WATCH BERKELEY. COMMUNITY'S ACCESS AND REFLECT NEGATIVELY ON TRANSPARENCY AND POLICING. THIS WILL PREVENT JOURNALISTS FROM REPORTING CRITICAL BREAKING NEWS AND PREVENT ORGANIZATIONS LIKE COP WATCH BERKELEY AND ANY COMMUNITY MEMBER FROM MONITORING PUBLIC SERVANTS SUCH AS THE POLICE. U.C. BERKELEY HAS A SYSTEM CALLED WARN ME AND IT'S UNDER REVIEW FOR ITS EFFICACY. THEY WILL ALWAYS BE SLOWER AND LESS EFFECTIVE. I URGE YOU ALL TO VOTE AGAINST.

>> GOOD EVENING MEMBERS OF THE CITY COUNCIL, AND MAYOR ISHII, I'M AUDREY, A U.C. STUDENT. I WANT TO TALK ABOUT WHY WE SHOULDN'T ENCRYPT. ALREADY THE POLICE HAS THE ABILITY TO ENCRYPT, CAN SEE IN THE WRITING ITSELF, SENSITIVE INFORMATION WILL CONTINUE TO BE PROTECTED. PALO ALTO POLICE DEPARTMENT INITIALLY ENCRYPTED BUT OPENED IT BACK UP IN 2022 AND THEY HAVE

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NOT ENCOUNTERED MAJOR PROBLEMS AS A RESULT OF THE DECISION. IN 2021 THE BERKELEY CITY COUNCIL MAJORLY VOTED TO UPHOLD FIRST AMENDMENT AND SPIRIT OF TRANSPARENCY. WHAT HAS TRULY CHANGED SINCE THEN? FOR MANY PEOPLE CONCERNS ABOUT OUR CONSTITUTIONAL RIGHTS AND GOVERNMENT SECRECY HAS ONLY INCREASED. NOW NOT THE TIME TO BREAK BERKELEY'S REPUTATION OF TRANSPARENCY. WE DON'T NEED TO ENCRYPT THE PUBLIC'S LAST ACCESS TO POLICE RADIOS, PLEASE DO NOT APPROVE.

>> MAYOR ISHII: THANK YOU.

>> I HAVE A MINUTE FROM PAUL BLAKE.

>> MAYOR ISHII: TWO MINUTES.

>> SO JUST DAYS, PLEASE COUNCIL, JUST DAYS AFTER I.C.E. WAS DEPLOYED YOU WILL CLOKE THE POLICE RADIO IN SECRECY. THIS IS THE EXACT OPPOSITE OF WHAT WE NEED. CAN I HAVE YOUR ATTENTION, PLEASE? EVERYBODY IS ON THEIR PHONES. COURAGE AND CREATIVITY. FOLLOWING AND SILENCING THE RADIO CHANNEL BECAUSE EVERYONE AROUND US IS DOING IT IS NOT THE RIGHT REASON TO DO IT. CAPITULATING TO THE DEMANDS OF JEN LOUIS IS NOT THE REASON TO DO IT. EVERYTHING THAT COMES BEFORE THIS COUNCIL THAT HAS TO DO WITH PUBLIC SAFETY, THAT JEN LOUIS MAY NOT BE IN AGREEMENT WITH, WHERE DOES IT GO? TO THE PUBLIC SAFETY POLICY COMMITTEE. EVERYTHING GOES THERE FIRST, HOW COME THIS DIDN'T GO THERE FIRST? THEY DIDN'T GET TO WEIGH IN. WHERE IS OUR POLICE

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ACCOUNTABILITY BOARD. WE VOTED, 85% OF US, WE WANT POLICE OVERSIGHT, WE WANT TRANSPARENCY, WE WANT ACCOUNTABILITY. THIS IS THE EXACT OPPOSITE OF WHAT WE WANT. WHERE IS THE POLICE ACCOUNTABILITY BOARD? THEY PUT OUT A PRESS RELEASE AND THEY ARE SAYING AT A MINIMUM SEND THIS TO THAT PUBLIC SAFETY COMMITTEE. ENGAGE IN TRUE COMMUNITY, DON'T JUST TALK TO WALK BIKE BERKELEY AND THE REPORTERS. WHAT ABOUT BERKELEY COP WATCH? WHAT ABOUT OTHER COMMUNITY ORGANIZATIONS, FRIENDS OF ADELINE, WHERE DO WE GO? CONSIDER THE HOMELESS, ALL THE PEOPLE SUPPORTING OUR MOST VULNERABLE AND MARGINALIZED COMMUNITY. HAVE YOU TALKED TO THE UNDOCUMENTED COMMUNITY? I DON'T THINK SO. SEND THIS TO THE PUBLIC SAFETY COMMITTEE, PLEASE. FOLLOW YOUR OWN FOOTSTEPS.

>> MAYOR ISHII: YOUR TIME IS UP.

>> I UNDERSTAND, THANK YOU. [APPLAUSE]

>> GOOD EVENING, COUNCILMEMBERS AND MADAM MAYOR. MY NAME IS TODD BAPTISTE; I HAVE COME TO YOU MANY TIMES BEFORE ON VARIOUS ITEMS INVOLVING PUBLIC SAFETY. I SERVE ON THE CITY DISASTER FIRE SAFETY COMMISSION AND WORK IN MEDICAL SERVICES IN THE BAY AREA. I'M HERE TO EXPRESS DEEP CONCERN ABOUT THE PROPOSAL. WE SHOULD BE FIGHTING FOR TRANSPARENCY AND ACCOUNTABILITY AND COMMUNITY CARE, NOT WHATEVER IS GOING ON HERE. TRANSPARENCY AND PUBLIC SAFETY COMMUNICATIONS IS A CORNERSTONE OF ACCOUNTABILITY AND COMMUNITY TRUST. THE SCANNER HAS LONG ALLOWED JOURNALISTS AND

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OTHERS TO STAY INFORMED DURING FIRES OR PROTESTS OR CITYWIDE EMERGENCY WHEN'S ACCURATE INFORMATION CAN LITERALLY SAVE LIVES. REMOVING THE SCANNER WOULD NOT MAKE US SAFER, IT WOULD MAKE US LESS INFORMED. OPEN ACCESS TO POLICE RADIO HAS BEEN HALLMARK FOR BERKELEY FOR DECADES. THERE ARE FAR BETTER SOLUTIONS.

>> MAYOR ISHII: THANK YOU.

>> I'LL SEND THE REST OF MY COMMENTS.

>> MAYOR ISHII: COME ON, FOLKS. I'M SORRY, WE HAVE TO KEEP MOVING. NEXT, PLEASE.

>> HI, HELLO. MY NAME IS [INDISCERNIBLE], I'M A U.C. BERKELEY STUDENT. I JUST WANTED TO BE QUICK. 30 MINUTES IS TOO LONG OF TIME FOR TOO MUCH HARM AND REST IN PEACE [INDISCERNIBLE]. THANK YOU.

>> MAYOR ISHII: THANK YOU. I DON'T KNOW HOW MUCH THERE WAS.

>> REMAINDER OF HIS 30 SECONDS.

>> 40 SECONDS.

>> MAYOR ISHII: ALL RIGHT. I DON'T THINK WE CAN DO 30 INCREMENTS, BUT I WILL KEEP TRACK, GO AHEAD.

>> I'M MONI LAW, I HAVE A MINUTE FROM ELIZABETH AND BRYCE, LOVELY YOUNG PEOPLE, THANK YOU VERY MUCH.

>> MAYOR ISHII: THREE MINUTES AND 40 SECONDS. GO HEAD.

>> MY NAME IS MONI LAW. I WAS HONORED TO BE APPOINTED BY MAYOR JESSE ARREGUIN ON THE FAIR AND IMPARTIAL POLICING GROUP. I'M

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GRATEFUL FOR SOME IN THIS ROOM WHO WORKED ON THAT ISSUE. ARE WE IN A POLICE STATE OR FOCUSING ON PUBLIC SAFETY? ARE WE INCORPORATING PUBLIC AIRWAVES AS THE PRIOR SPEAKER SAID THAT IMPORTANCE OR HAVING A SECRET SOCIETY WE ARE DEVELOPING? ARE WE THE ONLY CITY THAT HAD NO POLICE DOGS AND I KNOW YOU ARE READING YOUR PHONES, BUT IT YOU KNOW THERE ARE NO POLICE DOGS, THE ONLY CITY FOR A LONG TIME THAT DIDN'T HAVE HELICOPTERS. THE IDEA OF PUBLIC SAFETY IS NOT TO MAKE QUICK DECISIONS AS WE ARE DOING HERE TODAY. THIS IS HALF BAKED. THE PUBLIC ACCOUNTABILITY BOARD WHICH DID PASS BY 84% OF YOUR COMMUNITY VOTED TO HAVE A MEANINGFUL PROCESS IN THE POLICE ACCOUNTABILITY BOARD. I HAD TO FILE CHARGES AS A CITY EMPLOYEE, CITY RESIDENT, CAL GRADUATE AFTER BEING BASHED IN THE BACK BY A POLICE OFFICER. AND AFTER THAT CASE, ON BLACK LIVES MATTER DAY WHEN PEOPLE GOT GASSED AND PUNCHED AND A MINISTER GOT BASHED IN THE BACK AND ELDER GOT BASHED IN THE NECK, A PERSON GOT SHOT IN THE LEG, WE FILED A FEDERAL LAWSUIT. LAW VERSUS CITY OF BERKELEY, ENDED UP BEING THE NAMED PLAINTIFF BY CHANCE. AS A RESULT OF THAT, THERE'S SUPPOSED TO BE BODY WORN CAMERAS. THIS AGAIN IS NOT THE RIGHT WAY TO GO IN DEVELOPING A POLICY. IT WE LOOK AT, AS THE PRIOR SPEAKER SAID, OTHER CITIES. DID YOU AS A BODY, AS FINAL DECISION MAKER IN A BIG DECISION TAKE TIME TO SPEAK TO PRIMARY STAKEHOLDERS? THAT'S A GENERAL PROCESS, WHEN CREATING POLICY AND NEW LAWS AND

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NEW REGULATIONS. THIS IS A PROBLEM MORE THAN A SOLUTION. YOU SHOULD HAVE TAKEN ATTENTION TO THE BERKELEY, THAT WAS THE POLICE ACCOUNTABILITY BOARD, I READ THE PRESS RELEASE AND THE PLEA FOR SANITY AND REVIEW. AND LOOKING AT THIS OPERATIONALLY, IT IS NOT THE BEST COURSE OF ACTION. IN FACT, IT'S A DANGEROUS ONE. WE WILL HAVE LESS TRANSPARENCY, LESS ACCOUNTABILITY, MORE RISK OF THIS CITY, WHICH IS GOING TO BE ON FIRE, YOU ALL KNOW WE ARE A TARGET POINT FOR CERTAIN PEOPLE, WHITE SUPREMACIST, WHO THE FBI SAID IS THE NUMBER ONE RISK TO PUBLIC HARM. NOT OTHERS, BUT WHITE NATIONALISTS ARE THE NUMBER ONE PUBLIC SAFETY RISK TO THIS COUNTRY. PEOPLE OF COLOR ARE AT RISK, IMMIGRANTS ARE AT RISK AND WE HAVE TO DO MORE FOR MORE TRANSPARENCY, NOT LESS. SO I PLEAD, I BEG OF YOU, I IMPLORE YOU, I URGE YOU TO PUT THIS DECISION AFTER FULL REVIEW. THANK YOU.

>> MAYOR ISHII: THANKS, MONI. [APPLAUSE]

>> IT SEEMS WE SHOULD BE ADVANCED ENOUGH TO EXCLUDE PRIVATE INFORMATION; I UNDERSTOOD THOSE ISSUES THAT THE CHIEF PRESENTED. AND THIS IS A DIFFICULT TIME. AND SO, I WAS THINKING, ARE WE, BY NOT ENCRYPTING ARE WE GIVING MORE INFORMATION TO I.C.E. AND FEDERAL AGENCIES, OR IS THAT ACTUALLY THE LAST SPEAKER SPEAKING? DO WE NEED THE INFORMATION AS A COMMUNITY BECAUSE WE ARE IN SUCH AN ODD TIME. SO I DO THINK THIS MERITS FURTHER DISCUSSION INTO THESE ISSUES. FURTHER DEEPER REVIEW OF THESE ISSUES BEFORE ITS

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VOTED ON. IT'S VERY DIFFICULT TO ACTUALLY FOR ME TO KNOW WHERE I LAND BECAUSE OF WHAT YOU JUST SAID, THIS IS AN EXTREMELY DIFFICULT TIME AND THERE SHOULD BE A WAY TO TAKE OUT THE PRIVATE INFORMATION. THANK YOU.

>> MAYOR ISHII: THANK YOU. OTHER PUBLIC COMMENT IN PERSON? OKAY, LET'S MOVE ONLINE PLEASE.

>> CITY CLERK: SO NOW THE TIME. IF YOU ARE ON ZOOM, WE ARE DOING PUBLIC COMMENT ON ITEM 18 REGARDING ENCRYPTION OF BERKELEY POLICE DEPARTMENT PRIMARY RADIO CHANNEL. SO PLEASE RAISE YOUR HAND IF YOU WOULD LIKE TO SPEAK. WE CURRENTLY HAVE 13 RAISED HANDS. FIRST IS RICKY.

>> YEAH, HI, THANKS FOR CALLING ON ME. I FEEL THIS MATTER NEEDS MORE TIME AND SHOULD NOT BE VOTED ON TONIGHT. IT DOES NOT MAKE SENSE TO ME TO COUNT ON THE POLICE DEPARTMENT ITSELF TO ENSURE YOU, THE CITY COUNCIL AND THE MAYOR, THAT THEY HAVE EXHAUSTED ALL ALTERNATIVES. WHY SHOULD WE TRUST THAT ASSESSMENT? THE CITY NEEDS OUTSIDE ASSESSMENT. AND THE POLICE ACCOUNTABILITY BOARD SHOULD BE INVOLVED. AND OTHER GROUPS LIKE COP WATCH AND OTHER COMMUNITY GROUPS, ELANA GAVE A GREAT LIST. I WAS A WITNESS TO INCREDIBLE POLICE BRUTALITY AT 8TH AND HARRISON AGAINST AN UNHOUSED MAN. AFTER FIVE MINUTES HE COULD NO LONGER WALK, THEY HAD TO CARRY HIM AND SHOVE HIM HEADFIRST INTO THE BACK SEAT OF A POLICE CAR. I HAD MY VIDEO CAMERA, SUBMITTED IT AND FILED A

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COMPLAINT. WE HAVE TO BE ABLE TO KEEP OUR EYES ON WHAT THE BERKELEY POLICE DO.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS NATHAN MIZELL.

>> MAYOR ISHII: SORRY, MARK, I FORGOT TO IS, HOW MANY COMMENTS ARE THERE?

>> CITY CLERK: 14.

>> MAYOR ISHII: 14 OKAY.

>> THANK YOU, MAYOR, AND COUNCIL. THIS IS NATHAN MIZELL. AS YOU KNOW I WAS A P.A.B. MEMBER, MAYOR'S TASK FORCE, I WAS THE MEMBER OF THE REIMAGINING POLICE SAFETY TASK FORCE. THIS ISN'T ABOUT SAFETY, YOU KNOW THIS. THE P.A.B. HASN'T SEEN THIS PROPOSAL YET SOMEHOW IT WILL BECOME FINALIZED POLICY. THIS IS A HUGE POLICY CHANGE AND YOU HAVE COMPLETELY DISCOUNTED THE POLICE ACCOUNTABILITY BOARD, MADE UP OF MEMBERS YOU CHOSE AND AFFIRMED. WE HAVE GONE BACK ON SO MANY COMMITMENTS WE MADE IN 2020 AND 2021. GO AHEAD AND READ THE OP-ED, WHILE ARE ON YOUR PHONE. THIS WILL LEAD TO MORE WORKLOAD, NOT LESS. THERE WILL BE MORE PUBLIC RECORDS WITHS, PROBABLY FROM ME. HOPEFULLY CAN COMPLY WITH STATE LAW AND NOT WAIT HUNDREDS OF DAYS.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: UP NEXT IS DANIEL BROWNSON.

>> YEAH, I ALSO JOIN THE CHORUS OF PEOPLE ASKING YOU NOT TO

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APPROVE THIS ENCRYPTION. ESPECIALLY AS HOW TEXT GATE IS STILL UNRESOLVED. AND WE ARE TALKING ABOUT GIVING BERKELEY POLICE ANOTHER MEANS OF COMMUNICATION THAT THEY CAN HOLD CONVERSATIONS THAT THEY KNOW WE WOULDN'T WANT THEM TO BE HAVING ON. BECAUSE OF THE COMMENTS THEY MAY BE MAKING ABOUT OUR COMMUNITY MEMBERS. IN MY MIND THIS MAKES US MORE VULNERABLE, NOT LESS, TO I. C.E. AND OTHER FASCIST BODIES GETTING A HOLD OF OUR COMMUNITY MEMBERS' INFORMATION. BECAUSE DUE TO THE LACK OF TRANSPARENCY, THERE'S LITTLE TO STOP BERKELEY POLICE FROM INVITING THEM IN.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: THANK YOU. NEXT IS DAVID SHERE.

>> HI. I WANT TO START BY SAYING I RESPECT WHAT CHIEF LOUIS AND THE B.P.D. ARE TRYING TO DO TONIGHT. MY JOB AT WORK IS ALL ABOUT PROTECTING PERSONAL INFORMATION AND AVOIDING THE HARM THAT COULD COME FROM UNWARRANTED DISCLOSURE, SO I GET IT. I HAVE TO SAY THIS DOES FEEL RUSHED. AND I THINK THAT WE SHOULD JUST HIT THE BRAKES ON IT AND WE SHOULD SEND IT TO THE RELEVANT POLICY COMMITTEE. I'M NOT SAYING NEVER. BUT WE SHOULD TAKE THE TIME TO DEVELOP SOLUTIONS TO THE ISSUES OF PUBLIC OVERSIGHT THAT A LOT OF FOLKS HAVE BROUGHT UP TONIGHT. WE CAN'T FIND THOSE SOLUTIONS IF WE DON'T TAKE THE TIME TO LOOK AT THEM. THAT SAID, I APPRECIATE WHAT B.P.D. IS TRYING TO DO WITH THE NEAR REAL-TIME LOG AND TRANSPARENCY HUB. THAT'S GOOD. IT'S NOT GOOD ENOUGH. THE

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TRANSPARENCY HUB IS KIND OF USEFUL. BUT THERE ARE HUGE GAPS.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: THANK YOU. NEXT IS MARC HEDLUND.

>> I'M A DISTRICT 8 RESIDENT. I WANT TO SPEAK BRIEFLY AGAINST ENCRYPTION. I'M PART OF WALK BIKE BERKELEY AND PART OF THE GROUP THAT WORKED WITH EMILY RAGUSO AND OTHER JOURNALISTS TO MONITOR TRAFFIC AND TRY TO GET BETTER REPORTING OUT OF IT. YOU COULD SEE THE QUALITY OF EMILY'S WORK SHOWS SOME OF THE BENEFITS THAT HAVE COME FROM THAT. I KNOW SHE THINKS IT'S IMPORTANT AND AS A RESULT I DO TOO. I WOULD ALSO SAY TO CHIEF LOUIS, FOR THE CASE OF JUAN KONG KILLED ON SAN PABLO ON HIS BIKE, I CALLED AGAIN AND AGAIN AND ASKED FOR INFORMATION ABOUT THAT CASE AND NEVER GOT A CALL BACK. I THINK IF POLICE ARE THE ONES METERING OUT THIS INFORMATION THEY NEED TO COMMIT TO ACTUALLY ENGAGING WITH THE PUBLIC AND RESPONDING TO QUERIES FROM THE PUBLIC. THANK YOU SO MUCH. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS BEN GERHARDSTEIN.

>> CAN YOU HEAR ME NOW?

>> CITY CLERK: YES.

>> SORRY ABOUT THAT. HI COUNCIL. BEN GERHARDSTEIN. B.P.D.'S SCANNER TRANSMISSIONS HAVE BEEN IMPORTANT IN INFORMING ADVOCACY EFFORTS FOR STREET SAFETY THROUGHOUT BERKELEY. THE PUBLIC

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SCANNER GAINS MORE DETAILS THAN WOULD BE AVAILABLE OTHERWISE. WITH THE ASSISTANCE OF LOCAL JOURNALISTS WE HAVE BEEN ABLE TO INCREASE AWARENESS TO THE BROADER COMMUNITY. WE APPRECIATE B.P.D.'S INCREASED CALL TO SERVICE LOG, BUT IT DOESN'T FULFILL OUR NEEDS ENTIRELY, AS YOU HAVE HEARD FROM OTHERS, INFORMATION ABOUT TRAFFIC COLLISIONS THAT HAS HELPED US IN THE PAST INCLUDES THINGS LIKE THE PARTIES INVOLVED. RESPONSIBLE PARTY. WE LOOK FORWARD TO CONTINUED DIALOGUE WITH B.P.D. ON THIS ISSUE AND HOPE WE CAN MAINTAIN SOME OF THAT INFORMATION IN THE LOG OR OTHER FORMS TO HELP US WITH THE ADVOCACY EFFORTS.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS JORDAN.

>> HI COUNCILMEMBERS. I AM SPEAKING TODAY IN STRONG OPPOSITION TO BPD'S PROPOSAL TO ENCRYPT THE SCANNERS. THERE ARE A MYRIAD OF REASONS THAT HAVE BEEN EXPLAINED BY MANY AS TO WHY WE NEED TO KEEP THESE SCANNERS UNENCRYPTED FROM DISASTER PREPAREDNESS TO POLICE ACCOUNTABILITY. I WOULD LIKE TO SPEAK TO ONE OF THE POINTS BY B.P.D. THEY ARE SOMEHOW PROTECTING THE PRIVACY OF VULNERABLE INDIVIDUALS. I DON'T KNOW IF ANY OF YOU HAVE SPENT TIME LISTENING TO THE SCANNER, I HAVE BEEN LISTENING FOR YEARS, I HAVE NEVER HEARD INFORMATION THAT IS COMPROMISING OF A VULNERABLE INFORMATION, SO I DON'T BUY THIS LINE OF LOGIC. WHEN YOU HAVE SOMEONE LIKE NATHAN MIZELL WHO WAS THE CHAIR OF THE

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IMAGINING PUBLIC SAFETY TASK FORCE, SAYING WE AREN'T GETTING TIMELY RESPONSES TO OUR P.R.A.'S THIS TELLS THE DEPARTMENT HAS A PATTERN OF LACK OF ACCOUNTABILITY AND LACK OF TRANSPARENCY AND THIS ENCRYPTION IS JUST PART OF THAT PATTERN. THANK.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, NEXT IS AVI SIMON.

>> HI, I WOULD LIKE TO SPEAK IN OPPOSITION TO THIS MOVE TO ENCRYPTED SCANNER. I HAVE BEEN A MEMBER OF BERKELEY COP WATCH SINCE 2021. IN THAT TIME WE HAVE WORKED WITH SCORES OF MEMBERS OF THE COMMUNITY FROM UNDERGRADS AT US BERKELEY TO EVEN BERKELEY HIGH SCHOOL STUDENT AND SO MANY OTHERS TO TEACH THEM ABOUT POLICE AND MONITOR POLICE, AND PUSH BACK AGAINST THE CONSTANT TIDE OF SECRECY COMING FROM ALL LAW ENFORCEMENT AGENCIES PERIOD. THE SCANNER IS AN ESSENTIAL PART THIS WORK. WE REALLY HAVE TO APPEAL TO YOU, THE CIVILIAN OVERSIGHT OF OUR CITY, OUR VOICE, AND SAY PLEASE, PLEASE, KEEP THIS CRITICAL RESOURCE AVAILABLE TO US. YOU KNOW, THE COPS ARE NEVER GOING TO AGREE THIS IS ESSENTIAL.

>> MAYOR ISHII: THANKS, AVI FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS PAOLA LAVERDE.

>> THANK YOU, DISTRICT 5. THIS IS A VERY TRUMPIAN MOVE. I SPENT A LOT OF TIME IN MY CAREER AS A JOURNALIST LISTENING TO THE SCANNER AND I LISTENED TO THE SCANNER IN BERKELEY QUITE OFTEN.

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THIS IS A WAY TO SILENCE THE VOICES. THIS IS A WAY TO DISABLE THE COMMUNITY'S ABILITY TO MONITOR THE POLICE. THE CHIEF BLAMED TWO ISSUES, I GUESS TWO WEEKS AGO WE HAD SIX ROBBERIES IN ONE HOUR, ONE BY CAMPUS AND ONE ON SHATTUCK ON UNIVERSITY. I THINK IT'S NOT THAT THEY WERE LISTENING TO THE SCANNERS. IT'S PROBABLY BECAUSE WE HAVE SUCH A MAN SHORTAGE OR PERSONNEL SHORTAGE, THAT'S THE PROBLEM WE REALLY HAVE. THIS IS TRYING TO COVER THAT PROBLEM WITH HIDING THE INFORMATION. THERE'S NOT A LOT OF INFORMATION THAT GOES OUT THERE. I THINK IT'S VERY TRUMPIAN, TO ALL THE CITY COUNCIL MEMBERS WHO PLAN TO BE PROGRESSIVE AND YOU ARE VOTING ON THIS --

>> MAYOR ISHII: THANK YOU, PAOLA.

>> CITY CLERK: NEXT IS DARRELL OWENS.

>> HELLO, COUNCIL. I WOULD LIKE TO PUT THINGS IN PERSPECTIVE, HONESTLY. BERKELEY POLICE, COMPARED TO OAKLAND AND OTHER JURISDICTIONS GENERALLY DO A PRETTY GOOD JOB WHEN IT COMES TO CASE CLOSURES, RELATIVELY. THEY ARE GENERALLY PRETTY RESPONSIVE WHEN YOU CALL THEM, ESPECIALLY COMPARED TO OTHER JURISDICTIONS LIKE OAKLAND. SO I'M NOT ENTIRELY SURE TO BLAME THE RECENT ROBBERIES ON THE LACK OF ENCRYPTION DOESN'T MAKE A LOT OF SENSE. I WANT TO SUPPORT THE POLICE DOING A GOOD JOB AT CASE CLOSURES, BUT THE SCANNER IS ALLOWS FOR SO MANY PEOPLE TO BE INVOLVED IN OUR DEMOCRACY. THERE'S SO MANY HIT AND RUNS, INJURIES, FIRES,

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DEATHS I WOULDN'T HAVE KNOWN ABOUT BECAUSE WE HAD THE SCANNER. THERE'S NO PUBLIC INFORMATION OUTLET THAT IS GOOD AT TELLING PEOPLE WHAT IS GOING ON IN THEIR CITY, ABSENT THE SCANNER. NO POLICE DEPARTMENT ANYWHERE IS GOOD AT TELLING PEOPLE THIS, THE SCANNER IS THE BEST YOU HAVE. A LOT OF POLICE ARE ENCRYPTING THEIR SCANNERS; THERE'S NOT AN IOTA OF EVIDENCE WHY THIS IS THE CASE.

>> MAYOR ISHII: THANK, DARRELL, YOUR TIME IS UP.

>> CITY CLERK: NEXT IS FRANK.

>> I WILL BE REPEATING A LOT OF WHAT EVERYONE HAS SAID, NOT A SINGLE PERSON HAS SPOKEN IN SUPPORT, BESIDES THE POLICE THEMSELVES. NIXLE ALERTS ARE NOT AN EQUIVALENT TO HAVING A TRANSPARENT PUBLIC SCANNER. NIXLE ARE WRITTEN BY THE POLICE. I'M SORRY, I'M LIKE LOSING THAT WE ARE DOING THIS AGAIN AND AGAIN AND AGAIN. YOU ARE CONSTANTLY JUST DOING WHATEVER THE POLICE ASK OF YOU AND IGNORE WHAT THE POLICE ACCOUNTABILITY BOARD RECOMMENDS TO YOU AND THE PUBLIC RECOMMENDS TO YOU. THIS POLICY, I ONLY LEARNED THIS VOTE IS HAPPENING 20 MINUTES AGO. I KNOW I'M NOT THE ONLY PERSON IN THE CITY THAT WOULD LIKE TO HAVE MORE TIME SPENT DISCUSSING THIS POLICY AND REVIEWING THIS POLICY BEFORE IT JUST GOES TO A VOTE. IF YOU ARE SAYING YOUR STAFF IS TOO CONSTRAINED TO DEAL WITH HAVING A PUBLIC SCANNER THAT IS ILLOGICAL, BECAUSE YOU ARE ADDING MORE WORK THEY WILL HAVE TO DO

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WITH THE PUBLIC RECORDS REQUESTS THAT WILL COME IN.

>> MAYOR ISHII: THANK YOU, YOUR TIME IS UP.

>> CITY CLERK: NEXT IS NEIL EGBERT.

>> HI, NEARLY EVERY CITY AND LAW ENFORCEMENT HAS MOVED TO SECURED ENCRYPTED, THIS IS NOW THE STANDARD. THE REASONS ARE CLEAR, TO PROTECT SENSITIVE INFORMATION, SAFEGUARD WITNESSES AND VICTIM AND ENSURE SAFETY. VICTIMS OF DOMESTIC VIOLENCE, SEXUAL ASSAULT OR OTHER CRIMES HAVE NO IDEAS THAT THEIR NAMES, ADDRESSES, INJURIES OR ADDRESSES COULD BE BROADCAST OVER THE AIR. THIS ISN'T JUST ABOUT PRIVACY; IT'S ABOUT THEIR SAFETY AND TRUST IN LAW ENFORCEMENT. OUR OFFICERS ALSO FACE REAL IMMEDIATE DANGER, SUSPECTS CAN AND HAVE LISTENED TO OPEN RADIO CHANNELS TO GAIN TACTICAL ADVANTAGE, EVADE ARREST OR TARGET OFFICERS.

>> MAYOR ISHII: THANK YOU, NEIL, YOUR TIME IS UP. THANKS.

>> CITY CLERK: NEXT IS SAM SPEELMAN.

>> I'VE BEEN A BERKELEY POLICE OFFICER FOR 22 YEARS; I WANT TO SPEAK ON BEHALF OF THOSE WHO SHARE PRIVATE INFORMATION WITH POLICE. WHEN SOMEONE CALLS 9-1-1 THEY SHARE PRIVATE INFORMATION, SOMETIMES WHAT HAPPENED. THIS INFORMATION IS VERY SENSITIVE AND IMPORTANT FOR THEIR SAFETY. BUT MOST OF THIS PRIVATE INFORMATION IS BROADCAST LIVE OVER OPEN POLICE RADIOS WHERE ANYONE NEARBY WITH A SCANNER APP, LIKE AN ABUSER OR CURIOUS NEIGHBOR CAN HEAR IT. THIS PUTS PEOPLE AT MORE RISK. ENCRYPTION ISN'T ABOUT HIDING

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THINGS FROM THE PUBLIC,. VICTIMS NEED TO KNOW THEIR PRIVATE DETAILS WON'T BE BROADCAST OR LISTENED BY SOMEBODY WHO WANTS TO HURT THEM. MORE AGENCIES ARE USING ENCRYPTION TO KEEP THE PUBLIC SAFE, BERKELEY SHOULD DO THE SAME.

>> MAYOR ISHII: THANKS, SAM. SORRY, YOUR TIME IS UP.

>> CITY CLERK: OKAY. NEXT IS DORA THE EXPLORAH. GO AHEAD.

>> HEY, MADAM MAYOR AND COUNCIL, MY NAME IS TODD ANDREW, I MAY USE YOUR FIRST NAME BECAUSE I KNOW PERSONALLY. THE TIMING ON THIS IS BAD, EVEN GIVEN THE NEED FOR VICTIM AND CALLER AND POLICE OFFICER, PUBLIC SAFETY OFFICER SAFETY, ISN'T THERE A BETTER WAY TO HANDLE THIS? ISN'T THERE A TECHNOLOGICAL OPERATIONAL WAY TO HANDLE THIS THAT DOESN'T PUT THE PUBLIC IN THE DARK? AND YES THERE IS DELAY, BUT I'M TALKING ABOUT REAL-TIME. WE HAVE ICE POTENTIALLY INVADING SOON, NATIONAL GUARD, WHO KNOWS. I'M A BIG FAN OF THE B.P.D. AND YOU ALL KNOW THAT I AM. USE OF FORCE RECORD IS GOOD, DISCREPANCIES ARE DECENT, CAN HE WE PLEASE COME UP WITH ANOTHER SOLUTION OTHER THAN FULL ENCRYPTION. THANKS SO MUCH.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS CALLER PHONE NUMBER ENDING IN 453. YOU SHOULD BE ABLE TO UNMUTE. *6.

>> HI, [INDISCERNIBLE] WITH THE POLICE ACCOUNTABILITY BOARD. I DIDN'T HEAR ABOUT THIS UNTIL AFTER IT WAS PUT ON THE CONSENT

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CALENDAR. WE HAVEN'T BEEN ABLE TO CONSULT, THEY WERE STILL DECIDING WHETHER TO SWITCH TO ENCRYPTED RADIOS. WE WORK WITH THE BOARD BEFORE MAKING RECOMMENDATION TO COUNCIL THAT IMPACT POLICE ACCOUNTABILITY LIKE THIS ONE. RIGHT NOW THE DEPARTMENT ISN'T REQUIRED TO INFORM US OF A POLICY CHANGE UNTIL IT'S HAPPENED. IT SHOULD NOT HAPPEN HERE BUT HAPPEN FOR EXAMPLE WITH THE SURVEILLANCE ITEM A FEW MONTHS AGO. IF WE WAIT UNTIL AFTER A POLICY APPROVED, IT'S IMPOSSIBLE TO STOP A PROCESS THAT HAS ALREADY STARTED, ESPECIALLY HERE. WE ASK FOR MORE INFORMATION ON THIS PROPOSED POLICY CHANGE, THANK YOU.

>> MAYOR ISHII: THANKS, JOSH.

>> CITY CLERK: NEXT IS THEO GORDON.

>> HELLO, COUNCILMEMBERS. I JUST WANTED TO REITERATE THE COMMENTS FROM DAVID SHERE, AND OWENS AND IDEA OF USING NIXLE ALERTS TO REPLACE SOME OF THE WORK THIS THE SCANNER DOES. NIXLE IS TO BROADCAST EMERGENCIES FOR THOSE TUNED OUT. IT'S NOT FOR OVERSIGHT. IF WE GO FORWARD WE SHOULD FIND A WAY TO RETAIN ALL CALL RECORDINGS AND ALLOW CITIZEN GROUPS TO REVIEW INDIVIDUAL RECORDINGS AND MEMBERS OF THE PUBLIC SHOULD HAVE ACCESS TO REDACTED RECORDINGS UPON REQUEST. THANK YOU.

>> CITY CLERK: THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS KELLY HAMMARGREN.

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>> THANK YOU. I WAS NOT EXPECTING TO COMMENT BUT THIS IS MY COMMENT. I'M HEARING PEOPLE ASKING FOR MORE TIME AND REVIEW, WHO I WOULD HAVE EXPECTED TO BE FULLY SUPPORTIVE OF ENCRYPTION. AND THAT TELLS ME THAT YOU REALLY SHOULDN'T BE PASSING THIS TONIGHT. YOU REALLY SHOULD TAKE TIME AND PUT IT THROUGH A COMMITTEE WHICH WOULD BE THE NORMAL PROCESS FOR THIS COUNCIL. TO PUT IT THROUGH THE PUBLIC SAFETY COMMITTEE, OF THE COUNCIL AND TO PUT IT TO THE POLICE ACCOUNTABILITY BOARD, I DON'T SEE IF YOU VOTE FOR THIS TONIGHT YOU WILL EVER GO BACKWARDS AND DECIDE THAT IT WAS NOT THE BEST DECISION, SO I DO SUPPORT EVERYONE ELSE WHO HAS ASKED YOU TO GIVE THIS MORE TIME.

>> MAYOR ISHII: THANKS, KELLY, YOUR TIME IS UP.

>> CITY CLERK: OKAY, THAT WAS THE LAST SPEAKER. WE HAD ONE MORE HAND POP UP. ANDRES BEJALANO.

>> I'M CURRENTLY A DETECTIVE SERGEANT AT THE BERKELEY POLICE DEPARTMENT. I'M SPEAKING ON BEHALF OF THE VICTIMS AND WIT PSS I WORK WITH ON A DAILY BASIS. SOME HAVE SUGGESTED DELAY RADIO BROADCAST TO BALANCE TRANSPARENCY. THAT IS NOT ENOUGH. EVEN DELAYED INFORMATION EXPOSES RISK. SUSPECTS CAN STILL TRACK LOCATIONS, PIECE TOGETHER DETAILS AND ACT UPON THEM. VICTIMS OF DOMESTIC VIOLENCE, SEXUAL ASSAULT OR OTHER VIOLENT CRIMES TRUST US TO KEEP THEIR INFORMATION PRIVATE. A DELAY DOESN'T PROTECT, IT ONLY POSTPONES AND CAN PREVENT THEM FROM SEEKING HELP.

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OFFICERS FACE THE SAME THREATS. I URGE THE COUNCIL TO PROTECT OUR COMMUNITY, VICTIMS AND OFFICERS BY SUPPORTING ENCRYPTION.

>> CITY CLERK: WE HAVE ONE MORE, FOR POLICE RADIO ENCRYPTION. WE HAVE GRAHAM'S IPHONE.

>> GOOD EVENING, MAYOR, AND COUNCILMEMBERS. I'M AN OFFICER WITH THE BERKELEY POLICE DEPARTMENT; I'M HERE TO SPEAKING ABOUT WHY ENCRYPTING IS ESSENTIAL FOR OFFICER SAFETY. EVERY DAY WE RELY ON RADIOS TO SHARE CRITICAL INFORMATION AND COORDINATE EFFECTIVELY. RIGHT NOW THEY ALLOW ANYONE INCLUDING CRIMINALS TO LISTEN IN PUTTING OFFICERS AT RISK. ENCRYPTION LOUS US TO COMMUNICATE SECURELY AND TACTICALLY, KEEPING OFFICERS SAFE WITHOUT COMPROMISING OUR MISSION. TRANSPARENCY SHOULD COME THROUGH REPORTS, AND COMMUNITY UPDATES, NOT BY BROADCASTING SENSITIVE INFORMATION IN REAL-TIME. MANY HAVE ENCRYPTION. BERKELEY SHOULD ACT NOW TO PROTECT THE COMMUNITY. THANK YOU.

>> CITY CLERK: THAT'S IT.

>> MAYOR ISHII: OKAY, THANK YOU. STARTING WITH, WE ARE GOING TO GO TO COUNCIL COMMENTS STARTING WITH COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU. CHIEF LOUIS, EARLIER, DURING THE PRESENTATION YOU MENTIONED THERE ARE STATE AND FEDERAL REQUIREMENTS. I WAS WONDERING IF YOU COULD ELABORATE ON WHAT THOSE ARE?

>> YEAH, SURE. THERE'S THE CGIS, THE FEDERAL AGENCY, FEDERAL

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PROTECTION OF CONFIDENTIAL CRIMINAL JUSTICE INFORMATION, THE RECORD. AND PI AND I, PERSONALLY IDENTIFIABLE INFORMATION, STATE MANDATE IS THAT YOU DON'T BROADCAST THAT KIND OF INFORMATION ON THE AIR.

>> T. TAPLIN: THANK YOU. I DID WANT TO ADDRESS A FEW QUESTIONS THAT CAME UP. THIS IS JUST PURELY A CLERICAL CLARIFICATION. MR. CLERK, COULD YOU CONFIRM WHEN AGENDA ITEMS ARE PUBLISHED?

>> CITY CLERK: AGENDA ITEMS ARE PUBLISHED 12 DAYS BEFORE THE MEETING.

>> T. TAPLIN: THANK YOU VERY MUCH. AND PEOPLE WERE ASKING WHY THIS CAME TO COUNCIL AS OPPOSED TO GOING TO COMMITTEE? THIS ITEM CAME FROM THE CITY MANAGER'S OFFICE AND AS A CHARTER OFFICER, THEY ARE ALLOWED TO PLACE THINGS ON THE AGENDA. I WANTED TO CLARIFY THAT. I DO WANT TO APPRECIATE THE WORK THAT YOU AND YOUR TEAM, CHIEF LOUIS, AS WELL AS MY COLLEAGUES ADDRESS SOME OF THE CONCERNS WE HEARD TONIGHT. FOR THE PURPOSE OF DISCUSSION, I WILL MOVE ADOPTION OF THE SUPPLEMENTAL.

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. THIS IS PROBABLY CLEAR; I SUPPORT THIS ITEM. THE PROPOSAL WITH THE SUPPLEMENTAL MATERIAL PROVIDES A MEANS TO KEEP THE PRESS IN THE LOOP, MAYBE NOT PERFECTLY. BUT WITHOUT GIVING POLICE BAND USING BAD GUYS AND

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GALS, THE NEWS THAT BPD IS ON THE WAY, GIVING THEM TIME TO FLEE OR HEAVEN FORBID, SET UP AN AMBUSH. IN COMPELLING TO ME AND I THINK I HAVE SAID THIS BEFORE, IF CITIES AROUND US ARE ENCRYPTED, AND WE AREN'T, WE BECOME A TARGET FOR THESE CRIMINAL CREWS. WE KNOW THEY ARE OUT THERE AND VICTIMIZING OUR BUSINESSES AND RESIDENTS. I WILL BE SUPPORTING THIS ITEM. THANK YOU.

>> MAYOR ISHII: THANK YOU, ARE THERE COUNCIL COMMENTS? COUNCILMEMBER O'KEEFE? GO AHEAD. COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU SO MUCH. OKAY, I WANT TO CONFIRM THAT YOU CAN HEAR ME?

>> MAYOR ISHII: YES, WE CAN HEAR YOU.

>> I. TREGUB: THANK YOU. THANK YOU, MADAM MAYOR. I WOULD LIKE TO APPRECIATE MEMBERS OF THE COMMUNITY FOR SPEAKING OUT AND YOU KNOW, YOU WANT TO SAY OFF THE JUMP, I DO NOT TAKE YOUR CONCERNS LIGHTLY OR HALF-HEARTEDLY. THIS IS WHY OUR OFFICE AND SEVERAL OTHER COUNCIL OFFICES AT LEAST HAVE BEEN IN CONVERSATION WITH THE CHIEF. AND I FELT MUCH MORE COMFORTABLE FOLLOWING THOSE CONVERSATIONS WHEN SUPPLEMENTAL 2 CAME UP. OUR QUESTION, WAS THERE SOMETHING THAT COULD BE A MIDDLE GROUND HERE? IT SOUNDS LIKE WHAT IS BEING PROPOSED IS EQUIVALENT TO THE CITY AND COUNTY OF SAN FRANCISCO, WHICH IS OUR CLOSEST NEIGHBOR THAT LOUS FOR A MIDDLE GROUND THAT COULD WORK. I DO NOT TAKE CONCERNS ABOUT ABANDONING TRANSPARENCY LIGHTLY AT ALL. AND I HAVE MY ENTIRE

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LIVED EXPERIENCE AND CAREER TO PROVE IT. HOWEVER; WE ARE IN NOT NORMAL TIMES. AND OVER THE LAST FEW DAYS, WE HAVE SEEN WHAT CAN HAPPEN WHEN WE ARE AT THE MERCY OF AN ADMINISTRATION, A FEDERAL ADMINISTRATION THAT CLEARLY DOES NOT SEEM TO REGARD OUR RIGHTS WHATSOEVER. SO NOT ONLY IS TO ME THE SAFETY OF COMMUNITY MEMBERS TO BE PROTECTED FROM THOSE WHO SEEK TO COME TO OUR CITY AND ENGAGE IN CRIMES, I'M ALSO VERY CONCERNED ABOUT PUTTING OUR RESIDENTS AT A HEIGHTENED RISK FROM ACTORS AND AGENCIES WHO ARE DIRECTED TO BASICALLY IGNORE OR GO AGAINST OUR RIGHTS. AND FOR ALL OF THOSE REASONS, WHILE I UNDERSTAND THAT THIS IS NOT GOING TO BE SOMETHING THAT IS BROADLY SUPPORTED BY EVERYONE IN OUR COMMUNITY, I CANNOT IN GOOD CONSCIENCE VOTE IN A WAY THAT, IN MY ESTIMATION WOULD SUBJECT OUR COMMUNITY TO A HEIGHTENED RISK. WITH THAT SAID, I THINK THE COUNCIL HAS A ROBUST PUBLIC SAFETY COMMITTEE, I APPRECIATE THE WORK OF THE POLICE ACCOUNTABILITY BOARD. AND I WELCOME ANY OTHER PROPOSALS AND UNDERSTAND THAT THERE WILL BE CONTINUING CONVERSATIONS AND ENGAGEMENT WITH THE COMMUNITY. AND WOULD SUPPORT ANY OTHER WAYS IN HAD WE CAN GET THIS RIGHT. THANK YOU.

>> MAYOR ISHII: OKAY, THANK YOU. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: THANK YOU, I WASN'T QUITE READY SO I LET IGOR JUMP IN. SOME SPEAKERS SAID DO YOU LISTEN TO THE POLICE SCANNER? I ACTUALLY DID FOR A WHILE, IT WAS A HOBBY OF MINE, I HEARD THAT

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MY NEIGHBOR'S HOUSE WAS ON FIRE, I GOT THERE WHEN THE FIRE DEPARTMENT GOT THERE. I'M GLAD I DIDN'T GET THERE BEFORE, BECAUSE I DON'T KNOW IF I WOULD HAVE GONE IN. THAT WAS AN EXCITING MOMENT. I ENJOYED IT, IT WAS FASCINATING, I LIKE TO KNOW WHAT IS GOING ON. IF ANY OF YOU WERE IN THAT SITUATION, I UNDERSTAND. I WILL BE HONEST I WAS REALLY TORN WHEN I LEARNED ABOUT THIS, IT'S NOT JUST FOR ENTERTAINMENT, IT OBVIOUSLY PLAYS A VERY IMPORTANT ROLE IN OVERSIGHT, IN PRESS COVERAGE, THANK YOU, EMILY. THIS ENCRYPTION MOVE WILL BE A BIG LOSS. I WANT TO ACKNOWLEDGE THAT AND I WAS REALLY TORN WHEN I FIRST LEARNED ABOUT IT. I REALLY APPRECIATE THE SUPPLEMENTAL. I THINK IT'S A GREAT IDEA. I THINK, IT WON'T BE THE SAME, BUT I THINK IT'S THE BEST YOU COULD DO. I WANT TO SAY I WAS TORN BECAUSE THIS IS CLEARLY IMPORTANT. IT'S VERY CLEAR TO ME, YEAH, I BELIEVE THAT THIS INFORMATION BEING BROADCAST PUBLICLY REALLY CAN UNDERMINE THE EFFECTIVENESS OF THE POLICE. AND THAT'S A CONCERN TO ME. PLUS THE FACT THAT IT IS REQUIRED BY STATE LAW, I HAVE TO SUPPORT THIS. I'M ACTUALLY REALLY GLAD YOU ARE ABLE TO OFFER SOMETHING INSTEAD. SO I AM GOING TO VOTE FOR THIS WITH SUPPLEMENT. I WANT TO SAY ONE MORE THING. I HEARD SOME OF THE SPEAKERS TALK ABOUT WHAT'S GOING ON WITH OUR FEDERAL GOVERNMENT AND THE LAW ENFORCEMENT AT THAT LEVEL AND HOW AWFUL IT IS. YOU'RE NOT WRONG, IT'S AWFUL. IT'S TERRIFYING. BUT I REALLY WANT

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TO CAUTION PEOPLE NOT TO CONFLATE THAT SITUATION WITH OUR POLICE. IT'S ALL LAW ENFORCEMENT, YES. AND IT'S SCARY, LAW ENFORCEMENT CAN BE SCARY AND WHEN THEY AREN'T OBEYING THE LAW IT'S REALLY SCARY. BUT JUST BECAUSE THE FEDERAL LAW ENFORCEMENT ISN'T RESPECTING THE LAW, DOESN'T MEAN THAT'S WHAT IS HAPPENING WITH OUR LOCAL POLICE. I PERSONALLY BELIEVE OUR POLICE DEPARTMENT HAS EARNED OUR TRUST. AND SO, YES, POLICE ACCOUNTABILITY IS IMPORTANT, WE HAVE THAT, I SUPPORT THAT. BUT I REALLY WANT TO CAUTION PEOPLE TO BE CLEAR IN YOUR MINDS WHO THE REAL BAD GUYS ARE WHEN YOU ARE SPEAKING IN A HYPERBOLIC WAY. YOU REALLY -- I REALLY WANT TO EMPHASIZE OUR POLICE AREN'T BEHAVING IN A FASCIST WAY, THEY RESPECT THE LAW COMPLETELY. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER ERS CAN KEARSE?

>> R. KESARWANI: THANK YOU, MADAM MAYOR. THANK YOU, CHIEF LOUIS, AND ARLO FOR THE PRESENTATION. I KNOW MULTIPLE PEOPLE HAVE SAID THIS AND HEARD AS THIS WAS SORT OF A DISCRETIONARY CHOICE. THE FIRST TWO WHEREAS CLAUSES THEY NOTE THE CALIFORNIA DEPARTMENT OF JUSTICE ISSUED AN INFORMATION BULLETIN REQUIRING ENCRYPTION OF ALL POLICE AND PERSONALLY IDENTIFIABLE INFORMATION, THAT'S WHY THIS ITEM IS COMING BEFORE US, BECAUSE OF THESE REQUIREMENTS FROM THE STATE. AND I THINK, I WANT TO THANK THE CHIEF FOR THE SUPPLEMENTAL AND MY COLLEAGUES WHO ENGAGED WITH OUR POLICE

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DEPARTMENT TO MAKE SURE THAT WE COULD HAVE SOME LEVEL OF TRANSPARENCY THAT IS MORE IMMEDIATE THAN THE CALLS FOR SERVICE DATASET THAT COULD BE ACCESSED BY THE PUBLIC. CHIEF, I WANTED TO ASK YOU, I KNOW THIS RESOLUTION TALKS ABOUT THE ITEMS THAT YOU CAN PROVIDE. SO, IT INCLUDES, LET'S SEE WHAT DOES IT SAY HERE? THE GENERAL TYPE OF CALL, NEAREST INTERSECTION, BLOCK OF CALL AND TYPE OF SERVICE AND TIME THE CALL WAS RECEIVED. IS THERE ANYTHING ELSE THAT YOU ARE EXPLORING THAT YOU COULD POSSIBLY ADD TO THIS DATA THAT YOU CAN TELL US ABOUT AT THIS TIME? I KNOW THAT WORK IS ONGOING WITH THE COMMUNITY.

>> YEAH, ABSOLUTELY. WE ARE LOOKING AT ADDING THE PRIORITY LEVEL OF THE CALL. IS IT A HIGH LEVEL PRIORITY CALL OR LOW? IS IT IN REGARDS TO AN ONGOING INCIDENT OR COLD REPORT OF AN INCIDENT THAT OCCURRED LONG AGO OR JUST PRIOR. SO WE ARE LOOKING AT ADDING THOSE ADDITIONAL PIECES OF DETAIL TO HELP INFORM THE COMMUNITY OF THE NATURE OF THE INCIDENT.

>> MAYBE A GOOD WAY OF THINKING OF IT WE HAVE TO PULL FROM EXISTING TABLES OR CELLS OF INFORMATION. WE HAVE TO CONSIDER WHETHER THAT CELL MIGHT HAVE CONFIDENTIAL INFORMATION OR NOT AND WHETHER IT JEOPARDIZES SAFETY, AND IF IT DOESN'T, THE POSSIBILITY EXISTS FOR US TO INCLUDE IT. BUT IF IT'S NOT ALREADY CAPTURED IN THAT MANNER IN AN INITIAL CAD REPORT WE WOULDN'T BE ABLE TO PUT IT IN THE CALL LOG BECAUSE IT ISN'T CAPTURED.

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>> R. KESARWANI: WE CAN'T PULL IN DATA WE AREN'T ALREADY COLLECTING IN A SYSTEMATIC WAY.

>> A PERFECT EXAMPLE, I KNOW THIS IS ONE OF THE QUESTIONS, WHO IS AT FAULT IN A COLLISION. SO THE INITIAL CAD SCREEN, WHETHER THE DISPATCHER IS ENTERING DOESN'T HAVE A PLACE TO PUT THAT WHERE WE COULD GRAB IT AND PUT IT ON THE CALL LOG. BUT ONCE THE COLLISION REPORT IS COMPLETED WE ARE ABLE TO HAVE INFORMATION ON THE TRANSPARENCY HUB WHO WAS AT FAULT IN THE COLLISION.

>> R. KESARWANI: I DON'T KNOW IF YOU KNOW THIS OFFHAND, BUT WOULD A MEMBER OF THE PUBLIC BE ABLE TO CONNECT THAT COLLISION REPORT WITH CALL FOR SERVICE FOR CODE OR DETAIL ONCE THAT IS ALL POSTED.

>> LIKE IF THEY WERE AWARE OF A COLLISION THAT OCCURRED WOULD THEY BE ABLE TO FIND IT IN THE LOG? YES, IF THEY HAVE THE TIME AND GENERAL LOCATION THAT WILL BE APPARENT.

>> R. KESARWANI: IT SOUNDS LIKE IT WILL BE A DIFFERENT METHOD. IT WON'T HAVE THE PERSONALLY IDENTIFIABLE INFORMATION THAT CURRENTLY AVAILABLE. BUT IT'S GOING TO BE SOMETHING THAT WILL ALLOW THE PUBLIC TO BE ABLE TO MONITOR WHAT'S GOING ON. SO I FEEL SATISFIED WITH THAT. AND I'M PREPARED TO SUPPORT THIS ITEM. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER BLACKABY?

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>> B. BLACKABY: THANK YOU, MADAM MAYOR. I JUST SAY AT THE OUTSET LIKE SO MANY ISSUES THAT COME TO THE CITY COUNCIL WE ARE BEING ASKED TO BALANCE TWO CONFLICTING ISSUES. WE SEE THIS IN-HOUSING POLICY AND SO MANY OTHER AREAS. IN THIS AREA IT'S COMMUNITY SAFETY AND TRANSPARENCY. IF ALL WE CARED ABOUT WAS TRANSPARENCY, THEN ABSOLUTELY WE SHOULD KEEP THE EXISTING SYSTEM, EXISTING FRAMEWORK WHERE THE SCANNER IS PUBLICLY AVAILABLE. BUT THAT'S NOT THE ONLY INTEREST. WE ALSO DO HAVE A PUBLIC SAFETY INTEREST TO KEEP OUR MEMBERS OF THE PUBLIC SAFE, AND MEMBERS OF THE POLICE DEPARTMENT SAFE. THE QUESTION IS HOW DO YOU DRAW THAT LINE? HOW DO YOU FIND THE PROPER BALANCE? I WILL SAY, I THINK ONE OF THE PRIMARY RESPONSIBILITIES WE HAVE AS ELECTED OFFICIALS IS KEEPING THE COMMUNITY SAFE. AND I TAKE THAT VERY SERIOUSLY, ON FIRE, POLICE, CRIME ON WHATEVER. SO IT IS IMPORTANT TO ME THAT WE FIND THE RIGHT BALANCE. I WILL ALSO COMMENT THAT ON THE TIMING, TO SOME EXTENT THE MOVE BY THE COUNTY REALLY DID FORCE OUR HAND ON TIMING. I THINK WE WOULD ALL PREFER THAT HEY, WE KNEW A YEAR AHEAD OF TIME THIS WAS COMING AND WE HAD MORE TIME TO PREPARE AND MAYBE MORE TIME TO DO A THOROUGH LOOK AND ANALYSIS OF ALL THE OPTIONS ANDER EXHAUST THEM, BUT THE FACT IS WE ARE IN A SITUATION WE ARE THE OUTLIER, EVERY OTHER JURISDICTION AND CONTRA COSTA COUNTY MADE THE MOVE AND WE ARE THE OUTLIER, HOW OFTEN WOULD WE WANT TO BE THE OUTLIER FROM A

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PUBLIC SAFETY PERSPECTIVE. THAT IS OF SOME CONCERN TO ME. I ECHO MY COLLEAGUES COMMENTS; OVERSIGHT IS VITALLY IMPORTANT. WE DO HAVE A GOOD POLICE DEPARTMENT BUT OVERSIGHT IS IMPORTANT. SHOWING CONFIDENCE AND TRUST IN THE PEOPLE WHO WEAR THE BADGE AND KEEP US SAFE IS IMPORTANT. WE ALREADY FACE RECRUITING AND RETENTION CHALLENGES WITH OUR DEPARTMENT. PUTTING OUR OFFICERS IN A POSITION WHERE THEY FEEL MORE EXPOSED AND NOT SUPPORTED BY THIS COUNCIL AND COMMUNITY HAS OTHER LONGER TERM IMPACTS. WE DON'T WANT TO GO DOWN THAT PATH; WE ALREADY HAVE A CHALLENGING ENOUGH ENVIRONMENT. AND WE DO BELIEVE IN THE LEADERSHIP OF OUR DEPARTMENT. AND WE DO BELIEVE IN THE PEOPLE WHO SERVE US, AND WE SHOULD SHOW THAT AND I THINK THIS IS A WAY WE SHOW THAT. ALL THAT SAID, I AGREE OVERSIGHT IS IMPORTANT. I HAVE ALWAYS BEEN A BELIEVER IN OVERSIGHT; I HAVE PARTICIPATED IN THE OVERSIGHT PROCESS. I THINK IT'S IMPORTANT AS THE PROCESS UNFOLDS WE WILL CONTINUE TO GET THE FEEDBACK FROM THE COMMUNITY. YOU ENCOURAGE THE POLICE ACCOUNTABILITY BOARD TO DO POLICY WORK WITH THIS, TO WORK WITH ARLO AND THE TEAM. WE HAVE PLENTY OF EXAMPLES THEY WILL BE REVIEWING POLICY, LOOKING AT THE DRONE POLICY, THIS IS ANOTHER EXAMPLE THEY CAN PROVIDE COMMUNITY INPUT AND FEEDBACK AND WE CAN COURSE CORRECT AS WE GO. AND IF THERE ARE OTHER MECHANISMS BEYOND THIS WEB LOG, LET'S FIND THEM. BUT I THINK THIS IS THE BEST WE COULD FIND AT THIS POINT TO MOVE FORWARD.

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AND MOVE FORWARD IN A WAY THAT DIDN'T KEEP FOLKS ENTIRELY IN THE DARK ONCE WE STARTED TO ENCRYPT THE COMMUNICATION. IN TERMS OF WRESTLING WITH ALL THESE ISSUES I COME OUT IN FAVOR OF THIS POLICY, I WANT TO THANK THE CHIEF, ARLO, AND THE COMMUNITY FOR THIS ENGAGEMENT. NO ONE EVER GOING TO BE FULLY SATISFIED AS WE MOVE FORWARD, BUT I THINK THE BALANCE OF EQUITY IS HERE, TO ME, TO THIS PARTICULAR COUNCILMEMBER, THIS FEELS LIKE AN APPROPRIATE BALANCE THAT SUPPORTS THE PUBLIC SAFETY NEEDS OF OUR COMMUNITY. AND ALSO HELPS TO PROVIDE SOME TRANSPARENCY, EVEN WHILE REALIZING WE ARE TAKING SOME OTHER PIECES OF THIS WAY. TO ME, IT DOES STRIKE THE RIGHT BALANCE AND YOU WILL BE SUPPORTING IT.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I'M GOING TO BE VERY HONEST ABOUT WHERE I'M AT. I CAME INTO THIS MEETING AFTER HAVING WORKED HAVE I CLOSELY WITH THE CHIEF AND HER TEAM TO COME UP WITH AN ALTERNATIVE THAT IS A COMPROMISE. BETWEEN WHAT THE COMMUNITY WAS ASKING AND WHAT THE POLICE DEPARTMENT INITIALLY PUT FORWARD. I WANT TO SO SINCERELY THANK THE CHIEF AND HER TEAM FOR WORKING WITH US ON THAT IN GOOD FAITH. SO I CAME IN EXPECTING TO, KNOWING THERE WAS GOING TO BE OPPOSITION TO THE ITEM TO SUPPORT THIS ITEM, WITH THE SUPPLEMENTAL. AND AT THE SAME TIME, I AM HEARING FROM PEOPLE WHO WE WORKED WITH ON THIS ITEM FROM ALL OVER THE BERKELEY POLITICAL SPECTRUM SAYING THAT THEY DON'T FEEL

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LIKE THEIR NEEDS ARE BEING ADDRESSED. AND SO, THIS IS DISAPPOINTING TO HEAR FOR MYSELF, WE AREN'T ABLE TO COME TO A PLACE WHERE PEOPLE FEEL THEIR NEEDS ARE BEING ADDRESSED. I ALSO REALLY, YOU KNOW, THE ENCRYPTION WAS GOING TO HAPPEN AT ONE POINT OR ANOTHER. THE QUESTION IS ABOUT WHAT WE ARE GOING TO DO TO ADDRESS SOME THE ISSUES THAT COME WITH THAT. SOME OF THE ISSUES THAT THE TRANSPARENCY, OR THE EFFECTS THAT WOULD HAVE ON TRANSPARENCY. WE HAVE A MEMO FROM THE ATTORNEY GENERAL OF CALIFORNIA THAT SAYS THAT WE HAVE TO ENCRYPT EVENTUALLY. AND I THINK IT IS REALLY IMPORTANT TO PROTECT THE INFORMATION OF THE PEOPLE WHO CALL IN. AND LIKE I SAID, I'M ALSO HEARING THAT PEOPLE DON'T FEEL THAT THERE ARE STILL STEPS MISSING HERE. I DO THINK THIS ITEM SHOULD NOT HAVE BEEN ON CONSENT ORIGINALLY. I THINK IT SHOULD HAVE GONE TO THE PUBLIC SAFETY COMMITTEE. I UNDERSTAND THE CONCERNS AROUND DELAYING THIS, AND HOW BERKELEY WOULD BE THE ONLY JURISDICTION. I ALSO DON'T WANT THAT. I THINK THERE ARE WAYS THAT WE COULD HAVE GONE THROUGH A MORE RIGOROUS PROCESS WHILE FOCUSING ON GETTING THIS TO COUNCIL QUICKLY. I THINK THAT THE P.A.B. SHOULD HAVE BEEN INVOLVED BEFORE THIS CAME TO COUNCIL AS WELL AND THEY SHOULD HAVE GOTTEN A CHANCE TO GIVE THEIR FULL OPINION. I'M BEING, BOTH OF THESE THINGS ARE GOING ON IN MY HEAD AT THE SAME TIME, I'M TRYING TO BE AS HONEST ABOUT THIS. BECAUSE THAT WOULD NOT HAVE, I WANT TO ALSO THANK

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EVERYBODY WHO CAME OUT HERE, BECAUSE MY THOUGHT PROCESS WOULDN'T HAVE BEEN AS COMPLICATED AS IT IS, IF IT WASN'T FOR THE PUBLIC. BECAUSE WE HAVE TO ENCRYPT AND I REALLY THINK THE CHIEF AND HER TEAM ARE REALLY COMMITTED TO FINDING A COMPROMISE, I ULTIMATELY AGREE WITH THIS ITEM AND HOPE WE CAN CONTINUE TO WORK TO IMPROVE SOME OF THE QUESTIONS PEOPLE HAVE. I HOPE THE COMMUNITY CAN MEET WITH COP WATCH AND ADDRESS SOME OF THINGS THEY WOULD LIKE TO SEE. BUT I HAVE CONCERNS ABOUT HOW THE PROCESS WENT. AND I THINK THAT SEEING SO MUCH OPPOSITION FROM THE COMMUNITY CONFIRM THAT IN A WAY THAT I DIDN'T REALIZE BEFORE. I GUESS I JUST WANTED TO SAY THAT. AND I THINK THIS IS A VERY COMPLICATED PIECE. AND I THINK THAT IT DESERVES COMPLICATED THOUGHTS. YEAH, THAT'S WHAT I HAVE RIGHT NOW. THANKS.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU, MADAM MAYOR. AND NOT TO BELEAGUER THE POINTS MADE BY MY COLLEAGUES. I WILL SAY EVERYTHING THEY SAID, ESSENTIALLY. BUT YOU KNOW, I DEFINITELY AM IN FULL SUPPORT OF TRANSPARENCY AND THE FOURTH AMENDMENT AND THE ABILITY TO WATCH THE WATCHMEN. HOWEVER, I DID A REALLY INFORMAL STRAW PULL OF MY CONSTITUENTS AROUND THIS TOPIC, JUST TALKING TO PEOPLE. I HEARD A COUPLE OF STORIES THAT SORT OF GAVE ME PAUSE. AND KIND OF REORIENTED MY STANCE ON THIS TOPIC. BECAUSE AS MUCH AS I AM FOR

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THE GLOBAL EFFORT TO ACHIEVE CIVIL JUSTICE, I'M ALSO ACUTELY HERE FOR VICTIMS. I REPRESENT VICTIMS AND THEY NEED MORE RESPECT. AND SO IN THIS SENSE, SINCE I HAD A BUSINESS THAT WAS SUBJECTED TO A SERIES OF ROBBERIES, THEY BECAME INCREASINGLY VIOLENT AND PEOPLE WERE HURT. AND THEY WERE USING THE SCANNER, THIS DEVICE, THIS APP. THEY HAD WARNING, AND THEY WERE ABLE TO REALLY GET AWAY WITH SOME PRETTY TERRIFYING STUFF. AND THE OTHER ONE WAS MORE OF A HEARTBREAKING ONE, A CONSTITUENT WENT THROUGH SOME PROBLEMS AND HER FAMILY CALLED ON HER TO GET SUPPORT FROM OUR PEOPLE. SOMEONE LISTENING TO THE DEVICE, THE SCANNER APP WROTE HER NAME UP ON SOCIAL MEDIA, HORRIFICALLY EMBARRASSED AND ASHAMED HER, REALLY, REALLY SAD. I'M MOVED BY ALL THE ARGUMENTS HERE. BUT, THERE'S SOMETHING TO PROTECTING PEOPLE AND THEIR PRIVACY IS HERE WITH ME. AND ALSO OF COURSE, NOT ALLOWING PEOPLE TO STRATEGIZE TO COMMIT HARM ON OUR RESIDENTS. THE SAN FRANCISCO MEASURE, AS COUNCILMEMBER TREGUB MENTIONED SEEMS LIKE A FAIRLY GOOD COMPROMISE. AND I THINK THE CITY MANAGER'S SUPPLEMENTAL GETS AT THAT. AND THAT SAID, I DO THINK THE POLICE ACCOUNTABILITY BOARD WILL AUTOMATICALLY WEIGH IN ON THIS, RIGHT? AT A CERTAIN TIMEFRAME? THEY CAN. OKAY.

>> MAYOR ISHII: 30 DAYS OF IMPLEMENTATION.

>> B. BARTLETT: 30 MINUTES, BETTER DO IT TONIGHT. BETTER SET THAT CLOCK. THERE'S THINGS TO DO TO PERFECT IT AND MAKE IT

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BETTER AND WE HAVE LOTS OF AGENCIES AND AGENTS TO TAKE ON THAT WORK GOING FORWARD. THANK YOU.

>> MAYOR ISHII: THANK YOU. I DO REALLY APPRECIATE WHAT YOU BROUGHT UP ABOUT SUSPECTS. THAT'S ONE OF THE POINTS I WANTED TO BRING UP AS WELL. ALSO PEOPLE WHO ARE ACCUSED, THEIR INFORMATION, THEIR DESCRIPTION, THEIR NAME, I ALSO FIND THAT PROBLEMATIC. I DO APPRECIATE PEOPLE BRINGING UP, ESPECIALLY SHARING PERSONAL INFORMATION OF VICTIMS THAT IS PARTICULARLY CONCERNING TO ME. AND UNFORTUNATELY WE ARE IN A TIME IN HISTORY WHERE PEOPLE ARE SPECIFICALLY ATTACKING POLICE OFFICERS, SO I DO THINK OFFICER SAFETY IS SOMETHING THAT I'M CONCERNED ABOUT. I ALSO SHARE COUNCILMEMBER LUNAPARRA'S FEELINGS. WE HAD A LOT OF CONVERSATIONS ABOUT THIS. SO I DO REALLY WANT THE PUBLIC TO UNDERSTAND THAT WE HAD MANY CONVERSATIONS, THAT WE SPOKE WITH THE CHIEF, THAT WE SPOKE WITH OUR CITY MANAGER. AND REALLY WHAT CAME OUT OF THIS WAS THE CHIEF'S SUPPLEMENT. I REALLY DO WANT TO THANK THE CHIEF FOR ALL THE WORK THAT WENT INTO THIS. BECAUSE NOT ONLY IS IT JUST WE CAME TO YOU, YOU ALSO SAID I WANT TO MAKE SURE WE ARE BEING AS TRANSPARENT AS POSSIBLE. I WILL FIGURE OUT HOW TO MAKE THAT WORK. YOU TOOK THE INITIATIVE, SO I REALLY APPRECIATE THAT, AND THE PARTNERSHIP THERE. I ALSO KNOW, I HEAR WHAT FOLKS ARE SAYING, SOME CONCERNS THEY HAVE, A COUPLE MORE QUICK QUESTIONS. ONE IS WILL THE RECORDINGS BE SAVED? AND WILL

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THEY POTENTIALLY BE ABLE TO BE SHARED WITHOUT THE PERSONAL INFORMATION?

>> SO RECORDINGS ARE SAVED FOR A PERIOD OF TWO YEARS. OBVIOUSLY IF THEY ARE PULLED AS EVIDENCE OF A PARTICULAR CRITICAL EVIDENCE OR CALL OR EVIDENTIARY PART OF THE CASE THEY WILL BE PULLED AND HELD FOR THAT RETENTION PERIOD. AS FAR AS SHARING INFORMATION BACK OUT ABOUT THE RECORDINGS, OBVIOUSLY, WHEN WE HAVE TO PULL RECORDINGS WE PULL THEM REGULARLY AND PROVIDE THEM TO THE P.A.B. AND THE D.P.A. IS PART THEIR COMPLAINT PROCESSES. PULLING THEM OUT, THOSE GO UNREDACTED. BUT IF WE RELEASE FOR SOME REASON PUBLICLY WE WOULD HAVE TO MAKE SURE THEY WERE REDACTED. IMAGINE THE STAFF BURDEN ON POURING THROUGH ALL OF THOSE. WE WOULD BE LOOKING TO THE GOVERNMENT CODE TO GUIDE US ON PUBLIC RECORDS REQUEST ON THAT AND MAINTAINING PRIVACY AND UNDERSTANDING THE WORKLOAD OF PULLING ALL THOSE RECORDS.

>> MAYOR ISHII: ALSO WHEN WOULD THE ENCRYPTION HAPPEN WITH THIS DATA SYSTEM WE ARE TALKING ABOUT. I WANT TO MAKE SURE THEY WILL BE CLOSELY TIED.

>> WE WILL HAVE TO SCHEDULE THE PROCESS OF GETTING ENCRYPTED. WE WERE TOLD THAT COULD HAPPEN RELATIVELY QUICKLY. WE ALREADY PREPARED TO ROLL OUT THE CALL LOG, SO IT WOULD BE CONTEMPORANEOUS.

>> MAYOR ISHII: THAT'S GREAT, I WANT TO MAKE SURE THAT'S THE

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CASE. I ALSO APPRECIATE WILL CONTINUE TO WORK WITH COMMUNITY ORGANIZATIONS TO MAKE THIS SYSTEM AS TRANSPARENT AS POSSIBLE. THANK YOU FOR BEING HERE AND TAKING THE TIME TO GO OVER THIS WITH US, AND ANSWERING OUR QUESTIONS. ANY OTHER COUNCIL QUESTIONS? WE ALREADY HAVE A MOTION ON THE FLOOR. LET'S TAKE THE ROLL, PLEASE.

>> CITY CLERK: OKAY. TO APPROVE ITEM 18, INCLUDING THE ITEM IN THE SUPPLEMENTAL FROM THE CITY MANAGER, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: WITH SINCERE APPRECIATION FOR ALL OF YOUR WORK AND EVERYTHING WE DID TOGETHER, NO.

>> CITY CLERK: HUMBERT?

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>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, MOTION CARRIES.

>> SO WHAT ABOUT P.A.B. YOU ARE KILLING THE P.A.B. POLICY MAKING IS A MOOT POINT. ALL OF YOU GUYS.

>> MAYOR ISHII: WE HAVE TWO MORE ITEMS LEFT BUT WE ARE GOING TO TAKE A TEN MINUTE BREAK.

>> TAKE A BREAK, GIVE THE WHOLE CITY A BREAK. SERIOUSLY, YOU JUST WASHED YOUR HANDS OF IT. YOU JUST PUT YOUR HEAD IN THE SAND AND YOU DON'T HAVE TO DEAL WITH THE POLICE BRUTALITY. YOU CARE ABOUT VICTIMS BUT NOT VICTIMS OF POLICE BRUTALITY. WHAT ABOUT DRACO AND THE UNHOUSED PEOPLE? YOU DON'T GIVE A WOOP. I CAN'T GET MY COUNCILMEMBER TO MEET WITH ME. WE CAN'T GET IN THE CONVERSATION. [BREAK] [BREAK] [BREAK]

>> MAYOR ISHII: HELLO. OH THERE WE ARE. HI, FOLKS. SORRY ABOUT THE DELAY. THANK YOU VERY MUCH FOR WAITING. THANK YOU SO MUCH, STAFF, FOR WAITING. OKAY, SO WE ARE MOVING ON TO ITEM #28 HAD WAS PULLED OFF THE CONSENT CALENDAR. AND THAT IS THE REMOVED PRETRANSFER ELIGIBILITY RESTRICTION OF THE TRANSFER TAX REBATE FOR WILDFIRE HARDENING. I'M GOING TO REMIND FOLKS IT IS 10:06 P.M. AND WE HAVE TWO ITEMS LEFT. MY REQUEST IS FOLKS ARE BRIEF AND CONCISE WITH THEIR COMMENTS THE REST OF THIS EVENING SO WE

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CAN GET THROUGH IT ALL. I'M GOING TO PASS IT OVER TO ANDY KATZ.

>> THANK YOU, MAYOR ISHII, I WILL KEEP IT BRIEF. I DID SEND THE CITY COUNCIL A NOTE EARLIER TODAY THAT SUMMARIZES THE MATERIAL THAT'S IN YOUR PACKET. SO WE CURRENTLY HAVE THE CITY CURRENTLY HAS A TRANSFER TAX REBATE PROGRAM THAT IS INTENDED TO ENCOURAGE ADDITIONAL HOME HARDENING INVESTMENTS WHICH IS A VERY IMPORTANT EFFORT TO COMPLEMENT THE EMBER PROGRAM TO KEEP OUR COMMUNITY SAFE FROM WILDFIRE. ONE REASON THE COMMISSION ADVANCED THIS PROPOSAL IS TO ADDRESS A CONCERNING PERVERSE INCENTIVE THAT DISCOURAGES EARLY ACTION. WE SAW THE TRAGIC WILDFIRES IN THE LOS ANGELES REGION. WE HAVE SEEN SIMILAR TRAGEDIES IN LA HEINA, HAWAII, WE NEED TO SEE INCENTIVES THAT PROMOTE EARLY ACTION. THE STRUCTURE OF THE EARLY TAX REBATE ONLY ALLOWING THE REBATE WHEN IT'S DONE WITHIN ONE YEAR OF THE TRANSFER OR ONE YEAR AFTER, IT IS ENCOURAGING SOMEONE TO DEFER THAT ACTION, TO WAIT TO TAKE THAT VERY IMPORTANT HOME HARDENING ACTION TO ENCOURAGE PUBLIC SAFETY. THAT'S THE REASON THIS ITEM IS IN FRONT OF YOU. THROUGH THE COMMITTEE PROCESS THAT PROPOSAL TO REMOVE THE ONE YEAR PROVISION IS NOW EXTENDED TO FIVE YEARS. I THINK THAT'S A GOOD START. I DO ENCOURAGE, BECAUSE THE CONCERNS ABOUT DISCOURAGING EARLY ACTION THAT THE COUNCIL KEEP A CLOSE LOOK AT THIS AS THE PUBLIC SAFETY COMMITTEE CONTINUES TO STUDY ADDITIONAL TOOLS TO PROMOTE HOME HARDENING. BECAUSE WE WILL NEED ADDITIONAL

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FINANCIAL TOOLS AND PERHAPS AN IMPROVEMENT TO THIS TOOL. BUT MORE IMPORTANTLY WE NEED THIS TOOL TO BE UP AND RUNNING WITH THE EMBER PROGRAM TO TAKE EFFECT THIS NEXT YEAR. THIS MAKES IMPORTANT TECHNICAL CORRECTIONS RIGHT NOW THAT THE CITY STAFF NEED DIRECTION TO FINALIZE THE APPLICATION AND ACTUALLY GET IT ABLE TO REACH HOMEOWNERS. SO TAKING ACTION AT THIS MEETING IS CRITICAL TO BE ABLE TO HAVE AN ACTUAL PROGRAM THAT'S WORKING ON THE GROUND. WITH THAT, WE LOOKED AT ONE OTHER ADDITIONAL ELEMENT THAT IS IN THE COUNCILMEMBER'S SUPPLEMENTAL THAT ADDS A DEFINITION OF WOODY BRUSH. THAT'S IMPORTANT BECAUSE WE ARE NOT EXPECTING OUR RESIDENTS IN THE FIRE ZONE AREA TO GO TO THE TOOL LIBRARY AND GET A CHAINSAW, YOU DON'T KNOW IF THE TOOL LIBRARY HAS THOSE. WE WANT TO MAKE SURE WE AREN'T PUTTING UNREASONABLE INSURMOUNTABLE BURDENS WHEN WE ARE ENCOURAGING HOME HARDENING. THAT IS ONE BEING RECOMMENDED FOR REMOVAL. I WANT TO THANK COUNCILMEMBER BLACKABY FOR WORKING WITH COUNCILMEMBERS HUMBERT THAT I WORKED WITH CHIEF SPRAGUE TO CONFIRM WOULD BE WORKABLE ON A TECHNICAL LEVEL. WITH THAT, I WILL YIELD TO THE CHIEF'S COMMENTS AND ANY OTHER QUESTIONS FROM THE CITY COUNCIL.

>> NO COMMENTS. WE WORKED WITH THE COMMISSION AND CITY MANAGER'S OFFICE AND COUNCILMEMBER BLACKABY TO BRING FORWARD WHAT'S IN FRONT OF YOU AND WE SUPPORT THE COMMISSION'S RECOMMENDATIONS.

>> MAYOR ISHII: THANK YOU. ARE THERE ANY QUESTIONS FROM FOLKS?

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OKAY. I'M GOING TO GO TO PUBLIC COMMENT. IS THERE ANY PUBLIC COMMENT? ACTUALLY, I KNOW YOU ALL MADE YOUR WAY. GO HEAD AND GIVE YOUR PUBLIC COMMENT. THEN I DO WANT TO LET COUNCILMEMBER BLACKABY PRESENT HIS SUPPLEMENTAL AS WELL.

>> YEAH, COURSE, I WILL TRY TO KEEP IT BRIEF AND CONCISE, MY NAME IS ELIZABETH THOMAS, I'M EXTERNAL AFFAIRS DIRECTOR AND I'M FROM SAN LEANDRO. I DEFINITELY SUPPORT THIS INCENTIVE TO INCENTIVIZE HOME HARDENING BUT I ENCOURAGE CITY COUNCIL TO KEEP THE CAP FOR THE $3 MILLION HOME SALES. WE ARE IN A FISCAL CRISIS IN THE CITY. YOU HAVE SORRY, IT'S LATE. YOU HAVE A HIRING FREEZE. I THINK THAT TRYING TO REDUCE REVENUE BY SAYING THAT OH EVEN THOUGH YOU SOLD YOUR HOUSE FOR $3 MILLION OR MORE, WE ARE STILL GOING TO CONTINUE THIS REBATE PROGRAM. YOU ARE LOSING MONEY. PROGRAMS LIKE THIS COST MONEY AND STAFF, IF YOU HAVE A HIRING FREEZE, YOU ARE ACKNOWLEDGING THERE IS THIS DISCONNECT BETWEEN MONEY AND REVENUE AND IF WE ARE GOING TO INCENTIVIZE THAT AND IT'S AN EXCELLENT THING WE NEED TO ACKNOWLEDGE SOME OF THE CITY'S FINANCIAL REALITIES. AND THANK YOU. YEAH, DEFINITELY THIS IS GREAT, BUT ALSO, WE ARE BERKELEY, LET'S MAYBE NOT HAVE TAX BREAKS FOR THE WEALTHY ALL THE TIME. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HI, COUNCIL. MY NAME IS BRYCE MILLER, A U.C. BERKELEY STUDENT, I'M IN TELEGRAPH FOR PEOPLE AND VOTER IN DISTRICT 4. I

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WANT TO SECOND WHAT ELIZABETH SAID. I REALLY SUPPORT THIS BILL. HOME HARDENING IS REALLY IMPORTANT. BUT WE CANNOT BE HAVING TAX BREAKS FOR HOMES THAT ARE WORTH MORE THAN $3 MILLION. THOSE PEOPLE CAN AFFORD TO PAY FOR THESE THINGS THEMSELVES. AND THERE'S SO MANY OTHER THINGS THAT THE CITY COULD USE THIS MILLION PLUS DOLLARS FOR. LIKE BUS LANES AND BIKE LANES. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU.

>> YEAH, I'LL KEEP IT REALLY BRIEF. I'M IN SUPPORT OF THE ORIGINAL REBATE BUT I OPPOSE THE SUPPLEMENT AND SAYING THIS AS A PERSON WHOSE HELPING HIS PARENTS IN DISTRICT 8 TAKE CARE OF A LOT OF EMBER STUFF RIGHT NOW. AND I'M HAPPY TO ALSO HELP IN OTHER PLACES. SO YEAH, PLEASE YEAH. PEOPLE WHO CAN BUY A HOUSE FOR $3 MILLION CAN FORWARD THAT.

>> MAYOR ISHII: THANK YOU. OTHER PUBLIC COMMENT? ONLINE?

>> CITY CLERK: THIS IS FOR ITEM #28, TRANSFER TAX REBATE. THERE'S NO HANDS RAISED ONLINE.

>> MAYOR ISHII: OKAY.

>> CITY CLERK: NOPE, NONE. OKAY.

>> MAYOR ISHII: ALL RIGHT. PASSING IT TO YOU.

>> B. BLACKABY: I'LL BE FAST. I WANT TO THANK COMMISSIONER KATZ FOR HIS WORK ON THIS AND WORKING ON THE LANGUAGE, AS WELL AS GREG MURPHY IS THE CHAIR OF THE DISASTER AND FIRE COMMITTEE, MY

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APPOINTEE TO THAT COMMISSION. AND TO THE FIRE DEPARTMENT FOR WORKING ON THIS LANGUAGE. JUST A FEW COMMENTS. I THINK THE NON-CONTROVERSIAL PIECE IS THE WOODY BRUSH ADDITION, WHICH THE FIRE DEPARTMENT ALSO SUPPORTS. THE IDEA THAT IF YOU'VE GOT THIS STUFF THAT DOES REQUIRE MORE WORK, MORE MECHANICAL ATTENTION, THAT'S MORE LIKE A HOME HARDENING EXERCISE THAN REMOVING MULCH OR SOMETHING THAT REQUIRES MORE ANNUAL MAINTENANCE. THIS IS SORT OF A PERMANENT CHANGE THAT IS MORE AKIN TO HOME HARDENING SO IT FITS. ON THE CAP, WHAT I WILL SAY THIS IS NOT A GIVE AWAY BACK TO THE POCKETS OF PEOPLE WHO CAN AFFORD IT. THIS IS MONEY THAT GOES DIRECTLY TO CONTRACTORS WHO DO HOME HARDENING ON PEOPLE'S HOMES. THIS GOES TO NOT JUST HOME HARDEN AND AREA HARDEN AND AREA WE NEED TO PROTECT. NOT JUST FOR THE NEIGHBORHOOD BUT THE REST OF THE CITY. THERE'S A COMMUNITY INTEREST IN GETTING THIS RIGHT. AND ANY INCENTIVE THAT MAKES SURE, LOOK, WE ARE ASKING HOMEOWNERS TO DO A LOT WITH EMBER. WE ALL HEARD THIS IN JUNE. I HEAR THIS EVERY DAY, RIGHT, AS WE ALL KNOW. WE ARE ASKING PEOPLE TO DO A LOT AND CHANGE A LOT. AND BEAR A LOT OF THIS BURDEN IN DISTRICT 6 AND SOME IN DISTRICT 8. AND WE ARE WILLING TO DO THAT. BUT I THINK THE INCENTIVES AND SUPPORT FROM THE REST OF THE COMMUNITY TO ACKNOWLEDGE THAT PEOPLE ARE BEING ASKED TO MAKE CHANGES IS NECESSARY. AND I THINK IT'S FAIR. WE HAVE AN EXISTING SEISMIC RETROFIT PROGRAM IN BERKELEY THAT PROVIDES THE SAME

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INCENTIVE, IT'S HALF A PERCENT OF THE 1.5% TOTAL TRANSFER TAX. WE ARE INCENTIVIZING PEOPLE AGAIN TO DO THE RIGHT THING AND STRENGTHEN THEIR HOME. I WOULD ARGUE WHAT WE ARE DOING WITH HOME HARDENING PROVIDES EVEN MORE NEIGHBORHOOD BENEFIT THAN SEISMIC, RIGHT? SEISMIC REBATE IS ABOUT PROTECTING MY HOME, MAKING SURE MY HOME DOESN'T FALL DOWN. THERE ARE THINGS LIKE MAKING SURE IT DOESN'T SPARK A NATURAL GAS LEAK AND THAT COULD HAVE IMPACTS. BUT EACH HOME THAT IS HARDENED GIVES FURTHER RESILIENCY TO THE OVERALL NEIGHBORHOOD. THERE'S A COMMUNITY INTEREST IN GETTING THIS RIGHT. GUESS WHAT? THE SEISMIC REBATE HAS NO CAP. THERE'S NO CAP ON THE SEISMIC REBATE. I COULD BUY A $5 MILLION HOUSE AND THE REBATE IS FULL 0.5%. WE ARE JUST ASKING FOR THE SAME THAT WE GIVE TO SEISMIC, BECAUSE IT PLAYS AS MUCH, IF NOT MORE COMMUNITY BENEFIT THAN SEISMIC DOES. THE LAST THING I WILL SUGGEST IS THAT THE STAFF REPORT, BY THE WAY, THIS CAME THROUGH THE PUBLIC SAFETY COMMITTEE, WE ARE SUPPORTIVE OF THE ITEM. THE ASK OF STAFF WAS TO COME BACK WITH SOME OPTIONS FOR CONSIDERATION ON THE CAP. WE HAVE NOT COMMITTED TO A CAP. SO WE DIDN'T PASS A CAP THROUGH THE COMMUNITY. THE CAP CAME THROUGH THE STAFF PROCESS AND THEY ADDED IT. IT IS WORTHY OF A CONVERSATION BECAUSE THE COMMITTEE DIDN'T APPROVE THE CAP ITSELF. IF YOU WILL NOTE, THE WAY THE CAP IS CURRENTLY WRITTEN, IT'S A HARD CAP THAT BASICALLY SAYS IF YOU SELL YOUR HOME FOR $2.99 MILLION, YOU GET THE

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REBATE, IF YOU SELL FOR $3.01, YOU GET ZERO. IF IT'S GOOD ENOUGH FOR THE 2.999 MILLION HOMEOWNER, IT'S GOOD ENOUGH FOR THE $3.001. I UNDERSTAND THE CONCERNS AND BUDGETARY SITUATION WE ARE IN BUT WE ARE ALSO IN A FIRE EMERGENCY AND TRYING TO ENCOURAGE EVERYBODY TO DO EVERYTHING THEY CAN TO PROTECT THEMSELVES AND ALL OF US DOWN THE HILL. I THINK IT'S WORTHY OF OUR CONSIDERATION AS A COUNCIL TO DO THIS BIT, LIKE WE ARE ALREADY DOING FOR SEISMIC AND EXTEND IT TO HOME HARDENING AS IT CURRENTLY EXISTS. SO APPRECIATE FOLKS' CONSIDERATION.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU VERY MUCH. AND THANK YOU TO COMMISSIONER KATZ AND CHIEF SPRAGUE AND COUNCILMEMBER BLACKABY. QUICK QUESTION, THE SEISMIC REBATE PROGRAM, WHAT IS THE AREA THAT APPLIES TO? CITYWIDE? IT'S CITYWIDE? OKAY.

>> CITY MANAGER BUDDENHAGEN: IT'S CITYWIDE.

>> T. TAPLIN: I THINK THAT'S NOTABLE. THERE ARE THREE ISSUES I'M HAVING WITH THE IDEA OF REMOVING THE CAP, ONE IS THE POTENTIAL REVENUE LOSS. IT WOULD BE HELPFUL TO SEE WHAT FUNDS WOULD BE IMPACTED WERE WE TO APPLY THIS UNHAPPENED EXEMPTION. IF IT'S THE TRANSFER TAX, I WANT TO SEE WHAT PROGRAMS WOULD BE IMPACTED AND HOW AND TO WHAT DEGREE. I THINK IT'S BOTH TRUE WE ARE IN A FISCAL CRISIS AND WE HAVE A VERY SERIOUS VULNERABILITY TO WILDFIRE. THOSE ARE BOTH TRUE. FOR ME, I'M HEARING FROM A LOT OF

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MY RESIDENTS AND RESIDENTS FROM OTHER FLAT LAND NEIGHBORHOODS ABOUT THE BURDEN THEY ARE FACING PAYING THEIR TAXES. IT WILL BE VERY DIFFICULT FOR ME TO EXEMPT ONE PART OF TOWN FROM TAXES WHILE THE ENTIRETY OF MY DISTRICT AND THE DISTRICTS THAT NEIGHBOR MY DISTRICT WOULD CONTINUE TO PAY THOSE TAXES. THAT'S NOT TO TAKE AWAY FROM THE IMPORTANCE OF PROVIDING INCENTIVES AND ASSISTANCE TO PEOPLE WHO ARE MAKING THESE NECESSARY CHANGES TO THEIR PROPERTIES. AND I WOULD WELCOME AND SUPPORT FURTHER MEASURES TO PROVIDE THAT ASSISTANCE. BUT I CANNOT, I CANNOT SUPPORT A TAX EXEMPTION FOR HOMES OVER $3 MILLION DOLLARS.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER O'KEEFE AND THEN WE WILL TWO TO COUNCILMEMBER TREGUB.

>> S. O'KEEFE: THANK YOU, MAYOR. THANK YOU, COUNCILMEMBER BLACKABY FOR THIS ITEM AND FOR THE SUPPLEMENT AND FOR ALLOWING ME TO CO-SPONSOR WHICH I'M HAPPY TO DO. BLACKABY DID A GOOD JOB SUMMARIZING THE ARGUMENTS. I WANT TO HIGHLIGHT ONE ARGUMENT THAT REALLY CONVINCED ME. I AGREE WITH YOU, COUNCILMEMBER TAPLIN AND I AGREE WITH A LOT OF THE COMMENTERS, YOU ARE ABSOLUTELY RIGHT. WE ARE IN A FISCAL CRISIS AND WE ARE GIVING TAX BREAKS TO, I MEAN IT'S A LOT TO ASK. BUT THERE'S ONE ORIENTATION THAT MAKES IT CLEAR TO ME THIS IS THE RIGHT POLICY. AND THAT'S, WHAT ARE WE TRYING TO DO WITH OUR HOME HARDENING EFFORTS AND WITH EMBER? WHAT IS THE PURPOSE OF IT? WE ARE TRYING TO ACHIEVE SOMETHING

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LIKE HERD IMMUNITY WITH OUR FIRE-PRONE NEIGHBORHOODS. IT'S NOT JUST EACH PERSON MAKES THEIR HOME FIRE-PROOF SO THAT PERSON'S HOME IS PROTECTED. THAT'S ACTUALLY NOT HOW IT WORKS. THE NEIGHBORHOOD, AND CHIEF SPRAGUE CAN TELL ME IF I GET THIS WRONG, PLEASE TELL ME. MY SENSE IS IF 80% OR SOMETHING OF THE HOMES HAVE BEEN FIRE-PROOFED OR HARDENED AND ZERO COMPLIANT THAN THE WHOLE NEIGHBORHOOD IS VERY, VERY PROTECTED. IF 70% OR 60% HAVE DONE IT, THERE IS STILL SOME PROTECTION BUT IT'S A LOT LESS. THE NAME OF THE GAME WITH ALL OF THIS IS TO MAXIMIZE COMPLIANCE. AND THAT IS, LIKE WHAT ARE WE DOING IF WE AREN'T MAXIMIZING COMPLIANCE? SO TO ME, THIS IS ONE MORE WAY TO BRING IN A FEW MORE HOUSES, WHICH REALLY COULD MAKE THE DIFFERENCE. AND THAT ARGUMENT FOR ME IS WHY I DON'T JUST SUPPORT THE SUPPLEMENT BUT WANTED TO CO-SPONSOR IT.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU, MADAM MAYOR. YEAH, I APPRECIATE ALL OF COUNCILMEMBER BLACKABY'S WORK ON THIS. AND YOU KNOW, TRANSPARENCY, I TOO, AM CONFLICTED ON THE WAY WE ARE OF THE $3 MILLION THRESHOLD. I DO UNDERSTAND THE BENEFITS OF IT AND I UNDERSTAND THAT IF WE DON'T GET COMPLIANCE AT THE END OF THE DAY THAT JUST PUTS ALL RESIDENTS, NOT JUST THOSE WHETHER THEY CAN AFFORD TO MAKE THE FIRE HARDENING IMPROVEMENTS OR NOT, IT MAKES EVERYONE MORE AT RISK TO BEING IMPACTED BY AN OUT OF CONTROL

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FIRE, SO. I GET THAT. AND I'M ALSO HAVING TROUBLE SQUARING THAT WHEN FOR INSTANCE WE HAVE A REFERRAL THAT HAS BEEN, I KNOW IN REFERRAL PURGATORY AROUND A TRANSFER TAX EXEMPTION FOR 100% AFFORDABLE HOUSING PROPERTIES. AND UNDERSTANDABLY THERE HAVE BEEN QUESTIONS ABOUT FISCAL IMPACTS. I BELIEVE THEY ARE FAR MORE MINOR THAN WHAT THE IMPACTS MIGHT BE TO THE CITY HERE. AND I UNDERSTAND IN SOME WAYS THESE ARE APPLES AND ORANGES, BUT I WANTED TO GIVE AN ILLUSTRATIVE EXAMPLE WHY I AM STRUGGLING WITH IT. I'M WONDERING IF COUNCILMEMBER BLACKABY MIGHT BE OPEN TO CREATING SOME KIND OF PROVISION WHERE MAYBE IN THE FIRST X NUMBER OF YEARS YES WE CAN INCENTIVIZE THIS BY PROVIDING NO CAP. BUT AT SOME POINT THERE WILL BE A PHASING-OUT. AND REVERTING BACK TO SOME KIND OF THRESHOLD, WHETHER IT'S $3 MILLION OR SOMETHING ELSE.

>> MAYOR ISHII: OKAY, THANK YOU, COUNCILMEMBER HUMBERT?

>> M. HUMBERT: I'M UP. THANK YOU, MADAM MAYOR. YEAH, I WAS PRIVILEGED AND HAPPY TO BE A CO-SPONSOR OF THE SUP. MY PRIMARY CONCERN WITH THE ITEM ITSELF IS THE CAP, AND THE CAP IS LIKE A CLIFF. AS COUNCILMEMBER BLACKABY POINTED OUT, IF IT'S $2.999 MILLION DOLLARS, GET THE CREDIT. IF IT'S $3.001 MILLION, YOU DON'T. AND THAT JUST SEEMS TO ME TO BE SCREWY AND UNFAIR. THERE MAY BE ROOM HERE FOR A COMPROMISE. I'M CO-SPONSOR OF THE SUP, BUT I WOULD SEE POTENTIAL FOR SOME KIND OF A COMPROMISE. WHERE,

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FOR EXAMPLE, YOU JUST DIDN'T GET CREDIT OVER $3 MILLION, IF YOU SOLD A $10 MILLION HOUSE, YOU DON'T GET CREDIT FOR THE DIFFERENCE BETWEEN $3 AND $10. I'M JUST THROWING THAT OUT THERE. SO, ANYWAY. AND YOU REALLY FIND COUNCILMEMBER BLACKABY'S COMMENTS AND COUNCILMEMBER O'KEEFE'S COMMENTS TO BE REALLY COMPELLING. ESPECIALLY THE ARGUMENT ABOUT HERD IMMUNITY. IT'S REALLY TRUE. AND I DON'T WANT TO ELABORATE BECAUSE THEY HAVE BOTH SPOKEN SO ELOQUENTLY, BUT I'M ONBOARD WITH THOSE COMMENTS. THANK.

>> MAYOR ISHII: COUNCILMEMBER BARTLETT.

>> B. BARTLETT: I GUESS I'M NOT UP ON THE EVOLUTION OF THE ITEM, HAS THIS ALREADY GONE TO BUDGET? IT HAS, RIGHT?

>> MAYOR ISHII: YES.

>> B. BARTLETT: ARE THESE ISSUES WE GRAPPLED WITH.

>> MAYOR ISHII: THE CAP IS SOMETHING WE ASKED FOR.

>> B. BARTLETT: YEAH, AGAIN, I UNDERSTAND THE NUMBER DOES SEEM KIND OF ARBITRARY, AS YOU MENTIONED THERE. BUT OF COURSE, IT'S DIFFICULT TO ASK OUR CONSTITUENTS WHO ARE COMPLAINING ABOUT THE TAX BILL ALL THE TIME THAT THEY HAVE TO SHOULDER IT, BUT THE RICH GUYS DON'T. I'M NOT COMPELLED TO SUPPORT IT AT THIS POINT.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES, THANK YOU VERY MUCH, MADAM MAYOR. THANK YOU, COUNCILMEMBER BLACKABY FOR THE SUPPLEMENTAL. I DO

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APPRECIATE THE RATIONALE. AND I THINK THAT, OH, OKAY? I'M OKAY? WHAT WAS PARTICULARLY COMPELLING TO ME IN WHAT YOU SAID, I THINK COUNCILMEMBER O'KEEFE SAID THIS AS WELL, THIS REALLY IS A COMMUNAL EFFORT, SO WE WANT TO INCENTIVIZE EVERYONE IN THE FIRE ZONES TO MAKE THESE HOME HARDENING IMPROVEMENTS. AND I THINK COUNCILMEMBER HUMBERT MAY HAVE SAID THIS. IT IS A LITTLE ANNOYING THAT THERE IS A CLIFF OF, YOU KNOW, WHEN YOU ARE AT $2,999,999.99 YOU GET THE FULL BENEFIT AND NOT WHEN YOU ARE ONE CENT HIGHER. WHEN I SAW YOUR SUPPLEMENTAL, COUNCILMEMBER BLACKABY, I DID WANT TO LOOK AT THE DATA, IN TERMS OF HOW MANY HOME SALES ARE OVER $3 MILLION, AND WHAT IS THE REVENUE LOSS FOR THE CITY IF WE WERE TO PURSUE THE CAP? AND WE WERE GIVEN SOME DATA. I'M GOING TO ATTEMPT TO JUST EXPLAIN THE MATH. I JUST WANT THE COUNCIL TO KNOW HOW MUCH THIS MIGHT COST. IN THE DATA WE GOT, WE WERE TOLD THAT THE TOTAL SALES OVER THE LAST SEVEN YEARS EQUALED $607 MILLION, ROUGHLY, OVER SEVEN YEARS. IF YOU DIVIDE THAT NUMBER BY SEVEN, AND YOU DO 1.5% OF IT, THAT'S THE AMOUNT, THAT YOU WORK FROM. AND IT'S A THIRD OF THAT FOR THE TRANSFER TAX. SO I'LL JUST SHOW, SO $607,518,500, DIVIDED BY THE SEVEN YEARS. SO THAT'S $87 MILLION. REDUCE IT TO THE 1.5%, THAT'S $1.3 MILLION. IF EVERYBODY WHO BOUGHT A HOME FOR MORE THAN $3 MILLION DOES THE FULL REBATE, WHICH IS UNLIKELY, SO THIS IS A MAX, YOU COULD GET 33% $1.3 MILLION. SO AT A MAX THIS WOULD COST

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$430,000. THAT'S ASSUMING THE PAST IS REPRESENTATIVE OF THE FUTURE. AND SALES FLUCTUATE. BUT THIS IS AN ORDER OF MAGNITUDE AS TO HOW MUCH IT WOULD COST. I ALSO EXPLORED, WHAT IF WE JUST HELD EVERYBODY TO $3 MILLION. MEANING REGARDLESS OF HOW MUCH YOUR HOME SOLD FOR, $10 MILLION, $7 MILLION, IF WE HELD EVERYBODY TO THE $3 MILLION AMOUNT, WOULD THAT YIELD ANY SIGNIFICANT SAVINGS? AND IF YOU DO THAT MATH, SO THERE WAS 146 SALES THAT EXCEEDED $3 MILLION IN SEVEN YEARS. THAT'S ABOUT 21 HOME SALES A YEAR, MULTIPLY BY $3 MILLION, REDUCE TO THE 1.5% AND TAKE A THIRD OF THAT, YOU ARE AT LIKE $309,000. SO JUST TO LET YOU KNOW, THE STAFF PROPOSAL OBVIOUSLY HAS ZERO COST FOR HOMES OVER $3 MILLION. IF WE DID THIS SORT OF COMPROMISE THING. THE MAX WOULD BE $300,000 ORDER OF MAGNITUDE. COUNCILMEMBER BLACKABY'S PROPOSAL IS $430,000. I JUST WANTED TO PUT THAT OUT THERE FOR THE COUNCIL'S CONSIDERATION. IT'S TOUGH BECAUSE THE DEFICIT WE WERE ADVISED ABOUT AT THE BUDGET AND FINANCE COMMITTEE THE OTHER DAY IS $25 MILLION. SO IT FEELS STRESSFUL TO ADD A COST IN. THAT'S AN ANNUAL COST. BECAUSE THEN WE INCREASE OUR PROBLEM THAT WE HAVE TO SOLVE, SO WE HAVE TO THINK ABOUT WELL, WHAT ARE WE GOING TO REDUCE THEN TO COVER THIS AND THE REST OF THE $25 MILLION. I THINK, THIS IS NOT SOMETHING I'M TOTALLY AGAINST. BUT I FEEL LIKE IT'S TOUGH TO DO IT RIGHT NOW WITH THE BUDGET SITUATION WE ARE IN. SO THAT'S KIND OF WHERE I

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AM RIGHT NOW. AND I THINK WE HAVE HEARD FROM EVERYONE. I'M INTERESTED TO HEAR FROM THE REST OF MY COLLEAGUES ON THIS. THANK YOU.

>> B. BLACKABY: I UNDERSTAND, I ALSO JUST WANT TO REMIND US, THIS IS NOT CASH GOING -- THIS IS NOT A WELCOME TO BERKELEY, HERE IS SOME MONEY KIND OF THING. THIS IS GOING TO HARDEN HOMES. MONEY INVESTED IN THE COMMUNITY TO STRENGTHEN THE COMMUNITY. I WANT PEOPLE TO ALSO THINK THIS ISN'T TAKING $300,000 AND LIGHTING IT ON FIRE. IT'S GOING TO REMOVE WOODY VEGETATION NEAR THE HOMES, THIS IS FIXING ROOFS, FIXING SIDING AND FENCES THAT INTERSECT HOUSES, ALL THE STUFF THAT WE KNOW WORKS. IS THAT WORTH A $300,000 INVESTMENT? THAT'S A POLICY CHOICE. I JUST WANT PEOPLE TO BE ACCURATE WHAT IT IS AND WHAT IT IS NOT. THIS IS NOT A GIVE-AWAY. IF WE DON'T, MANY PEOPLE WON'T DO THE WORK.

>> MAYOR ISHII: COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I WANT TO BRING UP SOMETHING THAT'S BEEN BROUGHT UP IN BUDGET DISCUSSIONS IN THE PAST, ESPECIALLY GIVEN OUR DEFICIT AT THE MOMENT. IF WE REMOVE THIS CAP, THIS IS $400,000 THAT IS GOING TO COME FROM SOMEWHERE. WHAT ARE WE GOING TO CUT TO GET THIS $400,000? IS THAT GOING TO END UP BEING CHILD CARE FOR PEOPLE WHO RELY ON IT? LIKE WHAT ARE WE WILLING TO TRADE FOR THIS? BECAUSE IS IT GOING TO BE STAFF MEMBERS WE HAVE TO LAYOFF? THESE ARE ALL CONSIDERATIONS WE HAVE TO TAKE INTO

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CONSIDERATION WHEN WE ARE GIVING THIS MONEY BACK. HE ALSO WANT TO TALK A LITTLE BIT ABOUT THE ARGUMENT THAT I THINK IS COMPELLING AROUND MAKING SURE THAT ENOUGH PEOPLE DO THIS THAT THE FIRES DO STOP. I ALSO THINK THAT WE HAVE BEEN OPEN AND CLEARLY INTERESTED IN SUPPORTING REQUIREMENTS FOR EVERYONE IN THE COMMUNITY TO ADOPT IT. AND TO PROVIDE FINANCIAL ASSISTANCE TO THOSE WHO NEED IT. THIS WOULD BE FINANCIAL ASSISTANCE FOR THOSE WHO DO NOT NEED IT. AND I JUST DON'T THINK THAT'S REASONABLE. I WANT TO THANK EVERYBODY WHO HAS WORKED ON THIS. I THINK THE ORIGINAL ITEM IS REALLY IMPORTANT AND I'M GLAD WE ARE WORKING ON IT. YOU JUST DON'T THINK THE SUPPLEMENTAL ALIGNS WITH OUR CITY PRIORITIES. I WANT TO HEAR WHAT WE WOULD BE WILLING TO GIVE UP.

>> MAYOR ISHII: OKAY, THANK YOU. SO COUNCILMEMBERS TAPLIN AND O'KEEFE HAVE INDICATED THEY ARE INTERESTED IN SPEAKING. SO I'M GOING TO GO BACK, STARTING WITH COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU, I WANT TO POINT OUT THE POLICY COMMITTEE RECOMMENDATION INCLUDES, ALONG WITH A REQUEST TO STAFF TO SUBMIT AN AMENDED ORDINANCE THE INCLUSION OF ANALYSIS AND OPTIONS FOR AN ELIGIBILITY CAP BASED ON HOME VALUE. TO ME, IT SOUNDS LIKE THE COMMITTEE GAVE A RECOMMENDATION THAT WOULD ALLOW FOR OPTIONS TO BE RETURNED. SO I DON'T THINK THAT THIS CONVERSATION NECESSARILY WILL END IF WE DON'T VOTE FOR THE

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SUPPLEMENTAL. BUT I DO THINK THE ANALYSIS AND THE OPTIONS ARE GOING TO BE IMPORTANT FOR US TO HAVE BEFORE WE AGREE TO, FOR US TO CONSIDER ALONGSIDE THIS QUESTION WHETHER TO EXEMPT HOMES IN EXCESS OF $300 MILLION IN VALUE.

>> MAYOR ISHII: $3 MILLION. COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: THANK YOU. I PRESSED THE BUTTON BECAUSE I HAVE AN ANSWER WHAT ARE WE GIVING UP FOR THIS MONEY. THINK ABOUT HOW MUCH MONEY THE CITY WOULD LOSE IF WE HAD A CATASTROPHIC PACIFIC PALISADES LEVEL WILDFIRE IN THE HILLS. HOW MUCH MONEY WOULD WE LOSE AS A CITY. THE CHANCES OF THAT ARE SMALL. BUT MATHEMATICALLY, IF YOU MAKE IT SLIGHTLY SMALLER, YOU ARE ACTUALLY SAVING MONEY, IN A PROBABILISTIC SENSE. BUT WE ARE PROTECTING OUR CITY'S REVENUE BY MAXIMIZING THE NUMBER OF HOMES THAT ARE HARDENED. BECAUSE WE ARE LOWERING THE CHANCES OF A CATASTROPHIC WILDFIRE WHICH WOULD HAVE DEVASTATING CONSEQUENCES.

>> MAYOR ISHII: COUNCILMEMBER LUNAPARRA, HAVE SOMETHING ELSE YOU WANTED TO ADD?

>> C. LUNAPARRA: YES, WHEN HOMES DO HOME HARDENING, IT ALSO INCREASES THE VALUE OF THEIR PROPERTY, MAYBE NOT AS MUCH AS THE REBATE, BUT THERE'S AN INCENTIVE ALSO FOR HOMEOWNERS TO DO THAT. I APPRECIATE THAT ANSWER. AND I THINK YOU ARE RIGHT IN A LARGER SENSE. BUT WE ARE GOING TO HAVE TO MAKE POLICY DECISIONS, WE ARE STILL GOING TO HAVE TO ADOPT A BUDGET NEXT YEAR.

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>> MAYOR ISHII: OKAY, OTHER COMMENTS? SORRY, COUNCILMEMBER TREGUB?

>> I. TREGUB: NO PROBLEM. SO IT IS 1:38 A.M. WHERE I'M AT AND I'M DOING MY BEST TO DO MATH AS QUICKLY AS COUNCILMEMBER KESARWANI. I DO NOT WANT TO HOLD THIS IMPORTANT ITEM UP. SO IF THERE WAS A VOTE ON IT, I WOULD REQUEST THAT WE SEVER OUT THE PORTION THAT REMOVES THE CAP. AND I WOULD BE INTERESTED IN HAVING ADDITIONAL DISCUSSION BECAUSE I UNDERSTAND IT'S NOT AS SIMPLE AS A BASIC DOLLARS AND CENTS CONVERSATION. BUT I DON'T KNOW IF $3 MILLION IS THE RIGHT NUMBER. I WOULD BE OPEN LOOKING AT OPTIONS THAT INCLUDE A SUNSET. MAYBE WE CAN INCENTIVIZE GETTING TO THAT HARD MENTALITY OVER A COURSE OF A FEW YEARS AFTER IMPLEMENTATION AND THEN PHASE IT DOWN OR OUT. I JUST DON'T KNOW WHAT THAT MEANS RIGHT NOW IN TERMS OF DOLLARS AND CENTS.

>> MAYOR ISHII: COUNCILMEMBER, MAYBE I COULD ASK A QUESTION OF OUR CITY MANAGER HOW THAT $3 MILLION DOLLAR NUMBER CAME TO BE. THAT MAY BE HELPFUL FOR COUNCILMEMBER TAPLIN AND TREGUB'S QUESTION.

>> CITY MANAGER BUDDENHAGEN: IT'S TWO TIMES THE MEDIAN, AND MEASURE W.

>> MAYOR ISHII: THERE'S AN EASE OF IMPLEMENTATION GIVEN THOSE NUMBERS.

>> CITY MANAGER BUDDENHAGEN: IT'S MORE LIKE DOUBLE THE MEDIAN

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FELT LIKE A LOT.

>> MAYOR ISHII: COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU. THESE ARE INTERESTING POINTS COUNCILMEMBER LUNAPARRA BROUGHT UP, THE HOME VALUE BEING ENHANCED BY THE HOME HARDENING. MY COLLEAGUE NEXT TO ME TALKED ABOUT A COMPROMISE. IF YOU WANT TO GO BACK TO THE COMMITTEE AND THINK OF SOME IDEAS AROUND THIS? NO?

>> MAYOR ISHII: SORRY, I HAVEN'T GOTTEN A CHANCE TO SPEAK YET. I WOULD LIKE TO SPEAK AND WE CAN COME BACK. I'M REACHING THE POINT OF THE HOUR I'M STARTING TO RAISE MY VOICE. YEAH, I JUST WANT TO SAY WE DID DISCUSS THIS AT BUDGET AND FINANCE. I WANT TO TELL YOU ALL THIS MORNING, COUNCILMEMBERS KESARWANI AND BLACKABY AND I RECEIVED REPORTS ON THE DISMAL STATE OF THE MARINA FUND AND PARKING FUND. WE ARE TALKING ABOUT A $28 MILLION AT LEAST STRUCTURAL DEFICIT. AND I HAVE TOLD PEOPLE THAT I CAN NOT IN GOOD FAITH SUPPORT US LOSING ANY MORE MONEY, PERIOD. LIKE I JUST THINK THAT IS SOMETHING WE NEED TO HAVE A CONVERSATION ABOUT. IT'S TOUGH, I HEAR YOU. WE HAVE ALL BEEN INCREDIBLY SUPPORTIVE OF THE FIREWORK OF EMBER, OF HOME HARDENING. WE ARE TRYING TO FIND OTHER WAYS, I WANT TO MAKE SURE FOLKS UNDERSTAND, THIS IS NOT THE ONLY WAY WE ARE SUPPORTING PEOPLE IN THEIR HOMES. WE ARE CONSIDERING THE TRADE-OFFS HERE. I WANT TO ADDRESS THE CUT OFF ARGUMENT. THAT'S JUST HOW POLICIES WORK, THERE'S A CUT OFF, IT

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SUCKS, I'M SORRY, IT'S CHALLENGING TO FIGURE OUT WHAT THE RIGHT NUMBER IS, BUT $3 MILLION FOR A HOME FOR ME IS A LOT. SO MANY CAN'T EVEN AFFORD TO BUY A HOME. WE ARE TALKING ABOUT PEOPLE WHO ARE AFFORD TO BUY A $3 MILLION OR IN THE NEXT FIVE YEARS THEY WILL SELL THEIR HOME AND IT WILL BE $3 MILLION. I THINK WE NEED TO THINK ABOUT THAT. WE JUST REALLY, TO ME, I CANNOT IF IN GOOD FAITH SUBSIDIZE A MULTI-MILLION DOLLAR HOMES. PEOPLE WHO OWN THEM. EVEN THIS ITEM IN GENERAL, I ACTUALLY THOUGHT THE CAP SHOULD HAVE BEEN LOWER. I WAS WILLING TO GO UP TO $3 MILLION, THE FACT WE ARE TALKING ABOUT THIS, I'M SORRY, I REACHED A LATE HOUR. LIKE I SAID, I'M LOSING MY COOL. BUT THAT'S REALLY HARD FOR ME. WE NEED TO REMEMBER THAT ALL OF THESE DECISIONS MATTER. WE ARE TALKING ABOUT VERY LIKELY HAVING TO LAY PEOPLE OFF. SO WHEN WE ARE TALKING ABOUT TRADE-OFFS, THIS IS WHAT WE NEED TO BE THINKING ABOUT. AND JUST TO MAKE SURE IT'S CLEAR, I'M NOT ARGUING WE DON'T NEED TO MAXIMIZE COMPLIANCE, I'M SAYING WE SHOULDN'T SUBSIDIZE THOSE WHO CAN AFFORD A $3 MILLION HOUSE. THAT'S WHERE I AM. I'M HAPPY TO TAKE MORE COMMENTS BUT WE HAVE NO MOTION ON THE FLOOR. COUNCILMEMBER, WHO IS NEXT? COUNCILMEMBER BLACKABY?

>> B. BLACKABY: I WOULD LIKE TO, I GUESS PROPOSE AN AMENDED MOTION. LET ME SHARE, I JUST HAPPEN TO HAVE SOME OTHER LANGUAGE IN MY BACK POCKET. THIS LANGUAGE BASICALLY FIXES WHAT MARK

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DESCRIBED AS THE CLIFF. WHERE IF YOU ARE AT $3.001 YOU GET NOTHING AND $2.999 YOU GET SOMETHING. [READING TEXT ON SCREEN] I'M WILLING, IN THE SPIRIT OF KIND OF A COMPROMISE TO SAY GREAT, WE WILL TAKE HOME VALUES OF MORE THAN $3 MILLION OFF THE TABLE. BUT EVERY HOUSE UP TO $3 MILLION GETS THE FULL VALUE OF THE TAX CREDIT. AND IF YOU HAVE MORE THAN $3 MILLION YOU ARE LIMITED AT $3 MILLION. MY COMPROMISE WOULD BE TO INCLUDE THE WOODY VEGETATION AND THIS CAP INSTEAD OF THE CURRENT STAFF CAP. THAT'S MY MOTION.

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: OKAY, I WILL MAKE A MOTION FOR THE ORIGINAL STAFF REPORT BUT INCLUDE THE PART ABOUT THE EFFORT OF THE LANGUAGE. I'VE BEEN CALLING IT SHRUBBERY. OF THE WOODY VEGETATION. INCLUDING THE WOODY VEGETATION BUT KEEPING THE CAP THE WAY IT WAS BEFORE. THERE IS NOW A MOTION AND SUBSTITUTE MOTION ON THE FLOOR BUT I NEED A SECOND.

>> T. TAPLIN: I WILL SECOND. JUST TO CLARIFY YOU ARE MOVING THE ORIGINAL WITH THE POLICY RECOMMENDATION?

>> MAYOR ISHII: YES, BUT THE ADDITION OF THE WOODY -- WHAT DID WE JUST SAY, I'M SORRY? WOODY VEGETATION. THANK YOU.

>> T. TAPLIN: WONDERFUL. I SECOND.

>> MAYOR ISHII: OKAY, GOING BACK TO THE ORDER. COUNCILMEMBER KESARWANI?

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>> R. KESARWANI: YES, I WANTED TO, CAN I PROPOSE A FRIENDLY AMENDMENT TO BOTH MOTIONS? OKAY. WHAT I WOULD LIKE TO DO, SO IN REVIEWING THIS ITEM TODAY, WE REALIZE THAT IT WASN'T NECESSARILY CLEAR THAT THE ONE-THIRD IS BASED ON THE BASE TRANSFER TAX PERCENTAGE OF 1.5%. IT'S VERY CLEAR THE SEISMIC REBATE ONLY APPLIES TO THE 1.5% AND WE HAVE LANGUAGE IN THE BERKELEY MUNICIPAL CODE. WE DON'T HAVE IT FOR THIS HOME HARDENING REBATE. I WANT TO PROPOSE IN L1, THE LAST CLAUSE SHALL NOT EXCEED THE MAXIMUM OF ONE-THIRD OF THE BASE 1.5% TRANSFER TAX PAID PER PROPERTY.

>> MAYOR ISHII: YEAH, THAT'S GOOD FOR ME.

>> R. KESARWANI: AND THEN COUNCILMEMBER BLACKABY, IS THAT ACCEPTABLE TO AS WELL?

>> MAYOR ISHII: AND OUR SECONDERS. GREAT.

>> R. KESARWANI: THAT IS IN THERE. THANK YOU VERY MUCH.

>> MAYOR ISHII: OKAY, MOVING ON. COUNCILMEMBER TAPLIN IS NEXT AND COUNCILMEMBER TREGUB TO YOU.

>> T. TAPLIN: THAT WAS TO MAKE A SUBSTITUTE MOTION AND IT HAPPENED.

>> MAYOR ISHII: COUNCILMEMBER TREGUB? DID YOU HAVE A --

>> I. TREGUB: YEAH.

>> MAYOR ISHII: OR DO YOU WANT TO JUST VOTE?

>> I. TREGUB: THIS MIGHT BE ABOUT BOTH MOTIONS. I JUST WANTED TO

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SEE IF WE COULD ORIGINALLY I WAS RAISING MY HAND TO ASK IF WE COULD REFER THIS NEW AMENDMENT TO THE CITY MANAGER FOR ANALYSIS ABOUT THE FEASIBILITY OF HOW THIS COULD BE ENFORCED AND THE COST OF STAFF TIME ASSOCIATED WITH ENFORCEMENT. SO I WOULD STILL BE INTERESTED IN, YOU KNOW, I UNDERSTAND THE POLICY ISSUES HERE. I THINK WE WOULD BENEFIT FROM MORE ANALYSIS AND WHICHEVER MOTION PASSES, I HOPE WE CAN BRING THIS BACK FOR FURTHER DISCUSSION AT A LATER POINT. BUT I GUESS, THAT SAID, I WILL BE, FOR NOW SUPPORTING THE SUBSTITUTE.

>> MAYOR ISHII: OKAY, SO GETTING MORE INFORMATION ABOUT AFTER.

>> I. TREGUB: YES.

>> MAYOR ISHII: OKAY, ALL RIGHT. SO WE ARE VOTING ON THE SUBSTITUTE MOTION, WHICH HAS COUNCILMEMBER KESARWANI'S CHANGE. THE ORIGINAL STAFF REPORT, INCLUDING THE CAP, AND ADDING THE WOODY VEGETATION ONTO THERE. SO WE ARE GOING TO FIRST TAKE A VOTE ON THE SUBSTITUTE.

>> CITY CLERK: AND THE NEW LANGUAGE AT THE END.

>> MAYOR ISHII: YES, THAT WAS COUNCILMEMBER KESARWANI'S ADDITION OR CHANGE.

>> CITY CLERK: JUST SO I HAVE, IN CASE WE GET TO THE MAIN MOTION. COUNCILMEMBER BLACKABY, COUNCILMEMBER KESARWANI'S NEW ADDITION IS JUST ADDED TO WHAT YOU HAVE ON THE SCREEN?

>> B. BLACKABY: THAT'S RIGHT.

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>> CITY CLERK: OKAY. OKAY, ON THE SUBSTITUTE MOTION, THE ORIGINAL LANGUAGE IN THE ITEM PLUS THE WOODY VEGETATION AND COUNCILMEMBER KESARWANI'S AMENDMENT, ON THE MOTION COUNCILMEMBER KESARWANI?

>> R. KESARWANI: CAN I ASK SOMETHING. WITH THIS SUBSTITUTE MOTION, I DON'T THINK WE NEED TO MAKE ANY CHANGE HERE BUT WANT TO SAY FOR THE RECORD, IF THE SUBSTITUTE MOTION PASSES, COUNCILMEMBER BLACKABY COULD STILL DO A BUDGET REFERRAL, PERHAPS. BECAUSE I THINK WHAT'S GIVING ME PAUSE RIGHT NOW IS TO INCUR GREATER COST WITHOUT THE BUDGET PICTURE. SO I JUST WANTED TO NOTE THAT IT COULD STILL BE CONSIDERED AS PART OF THE BUDGET PROCESS, I GUESS THAT WOULD INCLUDE CHANGING THIS ORDINANCE, WHICH COULD HAPPEN. THAT'S ALL I WANTED TO SAY, THANK YOU.

>> CITY CLERK: ON THE SUBSTITUTE MOTION, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

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>> S. O'KEEFE: ABSTAIN.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: INTO. NO.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: NO.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, THAT MOTION CARRIES. SO THE ITEM IS CONCLUDED.

>> M. HUMBERT: OKAY, WE NEED TO EXTEND TIME.

>> MAYOR ISHII: IT'S 10:50.

>> M. HUMBERT: ISN'T IT 11:00 OR MIDNIGHT?

>> MAYOR ISHII: 11:00, SORRY. I'M JUST TRYING TO THINK ABOUT HOW MUCH TIME THIS ITEM MIGHT TAKE. LET'S EXTEND TO 11:45 JUST TO BE SAFE, AND THEN WE WON'T HAVE TO DO IT TWICE, HOW IS THAT?

>> SO MOVED.

>> SECOND.

>> MAYOR ISHII: CAN YOU TAKE A ROLL, PLEASE.

>> CITY CLERK: TO EXTEND TO 11:45, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN TO EXTEND?

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>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR ISHII: YES. THANK YOU, MARK FOR BEING OUR TIME WATCHER. APPRECIATE YOU. WE ARE MOVING ONTO ITEM 33. TELEGRAPH MULTI-MODAL CORRIDOR PROJECT CONCEPTUAL DESIGN. HI, THANK YOU FOR WAITING.

>> WE WILL GET RIGHT TO IT AS ELLIOT LOGS IN. GOOD EVENING, LAST ITEM OF THE NIGHT . WE HAVE A SHORT PRESENTATION. I WANT TO INTRODUCE THE TEAM AT THE TABLE AND WE HAVE SOME OTHER FOLKS IN THE ROOM, ELLIOT SWIMMER, OUR SENIOR TRANSPORTATION PLANNER AND THADDEUS WOZNIAK, CONSULTANT TEAM, DIRECTOR OF ENGINEERING,

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THOSE TWO WILL HANDLE THE PRESENTATION TODAY AND ANSWER QUESTIONS AT THE CONCLUSION. SO ONCE YOU ARE READY, ELLIOT? WE WILL GET STARTED.

>> THANK YOU.

>> CITY CLERK: WHAT NAME ARE YOU UNDER?

>> I'M ON THE STREAM. I NEED A ZOOM LINK.

>> CITY CLERK: OH, YOU NEED A ZOOM LINK. LET'S SEE. MIGHT BE EASIEST IF YOU WENT TO THE ONLINE AGENDA AND JOINED FROM THE -- WELL, I'M GOING TO NEED AN EMAIL ADDRESS THE

>> WHAT'S EASIEST, IF I JOIN FROM THE STREAM?

>> CITY CLERK: NO, THERE'S AN ONLINE AGENDA.

>> SORRY ABOUT THAT, THANK YOU FOR YOUR PATIENCE, I'M ELLIOT SCHWIMMER, SENIOR TRANSPORTATION PLANNER, HAPPY TO DISCUSS THE TELEGRAPH AVENUE MULTI-MODAL CORRIDOR. YOU WILL TRY TO GO FAST. THE RECOMMENDATION IS TO ADOPT A RESOLUTION APPROVING THE RECOMMENDED CONCEPTUAL DESIGN OF THE PROJECT AND DIRECT THE CITY MANAGER TO DIRECT STAFF TO PROCEED WITH DETAILED ENGINEERING AND DESIGN OF THE PROJECT. IN THIS PRESENTATION WE WILL REVIEW EXISTING CONDITIONS AND ANALYSIS, REVIEW THE CONCEPT DESIGN SELECTION PROCESS, SUMMARIZE STAKEHOLDER FEEDBACK, SURVEY RESULTS, DISCUSS THE RECOMMENDED CONCEPTUAL DESIGN, CONCEPT 3B AND DISCUSS NEXT STEPS. SO THE PROJECT WAS TELEGRAPH AVENUE FROM DWIGHT WAY TO WOOLSEY STREET, OAKLAND BORDER, ABOUT 0.8 5 MILES.

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IT IMPLEMENTING THE FOLLOWING PLANS, THE 2026 MAJOR CORRIDOR STUDY FROM AC TRANSIT, 2017 BIKE PLAN, 2020 VISION ZERO ACTION PLAN, 2020 PEDESTRIAN PLAN, 2023 TRANSIT FIRST POLICY IMPLEMENTATION PLAN AND 2025 BIKE PLAN UPDATE, JUST A DRAFT. SUMMARY OF EXISTING CONDITIONS. LINE 6 OPERATES ON THE CORRIDOR, THE THIRD HIGHEST RIDERSHIP IN BERKELEY. 12 MINUTE HEAD WAYS, 4600 DAILY RIDERS OVERALL. FOR DRIVING THERE'S A 25 MILE PER HOUR SPEED LIMIT, ROUGHLY ONE THIRD OF DRIVERS ARE DRIVING OVER THIS SPEED. FOR WALKING PEDESTRIANS THEY ARE ALONG CROSSING DISTANCES, CURB TO CURB WIDTH, 68-74 FEET. TWO PARKING LANES AND FOUR TRAVEL LANES, RECENTLY UPDATED CURB RAMPS. BIKE, FADING AND DETERIORATING CONVENTIONAL BIKE LANES, NARROW LOCATED WITHIN DOOR ZONE. PEOPLE ARE FREQUENTLY RIDING IN GENERAL TRAFFIC LANE. PARKING, AVERAGE ON CORRIDOR UTILIZATION 58%. OFF CORRIDOR UTILIZATION, THERE ARE 5 P 7 PUBLIC SPACES ON SIDE STREETS WITHIN A ONE BLOCK WALK OF TELEGRAPH, UTILIZATION OFF CORRIDOR IS 62%. REGARDING VISION ZERO, BETWEEN 2013-2025, THERE WERE 21 SEVERE INJURIES AND 107 MINOR INJURIES WITHIN THE PROJECT AREA. THIS SLIDE SHOWS AWE TIMELINE OF PUBLIC MEETINGS. IN 2022, WE HAD THE FIRST PUBLIC MEETING PRESENTED TO THE TELEGRAPH BUSINESS IMPROVEMENT DISTRICT. 2023, MET WITH THE WILLARD NEIGHBORHOOD ASSOCIATION. WE MET WITH FACILITIES, INFRASTRUCTURE AND TRANSPORTATION, WE MET WITH FITES. HAD A PUBLIC MEETING, MET

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WITH TBEG AGAIN AND HERE WE ARE TODAY. SUMMARY OF STAKEHOLDER FEEDBACK. AC TRANSIT AND UC BERKELEY FAVOR MAXIMUM TRANSIT BENEFITS. CONCEPT ONE OR TWO. WALK BIKE BERKELEY SUPPORTS STAFF'S RECOMMENDATION AND FULL CLOSURE OF THE DWIGHT TRIANGLE. TELEGRAPH BUSINESS IMPROVEMENT DISTRICT SUPPORT STAFF'S RECOMMENDATION. PUBLIC SURVEY RESULTS HAD OVER 500 RESPONSES FAVOR PEDESTRIAN AND BIKE SAFETY IMPROVEMENTS AND THE CHART ON THE RIGHT IS ONE RESPONSE FROM THE SURVEY SHOWS 54% OF RESPONDENTS FAVOR CONCEPT 3. THERE WERE CONVERSATIONS AROUND PARALLEL BIKE BOULEVARDS AND CONCERNS AROUND REMOVING LEFT TURNS AROUND CONCEPTS 1 AND 2 AND TRANSPORTATION AND INFRASTRUCTURE COMMISSION CONCUR WITH STAFF'S RECOMMENDATION BUT REQUEST WE WORK WITH TRANSIT TO CONSIDER REDUCING TRANSIT DELAY. RETURN TO TIC WITH OPTIONS FOR DWIGHT TRIANGLE CLOSURE. WE MET WITH THE FIRE DEPARTMENT THREE TIMES TO SOLICIT FEEDBACK. THE FIRE MARSHAL EXPRESSED SUPPORT FOR CONCEPT 3. 1, AND 2 AND 3 BEFORE WE DEVELOPED CONCEPT 3B. THE FIRE MARSHAL SAID IT WOULD BE MORE CONDUCIVE FOR USERS. THEY ALSO CLARIFIED ACCESS REQUIREMENTS. WHICH ARE THAT FIRE APPARATUS CAN GET WITHIN 15-30 FEET OF A BUILDING WITH AN UNOBSTRUCTED STREET WIDTH OF 26 FEET NEAR BUILDINGS 30 FEET OR TALLER. MAINTAIN LEFT TURN AT WEBSTER FOR ACCESS TO ALTA BATES HOSPITAL. MAINTAIN ACCESS TO DERBY AND STUART FOR FIRE APPARATUS. TRAFFIC CALMING DEVICES IN THE CENTER

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TURN LANE SHOULD BE DESIGNED TO PERMIT EMERGENCY VEHICLES TO PASS THROUGH THEM. WE TALKED ABOUT MOUNTABLE RAISED BIKEWAY BUFFERS VERSUS PAINT-ONLY BUFFERS. THEY ASKED FOR PARKING ENFORCEMENT OF THE CENTER TURN LANE INCLUDING WEEKENDS TO MAKE SURE IT'S CLEAR. AND THEY EXPRESSED THEY DO NOT SUPPORT CLOSURE OF THE DWIEL TRIANGLE SLIP LANE. IN TERMS OF BUSINESS IMPACTS, PAST RESEARCH ON THE IMPACTS OF BIKING, WALKING AND OTHER ROAD SAFETY INFRASTRUCTURE HAS FOUND NO CAUSAL IMPACT OF THESE TYPES OF CHANGES ON BUSINESS EMPLOYMENT, REVENUE AND TURNOVER, AND THAT BIKE LANES CAN PROVIDE POSITIVE ECONOMIC IMPACT. WE DID DOOR TO DOOR OUTREACH. PURPOSE OF OUTREACH WAS TO UNDERSTAND COMMERCIAL LOADING NEEDS. WE LEARNED MOST BUSINESSES RECEIVED DELIVERIES 2-3 TIMES PER WEEK. SOME BUSINESSES HAVE OFF STREET LOADING BUT MANY RECEIVE VEHICLES LOADING ON TELEGRAPH AVENUE. SOME BUSINESSES OPPOSED BIKE LANES, OTHERS SUPPORT THEM. BUT WE LEARNED THERE'S A NEED FOR LOADING ON TELEGRAPH. WE ALSO UNDERTOOK FOCUSED OUTREACH WITH THE DISABILITY COMMITTEE. WE PRESENTED IN JUNE SPECIFICALLY REGARDING THIS PROJECT AND HAD ONGOING CONVERSATIONS WITH THE COMMUNITY ABOUT COMPLETE STREETS DESIGN CONSIDERATION. IN OUR JUNE MEETING WE HEARD IT'S DIFFICULT TO DEPLOY AND OPERATE WHEELCHAIR RAMPS IN PROTECTED BIKE LANES. THEY SAID THE PROJECT SHOULD INCORPORATE ACCESSIBLE PEDESTRIAN SINGLES, CONCERN ABOUT CONSTRUCTION IMPACTS ON

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ACCESSIBILITY, SUGGEST EVALUATING PAST PROJECTS AND LESSONS LEARNED FOR FUTURE PROJECTS. THEY HAD GENERAL FEEDBACK REGARDING OUR DELIVERY PROCESS. THAT SHOULD BE IN EARLY PLANNING AND DEVELOPMENT SCOPING PROJECTS. THAT THE CITY SHOULD CONSULT AN ADA EXPERT WITH EXPERIENCE DESIGNING CYCLE TRACKS FOR ACCESSIBILITY. GENERAL FEEDBACK REGARDING PROTECTED BIKEWAYS. THEY AREN'T NECESSARILY LEGIBLE TO IMPAIRED PERSONS, THEY CAN'T PREDICT WHEN A BIKE WILL BE THERE. STREETS HAVE GOTTEN LESS ACCESSIBLE FOR VISUALLY IMPAIRED PEOPLE DUE TO QUIET OR SILENT CARS AND BIKES. FOR ZERO WASTE, PUBLIC WORKS DEPARTMENT WE WALKED THE CORRIDOR WITH ZERO WASTE SUPERVISORS, THEY SAID MAINTAINING EXISTING DRIVEWAYS, CAN ACCESS DUMPSTERS, PLASTIC CARTS CAN BE SERVICED THROUGH BIKE AND FLOATING PARKING LANE. INCREASING DISTANCE BETWEEN THE CURB AND TRUCK. MOVING ONTO THE INITIAL CONCEPT SCHEMATICS. THESE SLIDES ARE HARD TO READ BUT THE GREEN REPRESENTS BIKE LANES, GRAY IS VEHICLE TRAVELING AND RED ARE BUS-ONLY LANES. THE INITIAL CONCEPT ONE HAS TWO TRAVEL LANES IN EACH DIRECTION, ONE GENERAL PURPOSE, ONE TRANSIT RIGHT TURN AND DRIVEWAY ACCESS LANE ALSO KNOWN AS BUSINESS ACCESS AND TRANSIT LANE OR BAT LANE. CONCEPT 1 MAXIMIZES PARKING BY ELIMINATING LEFT TURN POCKETS, ELIMINATE LEFT TURNS AT 15 OF 18 INTERSECTIONS. CONCEPT 2 IS SIMILAR TO CONCEPT ONE. HAS TWO TRAVEL LANES IN EACH DIRECTION, MORE LEFT TURN POCKETS AND

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OPPORTUNITIES INSTEAD OF JUST WEBSTER AND ASHBY, UNDER CONCEPT ONE IT WOULD ALLOW LEFT TURNS AT STUART AND PARKER STREET BUT MAKING OTHER TRADE-OFFS, REMOVING TRAFFIC AND LOADING AND ELIMINATING FLOATING STOPS. ELIMINATE 11 OF 15 TURNS. INITIAL CONCEPT 3 IS CONTINUATION OF OAKLAND DESIGN ON TELEGRAPH. THE IMPORTANT CONTEXT IS OAKLAND APPROVED A ROAD DIET DESIGN FROM DOWNTOWN OAKLAND TO THE BERKELEY BORDER. INITIAL CONCEPT 3 REDUCES TRAVEL LANES TO ONE IN EACH DIRECTION, MAXIMIZES LEFT TURN POCKETS, OPPORTUNITIES INCLUDES CONTINUOUS CENTER TURN LANE. SINCE THE PUBLIC OUTREACH FOR INITIAL CONCEPTS WE DEVELOPED A REVISED CONCEPT, 3B WE FEEL IS A COMPROMISE BETWEEN WHAT WE HEARD FROM THE PUBLIC AND FEEDBACK FROM AC TRANSIT. THIS SLIDE SHOWS THAT COMPROMISE OR RECOMMENDED CONCEPT 3B. WE DEVELOPED THIS BECAUSE WE IDENTIFIED MOST OF THE TRANSIT DELAY UNDER CONCEPT 3 WAS OCCURRING NEAR ASHBY, WITH TARGETED TRANSIT IMPROVEMENTS AROUND ASHBY WE CAN ELIMINATE MOST OF THE TRANSIT DELAY, INCLUDES PRIORITY ELEMENTS FROM WEBSTER TO RUSSELL FOR THREE BLOCKS, BAT LANES AND Q JUMPS TO ALLOW THE BUS TO REENTER TRAFFIC AHEAD OF THE OTHER VEHICLES. OTHERWISE THIS CONCEPT IS THE SAME AS INITIAL CONCEPT 3. THIS SLIDE SHOWS A PLAN VIEW WARD TO WARD SEGMENT IN 3B, IT MIRRORS DESIGN FEATURES OF OAKLAND'S TELEGRAPH COMPLETE STREETS CONCEPT ALONG THE ENTIRE ROUTE. INCLUDES A CLASS 4 BIKE LANE, FLOATING PARKING, LANE LOADING,

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CENTER TURN LANE. THIS SLIDE SHOWS PLAIN VIEW OF ASHBY TO WEBSTER SEGMENT UNDER 3B. IN THIS IT LOOKS SIMILAR TO CONCEPTS ONE AND TWO BETWEEN WEBSTER AND RUSSELL TO MITIGATE MUCH OF THE TRANSIT DELAY WHICH OCCURS AS A RESULT OF CONGESTION AT ASHBY AND TELEGRAPH INTERSECTION. WE STILL FORECAST 3B WILL DELAY TRANSIT UP TO 10% BUT WE WILL LOOK AT OPPORTUNITIES TO REFINE TO MINIMIZE TRAFFIC IMPACTS DURING DETAILED ENGINEERING. THERE ARE A NUMBER OF STRATEGIES TO REDUCE OR ELIMINATE THIS TRANSIT DELAY, SUCH AS PERMISSIVE LEFT TURN INSTEAD OF PROTECTED PHASING. CAN MAINTAIN BAT LANE BEYOND. COULD EXTEND LEFT TURN LANES AND TWEAK SINGLE TIMING AT OTHER INTERSECTIONS. ALL THESE THINGS WILL BE LOOKED AT TURING THE LATER PHASES. I ALSO WANT TO MENTION THE MODELING FOR THIS PROJECT DOES NOT INCLUDE THE TRANSIT SINGLE PRIORITY BENEFITS THAT AC TRANSIT RECENTLY IMPLEMENTED AS PART OF THE TELEGRAPH RAPID CORRIDORS PROJECT. NEXT SLIDE. LEFT TURN IMPACTS. EVERY CONCEPT WILL IMPACT LEFT TURNS OFF THE CORRIDOR, CONCEPT ONE WOULD MAINTAIN TWO LEFT TURN OPPORTUNITIES, CONCEPT 2, FOUR LEFT TURN OPPORTUNITIES. CONCEPT 3 WOULD MAINTAIN ALL LEFT TURNS EXCEPT DERBY, WOOLSEY BIKE BOULEVARDS WHERE LEFT TURNS WOULD BE PROHIBITED UNDER ALL CONCEPTS AND 3B WOULD MAINTAIN ALL LEFT TURNS EXCEPT AT THE THREE BIKE BOULEVARDS. THE MAP ON THE RIGHT SHOWS HOW SOMEONE WHO LIVES NEAR DERBY AND ELLSWORTH FOR EXAMPLE WOULD BE IMPACTED

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UNDER CONCEPT 1, DUE TO A NUMBER OF OTHER DIVERTERS IN THE AREA, IN PARTICULAR ALONG ASHBY, THEY WOULD HAVE TO TAKE A PRETTY CIRCUITOUS ROUTE TO ACCESS THE NEIGHBORHOOD WEST OF TELEGRAPH. THIS SLIDE SHOWS THE ESTIMATED IMPACT TO PARKING REVENUE FROM EACH OF THE CONCEPTS. PARKING REVENUE IN 2024 ALONG THE CORRIDOR WAS ABOUT $188,000. AVERAGE REVENUE PER SPACE AROUND $1,000, CONCEPTS 1 AND 2 WOULD ELIMINATE AND RESULT IN BETWEEN 81 TO 98,000 IN LOST REVENUE. THIS ASSUMES THE SPACES ARE OCCUPIED 100% OF THE TIME. THIS COULD BE CONSIDERED A WORST CASE SCENARIO OR MOST CONSERVATIVE. WOULD STILL RESULT IN NET LOSS OF PARKING OVERALL AND REDUCE PARKING FUND REVENUE BY ABOUT $30,000 ANNUALLY. THIS IS BASED ON CURRENT LEVEL OF DESIGN BUT WE EXPECT THESE TO CONTINUE CHANGING AS WE GET INTO DETAILED ENGINEERING AND WE FURTHER REFINE THE DESIGN. HERE IS AN EVALUATION MATRIX THAT COMPARES THE CONCEPTS AT A HIGH LEVEL. WE DID A QUANTITATIVE EVALUATION BUT THIS SUMMARIZES. EACH WAS RANKED ON ITS ACT TO MEET PROJECT GOALS. PUBLIC FEEDBACK ALSO INCORPORATED INTO THE SCORING. WE DETERMINED THAT CONCEPT 3B SCORED HIGHEST AMONG ALL CONCEPTS. AS CAN SEE ON THIS CHART, EXISTING CONDITIONS DOESN'T IMPACT ANY OF THE GOALS. CONCEPT 3 ACCOMPLISHES MOST OF THE PROJECT GOALS BUT SUBSTANTIALLY INCREASE TRANSIT TRAVEL TIMES, 3B ACCOMPLISHES MOST OF THE PROJECT GOAL, ACCOMPLISHES ALL AND MITIGATES CONCEPT 3'S IMPACT

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ON TRAVEL TIMES FOR THE MOST PART. SO WHY IS CONCEPT 3B THE RECOMMENDED CONCEPT DESIGN? WE IDENTIFIED ASHBY CONTRIBUTES OVER HALF OF THE INCREASE IN TRAVEL TIME AND 84% OF INCREASED TRAVEL TIME. THIS LED US TO BELIEVE WE COULD ELIMINATE MOST OR ALL TRANSIT DELAY WITH TARGETED IMPROVEMENTS AROUND A SHALL BY RATHER THAN THE ENTIRE CORRIDOR. CONCEPT 3B RESULTS IN SLOWER VEHICLE SPEEDS COMPARED TO 1 AND 2, SHORTER PEDESTRIAN CROSSING DISTANCES BECAUSE ONLY THREE LANES OF TRAFFIC TO CROSS INSTEAD OF FOUR OR FIVE. MAKE LEFT TURNS MORE PREDICTABLE, IT INCLUDES LEFT TURN POCKETS WHERE LEFT TURNS ARE ALLOWED. LEFT TURNS WOULD BE PREVENTED USING SIGNS ONLY. WE THINK THERE'S A POSSIBILITY DRIVERS USED TO MAKING LEFT TURNS ON THEIR STREETS FOR DECADES WOULD CONTINUE MAKING THOSE TURNING MOVEMENTS ILLEGALLY CREATING UNSAFE CONDITIONS. CONCEPT 3B MAINTAINS MOST PARKING AND LOADING, CONSISTENT WITH TELEGRAPH BUSINESS DISTRICT INPUT. ALIGNS WITH FIRE DEPARTMENT FEEDBACK AND CONSISTENT WITH THE OAKLAND DESIGN. SPECIFICALLY REGARDING THE DWIGHT TRIANGLE, WE LOOKED AT THREE OPTIONS AND DETERMINED ALL ARE FEASIBLE. OPTION ONE CLOSES THE SLIP LANE TO VEHICLE TRAFFIC AND CREATES NEW OPEN SPACE. THIS OPTION REQUIRES CHANGES TO REALIGN THE GEOMETRY OF THE INTERSECTION TO MAKE THE TURNING, TURNING SOUTHBOUND ONTO TELEGRAPH AND REQUIRES TURNING NORTHBOUND APPROACH ON TELEGRAPH INTO TWO LANE OR ONE LANE IN EACH WHICH REDUCES ROAD CAPACITY.

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OPTION TWO WOULD KEEP SLIP OPEN BUT REMOVE CROSSWALK. 3 WOULD KEEP SLIP LANE OPEN TO ALL. IT WOULD IMPROVE SAFETY FOR BICYCLISTS. OPTION ONE WOULD ADD ABOUT 15 SECONDS OF ADDITIONAL DELAY FOR NORTHBOUND VEHICLES INCLUDING TRANSIT. I SHOULD ADD THAT THE FIRE DEPARTMENT DOES NOT SUPPORT CLOSING THE SLIP LANE BUT WALK BIKE BERKELEY, TELEGRAPH BUSINESS IMPROVEMENT AND AC TRANSIT ARE ALL INTERESTED IN CLOSING THE SLIP LANE. YOU WANT TO CLARIFY THAT THE ITEM IN FRONT OF YOU DOESN'T MAKE A RECOMMENDATION REGARDING THE DWIGHT TRIANGLE SLIP LANE. HOWEVER, HAVING AN UNDERSTANDING OF THE COUNCIL'S POSITION WOULD HELP US BETTER UNDERSTAND HOW TO INCORPORATE. WE HEARD FROM FITES THE COMMITTEE WOULD LIKE IT CLOSED AND TIC ARE INTERESTED IN CLOSING THE SLIP LANE. ALL CONCEPT DESIGNS, COULD ACCOMMODATE A FULL CLOSURE OF THE DWIGHT TRIANGLE SLIP LANE. NEXT STEPS, ONCE COUNCIL APPROVES THE PROJECT WILL ADVANCE TO DETAILED ENGINEERING WHERE THERE WILL BE FURTHER OUTREACH TO PUBLIC AND TECHNICAL STAKEHOLDERS. WE HAVE REMAINING GRANT FUNDING. EARLIER WE WON A GRANT TO FUND DETAILED ENGINEERING THROUGH 100% PLANS. BUT WANT TO BE CLEAR THAT CONSTRUCTION IS NOT YET FUNDED. THAT IS THE FINAL SLIDE, SO THANK YOU FOR YOUR TIME. HAPPY TO ANSWER ANY QUESTIONS.

>> MAYOR ISHII: THANK YOU SO MUCH BECAUSE YOU ALSO GAVE US OUR 9:00 A.M. PRESENTATION AND HERE WE ARE OVER 12 HOURS LATER. SO

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THANK YOU. CLARIFYING QUESTIONS FROM FOLKS? YES. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU, I HAVE A COUPLE QUESTIONS FOR THE FIRE DEPARTMENT. THANK YOU SO MUCH. I WANT TO CLARIFY ONE OF THE POSITIONS. MY QUESTION IS AROUND, I GUESS I'M TRYING TO THINK THROUGH IT. IF THERE'S NO BUS LANE AND THERE'S ONE LANE GOING IN EACH DIRECTION, WHY IS THAT PREFERRED BY THE FIRE DEPARTMENT THAN HAVING A DEDICATED BUS LANE, ESPECIALLY GIVEN THAT ONE LANE WOULD HAVE TRANSIT STOPPING AND PROBABLY CAUSING TRAFFIC BEHIND IT. WHY IS THAT PREFERABLE HAVING A BUS LANE.

>> OUR EXPERIENCE WITH DEDICATED BUS LANES IS OFTEN TIMES THEY ARE OCCUPIED BY OTHER VEHICLES, DELIVERY DRIVERS PICKING UP AND DROPPING OFF FOOD. SO MUCH OF THE TIME THE BUS LANE IS NOT AVAILABLE FOR EMERGENCY RESPONSE. WE EXPERIENCED THAT ON A LOT OF THE BUILDS THAT HAVE HAPPENED RECENTLY. I'M NOT SURE HOW SIGNIFICANT A PREFERENCE THAT IS. I THINK WE CAN GO EITHER WAY. BUT THAT'S THE CONTEXT AND REASON BEHIND IT.

>> C. LUNAPARRA: THAT MAKES SENSE. YOU GUESS WHAT I'M THINKING THROUGH, I'M PICTURING CONCEPT 3B WHICH IS SIMILAR TO THE OAKLAND DESIGN. AND WHEN THE BUS STOPS, ALL THE CARS STOP BEHIND IT SO THEN IT KIND OF CREATES THIS BLOCK ON BOTH SIDES OF THE STREET SO THEORETICALLY THE FIRE TRUCK COULDN'T GET BY AT ALL, VERSUS --

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>> 3B, THE CENTER TURN LANE IS THE WHOLE LENGTH.

>> C. LUNAPARRA: THE MIDDLE LANE?

>> YEAH.

>> C. LUNAPARRA: THANK YOU. I THINK THAT'S THE QUESTION I HAVE FOR NOW. THANKS.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU, I HAVE TWO QUESTIONS. DURING THE PRESENTATION YOU SAID THAT THE REPORT DOESN'T FACTOR IN THE DATA FROM AC TRANSIT'S TRANSIT PRIORITY IMPROVEMENTS. IS THAT SOMETHING THAT CAN BE REPORTED OR SHARED WITH COUNCIL AS YOU MOVE INTO THE NEXT PHASE THE PROJECT?

>> YEAH, JUST TO CLARIFY, THE ANALYSIS WE DID, DID FACTOR IN THE IMPROVEMENTS THAT AC TRANSIT IS DOING BUT NOT TAKING CREDIT FOR THOSE. SO WE AREN'T COMING IN AND SAYING THE TRANSIT TRAVEL TIMES ARE GOING TO IMPROVE AS A RESULT OF THIS OTHER PROJECT. THE ANALYSIS WAS ONLY LOOKING AT GEOMETRIC CHANGES BEING PROPOSED AND NOT THE WORK THEY ARE DOING ON THE CORRIDOR.

>> T. TAPLIN: THANK YOU SO MUCH. THE TIC IS RECOMMENDING THAT STAFF CONTINUE TO WORK WITH AC TRANSIT TO INCREASE BUS TRAVEL TIME. DECREASE BUS TRAVEL TIME. THANK YOU. YOU DID MENTION SOME IMPROVEMENTS YOU IDENTIFIED, COULD YOU RESTATE THOSE, PLEASE.

>> YEAH, SO THE ANALYSIS THAT WE HAVE DONE TO DATE HAS REALLY BEEN A HIGH LEVEL SENSITIVITY ANALYSIS LOOKING AT THE CONCEPTS.

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SO WHILE OUR ANALYSIS RIGHT NOW SAYS THAT OH THERE COULD BE ABOUT A 10% INCREASE IN TRAVEL TIME ALONG THE CORRIDOR WE HAVEN'T GONE THROUGH THE NEXT PHASE OF DETAILED DESIGN AND REFINEMENT THAT COULD HELP US HONE IN THE NUMBERS AND WE THINK THERE ARE A NUMBER OF OPPORTUNITIES THERE TO IMPROVE TRAVEL TIMES. ONE IS LOOKING AT THE SIGNALS ALONG THE CORRIDOR AND SEE IF THERE ARE OPPORTUNITIES TO ALLOCATE MORE GREEN TIME AND LOOK FOR ADDITIONAL OPPORTUNITIES FOR SIGNAL COORDINATION TO HELP THE BUS MOVE FARTHER ALONG. WE KNOW THE SECOND MOST CONGESTED INTERSECTION IN TERMS OF DELAY ON TELEGRAPH IS THE ONE AT STUART, SO AS ELLIOT MENTIONED THERE ARE OPPORTUNITIES TO LOOK AT EXTENDING THAT TRANSIT LANE A LITTLE BIT FARTHER FORWARD AND LOOK AT HOW IMPROVEMENTS AT STUART SPECIFICALLY AROUND SIGNAL TIMING OR MAYBE A LANE IN ONE DIRECTION OR THE OTHER COULD HELP IMPROVE THE TRANSIT TRAVEL TIME AS WELL.

>> T. TAPLIN: THANK YOU VERY MUCH.

>> MAYOR ISHII: OKAY, THANK YOU. MOVING ONTO COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. MOST OF THE QUESTIONS I HAD HAVE ALREADY BEEN ASKED AND ANSWERED. I JUST WANT TO CONFIRM THAT THIS DESIGN MATCHES THE DESIGN, ESSENTIALLY MATCHES THE DESIGN OF THE OAKLAND IMPROVEMENTS THAT WILL END AT WOOLSEY RIGHT AT THE OAKLAND/BERKELEY CITY BORDER, IS THAT CORRECT?

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>> THAT'S CORRECT. UNTIL YOU GET TO WEBSTER.

>> M. HUMBERT: RIGHT. IF WE PUT IN OPTIONS ONE OR TWO, THAT WOULD BE FOR ALL TRAFFIC, INCLUDING THE BUSES, SORT OF A RADICAL CHANGE RIGHT AT THE BERKELEY BORDER FROM THE OAKLAND DESIGN TO A NEW BERKELEY DESIGN, ISN'T THAT CORRECT?

>> YEAH.

>> M. HUMBERT: YEAH. I SEE REAL VIRTUE IN THE DESIGN BEING REASONABLY CONSISTENT ALL THE WAY FROM TEMESCAL TO DWIGHT. ANYWAY, THOSE ARE THE QUESTIONS I HAD.

>> MAYOR ISHII: THANK YOU. WE HAVE TWO MORE QUESTIONS FROM OUR COUNCILMEMBER TREGUB AND O'KEEFE. SO IF FOLKS WANT TO START LINING UP FOR PUBLIC COMMENT, GO AHEAD AND START MAKING YOUR WAY OVER THERE. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: THANK YOU. I APOLOGIZE IN ADVANCE IF YOU DID COVER THIS CLEARLY. I'M VERY TIRED. I'M CURIOUS, HOW DID YOU INCORPORATE THE FEEDBACK FROM THE DISABILITY COMMUNITY?

>> WE WILL CONTINUE TO -- SO THEIR FEEDBACK WAS SPECIFIC TO THE DESIGN CONSIDERATIONS THAT WILL BE UNDERSTOOD AND FURTHER REFINED DURING DETAILED ENGINEERING AND DESIGN. BUT ONE ITEM THEY ASKED FOR AND SAID, ONE MEMBER OF THE COMMISSION ASKED FOR BLUE ZONES ON SIDE STREETS, SO THAT'S SOMETHING WE CAN LOOK AT, AT THE CORNER OF THE A.D.A. SPACES OP SIDE STREETS THEY CAN DEPLOY THE RAMP ON THE SIDEWALK AS OPPOSED TO IN THE BIKE LANE.

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>> S. O'KEEFE: THANK YOU. YOU SAID THE REST WILL BE ADDRESSED WHEN THE MORE DETAILED ENGINEERING ANALYSIS IS DONE.

>> THAT'S CORRECT.

>> S. O'KEEFE: MY SECOND QUESTION, I UNDERSTAND IT'S NOT PLANS FOR THE OAKLAND/BERKELEY TELEGRAPH ISN'T DONE YET BUT THE TEMESCAL IS COMPLETED. ARE THIS LOOK LIKE WHAT TEMESCAL LOOKS LIKE. WHAT ARE THE DIFFERENCE BETWEEN THIS AND THAT?

>> THAT'S ACCURATE. FROM WOOLSEY TO WEBSTER IT WOULD LOOK SIMILAR TO TEMESCAL AND POTENTIALLY NORTH WILL LOOK SIMILAR TO TEMESCAL.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB?

>> I. TREGUB: SEEING OFF COUNCILMEMBER O'KEEFE'S QUESTION ON FEEDBACK FROM THE DISABILITY COMMUNITY, CAN YOU CONFIRM DID THEY STATE A PREFERENCE FOR ONE OPTION OR ANOTHER OR WERE THESE GENERAL COMMENTS THAT ARE POTENTIALLY APPLICABLE TO ANY OF THE OPTIONS?

>> THEY DIDN'T EXPRESS ANY PREFERENCE FOR AN OPTION. THEY WERE GENERAL COMMENTS THAT APPLY TO THIS PROJECT AS WELL AS ANY OTHER COMPLETE STREETS PROJECT IN THE CITY.

>> I. TREGUB: OKAY. AND THEN, CAN YOU PROVIDE ANY MORE DETAIL ABOUT THE PROJECTED TIMELINE FOR THE DESIGN AND ENGINEERING PHASE, AS IT PERTAINS TO REALLY FIGURING OUT HOW TO MITIGATE THE 10% INCREASE IN TRAVEL TIME FOR BUSES IN OPTION 3B, AND FURTHER

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ENGAGEMENT WITH THE DISABILITIES COMMUNITY?

>> I CAN TAKE IT. WE INTEND TO CONTINUE REFINING THIS 3B OVER THE IMMEDIATE FUTURE. AS SOON AS COUNCIL APPROVES A CONCEPT DESIGN, WE WILL REFINE IT TO TRY TO ELIMINATE THE TRANSIT DELAY. THE DETAILED ENGINEERING WILL TAKE THAT REFINED CONCEPT INTO THE DETAILED PHASES. IS THERE ANYTHING YOU WANT TO ADD? FEEL FREE TO JUMP IN. AS FAR AS THE DISABILITY COMMUNITY FEEDBACK GOES, WE WILL CONTINUE WORKING WITH THEM AS PART OF THIS PROJECT AND OTHER PROJECTS INCLUDING THE BIKE PLAN, ENLISTED SOME OF THE WAYS WE ARE INCORPORATING THEIR FEEDBACK AND IT'S ON THE SLIDE. WE WILL CONTINUE TO WORK WITH THEM TO ADDRESS THOSE CONCERNS.

>> I. TREGUB: OKAY, THANK YOU. MY LAST QUESTION, MAYBE CAN CONFIRM, IS IT SAFE TO SAY THAT 10% INCREASE IN TRAVEL TIME FOR OPTION 3B REPRESENTS SOME BUILT IN CONSERVATISM THAT DOES NOT TAKE CREDIT FOR MITIGATIONS THAT MAY ALREADY EXIST? AND ON TOP IT YOU WILL BE EXPLORING FURTHER MITIGATIONS?

>> YES, THAT IS CORRECT. THE 10% INCREASE IN TRAVEL TIME IS NOT TAKING INTO ACCOUNT THE AC TRANSIT RAPID CORRIDOR PROJECT BEING IMPLEMENTED RIGHT NOW AND DOES NOT INCLUDE ANY THE ADDITIONAL MITIGATIONS THAT THE PROJECT TEAM WILL CONTINUE TO LOOK AT.

>> I. TREGUB: THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU, MADAM MAYOR. QUESTION REGARDING THE

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OFF CORRIDOR UTILIZATION, 62%. THESE ARE THE ADJACENT STREETS, RIGHT, JUST OFF TELEGRAPH? I'M REMEMBERING NOW, ANECDOTALLY FOR MY OWN MEMORY, DO YOU REMEMBER HOW MANY OF THOSE ADJACENT BLOCKS, DOES THIS CURRENTLY HAVE RPP?

>> MOST, IF NOT ALL.

>> B. BARTLETT: THEY DO, RIGHT? AND UNDER THOSE RULES, CAN SHORT-TERM PARKERS UTILIZE THOSE BLOCKS?

>> FOR TWO HOURS.

>> B. BARTLETT: TWO HOURS, RIGHT. THANK YOU.

>> MAYOR ISHII: OKAY, THANK YOU. MOVING ONTO PUBLIC COMMENT. COME ON UP.

>> I'VE BEEN WAITING FIVE HOURS FOR THIS.

>> MAYOR ISHII: THANK YOU. NOT YET, LET'S WAIT. I WILL GIVE YOU ALL ONE MINUTE. THANK YOU, I KNOW YOU ARE EXCITED GO FOR IT.

>> I AM EXCITED, I KNOW YOU ARE TOO, IT'S 11:30. I'M A MULTI-MODAL PERSON, I LIVE AT ASHBY AND TELEGRAPH. THANK YOU, COUNCILMEMBER O'KEEFE FOR THINK ASKING THE KEY QUESTION, WILL THIS LOOK LIKE TEMESCAL, AND THE HONEST ANSWER, YES IT WILL. HAVE YOU ALL BEEN THROUGH TEMESCAL? IT'S NOT GREAT, THERE'S PYLONS EVERYWHERE, PEOPLE PARKED IN THE MIDDLE OF THE STREET. PEOPLE CAN'T DELIVER STUFF; YOU CAN'T PICK UP TRASH. THERE'S NOWHERE TO PARK. IT IS AN ABSOLUTE LABYRINTH. YOU CAN'T GET THROUGH THERE. YOU GUYS ARE TIRED. IF YOU WANTED TO TRY TO GET

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HOME RIGHT NOW IF YOU LIVED PAST THERE, IT'S JUST REALLY HARD TO GET THROUGH. I JUST HAVE TO SAY, FOR SOMEONE WHO LIVES AROUND THERE, IT'S REALLY HARD TO GET THROUGH, I WISH YOU WOULD SAY NO TO THIS PROJECT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, MY NAME IS RYAN, AFFAIRS WITH AC TRANSIT. YOU SHOULD HAVE RECEIVED A LETTER FROM US. OFF THE BAT, WE HAVE A GREAT WORKING RELATIONSHIP WITH OFFICE OF TRANSPORTATION AND PUBLIC WORKS. WE COLLABORATE QUITE FREQUENTLY. BUT WITH THAT SAID, WE DO HAVE SOME CONCERNS ABOUT PREFERRED OPTION 3B. SO LINE 6 THAT TRAVELS ALONG TELEGRAPH, CARRIES AROUND 5,000 RIDERS PER DAY AT A 12 MINUTE FREQUENCY, SERVING A NUMBER OF DIFFERENT KEY LOCATIONS, THE CONCERNS WE HAVE ARE STATED 10% INCREASE IN TRAVEL TIMES, WHICH ARE CONSIDERABLE FOR OPERATIONS AND RIDERS. THE LACK DEDICATED TRANSIT LANES MEAN THAT WE GET STUCK IN TRAFFIC JUST LIKE EVERYBODY ELSE. AND THE SURVEY TIMING WAS DURING SUMMER WHEN MOST OF THE STUDENTS WERE OUT AND THAT'S MY TIME.

>> MAYOR ISHII: THANK YOU.

>> HELLO CITY COUNCIL AND MAYOR, I'M SPENCER OWEN, I'M ONE OF THE BOARD MEMBERS OF TELEGRAPH FOR PEOPLE AND I AM PISSED. NOT REALLY. BUT I JUST WANTED TO SAY, I THINK THIS PLAN IS REALLY, IT'S RECOGNIZABLE FOR ITS IMPACT. IT'S REALISTIC, IS WHAT I WANT

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TO SAY AND WHAT THE CITY COUNCIL MAY PASS BUT I WOULD REALLY LOVE TO SEE A PLAN LIKE ONE OR TWO THAT HAS A DEDICATED BUS LANE THROUGH ENTIRE TELEGRAPH AVENUE IN BERKELEY BECAUSE IT HOLDS THE SIX BUS WHICH IS REALLY PIVOTAL THAT CONNECTS DOWNTOWN OAKLAND TO DOWNTOWN BERKELEY. IT ALSO HELPS US COMMIT TO OUR CLIMATE GOALS OF DEPRIORITIZING VEHICLE, CAR VEHICLE TRAVEL AND PRIORITIZING PUBLIC TRANSIT TRAVEL, WHICH WOULD PUSH YOUR CLIMATE GOALS INTO THE FUTURE.

>> MAYOR ISHII: THANK YOU.

>> HI AGAIN, BRYCE MILLER DISTRICT 4. TELEGRAPH FOR THE PEOPLE. I WANT TO THANK THESE GUYS FOR MEETING WITH US A COUPLE YEARS BACK AND GETTING OUR INPUT. I WANT TO ECHO WHAT SPENCER JUST SAID. I THINK THAT CARS AND PARKING ARE THE BIGGEST WASTE OF SPACE WE COULD POSSIBLY HAVE IN AN URBAN CITY LIKE BERKELEY. AND I ALSO CHUCKLED EARLIER WHEN I HEARD TELEGRAPH RAPID CORRIDOR PROJECT, I SAID TO MY FRIEND ELIZABETH, THERE'S NOTHING RAPID ABOUT TELEGRAPH. AS A 6 BUS RIDER, THE 6 BUS IS SO SLOW ON TELEGRAPH, IT NEEDS TO GO SO MUCH FASTER. THAT'S WHY TELEGRAPH NEEDS A BUS LANE ALL THE WAY TO DWIGHT, BANCROFT ACTUALLY. AND I THINK PARKING NEEDS TO BE DIMINISHED IN ORDER TO HAVE A BUS LANE. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, MAYOR ISHII AND CITY COUNCIL, SAM GREENBERG,

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WALK BIKE BERKELEY COMMUNITY MEMBER. I FELT IT WOULD BE ABANDONING TRANSIT. STUD WHERE YOUS AREN'T PERFECT BUT THAT GOES IN BOTH DIRECTIONS, THE NUMBERS FROM PUBLIC WORKS IN TERMS OF TRANSIT PERFORMANCE WORK FOR ME AND THEY MAKE ME COMFORTABLE WITH THE MIDDLE GROUND WE ARE SEEING BEFORE US TODAY. I'M A FREQUENT 6 RIDER. I WILL OFTEN TAKE THE 6 DOWN TO AREAS IN OAKLAND LIKE TEMESCAL OR KONO WHERE IT'S REDESIGNED WHERE 3B PROPOSES. IT'S A DIFFERENT WORLD, I FEEL I'M NOT ON AN ARTERIOLE STREET ANYMORE. WE CAN HAVE THAT TOO. AND THERE'S A GENUINE SAFETY DIFFERENCE BETWEEN THE OPTIONS. I WANT TO ENCOURAGE YOU TO DIRECT STAFF TO COME BACK WITH DETAILED DESIGNS FOR CLOSING THE DWIGHT TRIANGLE AS PART OF YOUR MOTION TODAY. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> QUICK AND EASY. I KNOW IT'S BEEN A VERY LONG DAY. FIRST, THANKS TO PUBLIC WORKS. I LIKE THE PRESENTATION, I'M GLAD THE CONVERSATIONS ARE HAPPENING AND EXCITED TO SEE MORE DEVELOPMENTS ON TELEGRAPH. YOU JUST WANT TO SECOND WHAT THE LAST PUBLIC COMMENTER SAID ABOUT HAVING A VERY THOROUGH CONCEPT OF THE DWIGHT SUB LANE AND STUFF LIKE THAT, BECAUSE OF INTEREST FROM T-BIT, STUDENTS IT'S IMPORTANT WE TAKE A GOOD LOOK AND DEVELOP SOMETHING AWESOME. THANKS.

>> MAYOR ISHII: THANK YOU.

>> LAST BUT NOT LEAST. SO YEAH, I JUST WANT TO FIRST OF ALL

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THANK YOU GUYS, THANK YOU FOR COMMUNITY OUTREACH, THIS HAS BEEN REALLY GREAT. I THINK WHAT THIS HAS SHOWN THIS IS AN EXERCISE IN TRADE-OFFS. THE PROTECTED BIKE LANE SAFETY, CONTINUITY WITH OAKLAND. BUT THERE'S A LACK OF A BUS LANE AND WHILE I THINK WE CAN DEFINITELY DO LOTS OF IMPROVEMENT TO IMPROVE BUS TIMES THERE GENERALLY BE PUTTING THE BUSES AND CARS IN ONE LANE, THERE'S RISK OF SOME SLOWING DOWN THERE. BUT AT THE SAME TIME, YOU KNOW, THIS IS A PROJECT THAT WE HAVE ACCOMPLISHED AND I THINK THAT'S REALLY IMPORTANT GENERAL. SHOUT OUT TO EVERYONE HERE WHO HAS WORKED ON THIS. I THINK WE ARE JUST SITTING HERE AND FIGURING OUT WHAT IS THE BEST WITH WHAT WE'VE GOT AND ALL OF THE THINGS PEOPLE HAVE SAID. LASTLY, I WANT TO ECHO, REALLY JUST EMPHASIZING A DETAILED PLAN FOR DWIGHT TRIANGLE, THIS IS SOMETHING REALLY IMPORTANT FOR SO MANY DIFFERENT STAKEHOLDERS.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, GOING TO PARTICIPANTS ON ZOOM. WE HAVE FOUR HANDS RAISED.

>> MAYOR ISHII: OKAY, I THINK WE NEED TO VOTE THEN TO EXTEND. I'M SORRY, I WAS VERY HOPEFUL. WAIT, MIDNIGHT? MIDNIGHT IT IS. ALL RIGHT.

>> C. LUNAPARRA: SECOND.

>> CITY CLERK: TO EXTEND TO 12:00 A.M., COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES. [ROLL CALL]

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>> CITY CLERK: TREGUB?

>> I. TREGUB: FINE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: I'M WITH YOU, IGOR, SURE.

>> CITY CLERK: [ROLL CALL]

>> MAYOR ISHII: CLEARLY WE HAVE GOTTEN OUT OF PRACTICE OF STAYING LATE, Y'ALL. LET'S CONTINUE ONLINE.

>> CITY CLERK: OKAY, FIRST SPEAKER IS BEN GERHARDSTEIN.

>> HI, EVERYONE, BEN GERHARDSTEIN WITH WALK BIKE BERKELEY AGAIN. WE STRONGLY SUPPORT THE PROJECT CONCEPTUAL DESIGN. THIS DESIGN WILL MAKE THIS HIGH INJURY CORRIDOR MUCH SAFER AND MORE ACCESSIBLE FOR EVERYONE, ESPECIALLY PEOPLE WALKING AND BIKING. WE ALSO SUPPORT STAFF CONTINUING TO WORK TO IMPROVE TRANSIT SERVICE AND I THINK EVERYBODY COULD BE satisfied AT THE END OF THE DAY. THAT SAID, WE ARE DISAPPOINTED THIS ITEM DOESN'T INCLUDE DESIGN RECOMMENDATION FOR CLOSING THE SLIP LANE SO ENCOURAGE THEM TO COME BACK WITH OPTIONS FOR CLOSING THAT SLIP LANE AND LET'S GET THIS PROJECT MOVING.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY. NEXT IS CALLER PHONE NUMBER ENDING IN 000. PRESS *6 TO UNMUTE. ALL RIGHT WE WILL COME BACK. NEXT WE HAVE TODD ANDREW.

>> YOU HEAR ME?

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>> CITY CLERK: YES.

>> OKAY, THANK YOU. HI Y'ALL AGAIN. I JUST WANT TO SAY FOR THOSE OF YOU WHO RIDE BIKES, COUNCILMEMBERS TAPLIN AND HUMBERT, MAYBE A COUPLE OTHERS I'M UNAWARE OF, YOU KNOW THAT THE WORST PART OF TELEGRAPH IS THE TRANSITION TWEAK BETWEEN BERKELEY AND OAKLAND. DON'T WE ALL WISH IT WERE MORE LIKE OAKLAND. I DON'T KNOW WHAT THE EARLIER GUY WAS TALKING ABOUT, BUT PLEASE TRY TO DO WHAT YOU CAN TO MAKE IT SAFER IN THE BERKELEY SECTION OF TELEGRAPH. THANKS SO MUCH, BYE.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT WE HAVE THEO GORDON.

>> GOOD EVENING, COUNCILMEMBERS, MY NAME IS THEO GORDON, I LIVE JUST OFF TELEGRAPH, I COMMUTE TO WORK ON TELEGRAPH. WHEN I TRY TO BIKE TO WORK IT'S 10 MINUTES OF WHITE KNUCKLE TERROR UNTIL I FINALLY GET TO TEMESCAL AND CAN TAKE A BREATH. BECAUSE OF THIS I HAVE STOPPED BIKING TO WORK AND TAKE THE BUS INSTEAD. I PREFER OPTION 3B, WOULD PREFER WITH A BUS LANE, WE SHOULD BE PRIORITIZING BUSES WITH BIKES AND WISH THE 6 COULD RUN FASTER THAN THIS MEETING. WE HAVE CITY POLICIES LIKE VISION ZERO AND VOTERS HAVE SPOKEN THROUGH MEASURE FF THEY WANT COMPLETE STREETS SO I'M GLAD WE AREN'T STUDYING THINGS THAT DON'T HAVE BIKE LANES. LASTLY, I SUPPORT CLOSING THE SLIP LANE, IT WOULD BE A GREAT COMMUNITY GREEN SPACE AND ENTRY INTO FUTURE CAR-FREE

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TELEGRAPH.

>> MAYOR ISHII: THANK YOU, THEO. FINISHED RIGHT ON TIME.

>> CITY CLERK: NEXT WE HAVE REBECCA MIRVISH.

>> GOOD EVENING, EVERYONE. I WANT TO ECHO ALL THE THINGS THEO SAID. I SUPPORT OPTION 3B, PLEASE CLOSE THE DWIGHT TRIANGLE SLIP LANE. AND THANK YOU. YOU ALL ARE THE BEST. BYE.

>> MAYOR ISHII: THANKS, REBECCA! GET SOME SLEEP!

>> CITY CLERK: LAST CALL FOR CALL ERRANDING IN PHONE NUMBER 000. OKAY, SORRY, OKAY, NO MORE SPEAKERS.

>> MAYOR ISHII: OKAY, THANK YOU. COUNCILMEMBER HUMBERT, DO YOU WANT TO START US OFF?

>> M. HUMBERT: YES, THANK YOU, MADAM MAYOR. I WANT TO THANK DAVIS, A MEIR RY, MR. SCHWIMMER, THE CONSULTANT TEAM, AND ALL THE OTHER STAFF MEMBERS I KNOW HAVE BEEN WORKING HARD ON THIS I WAS GOING TO SAY SINCE 2021 BUT IT'S 2022. THERE'S BEEN A LOT OF PUBLIC OUTREACH, A PLETHORA OF PUBLIC OUTREACH. AND ALSO, TREMENDOUS AMOUNT OF STUDY AND SPEED STUDIES AND PARKING STUDIES. THIS IS REALLY, REALLY THOROUGH WORK. THIS RUNS ALONG D-8 ALL THE WAY FROM WOOLSEY, MY DISTRICT, DISTRICT 8 FROM WOOLSEY, THE OAKLAND BORDER ALL THE WAY TO DWIGHT WHERE MY DISTRICT ENDS ON THE EAST SIDE. AND ON THE WEST SIDE OF THE STREET, IT RUNS BETWEEN DISTRICT 8 AND COUNCILMEMBER BARTLETT'S DISTRICT 3. UNTIL WE GET VERY CLOSE TO THE ABHORRENT DWIGHT

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TRIANGLE WHERE DISTRICT 7 PICKS UP, AS YOU UNDERSTAND IT. THINKING OF THE MAP. EVER SINCE I HAVE LIVED IN BERKELEY, 26 YEARS, I HAVE BEEN CONCERNED ABOUT THIS STRETCH OF TELEGRAPH. A VAST DANGEROUS WASTE LAND OF ASPHALT WITH UNSAFE CROSSINGS. IT'S CLEARLY A HIGH INJURY CORRIDOR, WE SAW THAT IN THE STATISTICS, BUT IT'S FRIGHT EPPING BOTH TO RIDE A BIKE DOWN IT, TO WALK ACROSS IT AND EVEN TO DRIVE DOWN IT, AS I DRIVE DOWN IT, AND I DRIVE MORE THAN I SHOULD. I'M SCARED TO DEATH AT EVERY CROSSING, ESPECIALLY AT NIGHT. BECAUSE THERE, YOU KNOW, IT'S HARD TO SEE PEDESTRIANS, IT'S NOT PROPERLY LIGHTED, I LOOK FORWARD TO IT BEING LIGHTED WITH WHICHEVER PLAN WE ADOPT. EVERY ONE OF THESE ITERATIONS, THESE PLANS ARE, YOU KNOW, TO USE A STATISTIC MAYBE USED BY OUR PRESIDENT, 1,000% BETTER THAN WHAT WE HAVE NOW. 100% BETTER THAN WHAT WE HAVE NOW. SUBSTANTIALLY BETTER. JUST NIGHT AND DAY. I'VE SEEN THIS TWICE, I THINK AT FITES. I SIT ON THE FITES SUBCOMMITTEE, I HAVE SEEN THE SUPPORT FOR OPTION 3B THERE, I'M GENERALLY READY TO MOVE FORWARD WITH THAT OPTION. I WISH WE COULD HAVE PUSHED MORE TO SPEED UP BUSES BUT WHAT I'M HEARING ARE PROMISES TO DO THAT. I LIKE THE IDEA OF ADDITIONAL SECTIONS FOR BUS LANES MAYBE AT STUART. BUT YOU RECOGNIZE THAT OPTION 3B HAS BEEN IDENTIFIED AS A MORE WORKABLE COMPROMISE TO ENSURE DRIVEWAY AND DELIVERY VEHICLE ACCESS AS WELL AS EMERGENCY VEHICLE PASSAGE. THANK YOU TO THE CHIEF FOR ADDRESSING THAT. AND

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PERHAPS IN THE FUTURE, DEPENDING ON HOW THE CORRIDOR PERFORMS WE CAN REVISIT ADDITIONAL BUS-ONLY LANES OR ADDITIONAL FEATURES. BUT I WANT TO ADDRESS THIS ISSUE ABOUT TEMESCAL. IT FORCES AUTOMOBILE TRAFFIC TO SLOW DOWN. THE SAFETY EXPERIENCE ON THAT STRETCH, I HAVE LOOKED AT THE STATISTICS, ARE FAR SUPERIOR TO WHAT THEY WERE BEFORE THOSE IMPROVEMENTS WERE INSTALLED. IT'S ALSO A REALLY THRIVING, LIVELY WONDERFUL COMMERCIAL DISTRICT WITH LOTS OF GREAT SHOPS AND RESTAURANTS AND PEOPLE ON THE STREET AND PEOPLE HAVING FUN. AND AUTOMOBILES, YOU KNOW, A LOT OF DRIVERS DON'T LIKE IT, THEY DON'T LIKE IT BECAUSE IT SLOWS THEM DOWN AND THEY HAVE TO PAY ATTENTION. AND YOU HAVE TO DO THAT THERE. ONE OF THE ELEMENTS THOUGH, THIS INFORMATION OVERLOAD IS ALL OF THE RESTAURANT PAVILIONS THAT ARE BUILT THERE. I DON'T THINK WE WILL SEE THAT IN THE BERKELEY SECTION OF TELEGRAPH FROM WOOLSEY TO DWIGHT. SO I THINK WE ARE GOING TO BE DEALING WITH THAT PART OF THE INFORMATION OVERLOAD. BUT IT'S WONDERFUL, IT'S SAFE THERE IN TEMESCAL. IF OUR SECTION OF TELEGRAPH LOOKS MORE LIKE THAT, I WILL REJOICE. I DID HAVE ONE CLARIFYING QUESTION FOR STAFF. ON PDF PAGES 15 AND 17 OF THE STAFF REPORT. WE SEE A COUPLE OF DIFFERENT DIAGRAMS OF OPTION 3B. I NOTICED ON PAGE 15; IT APPEARS THERE ARE NO BUS BOARDING ISLANDS AT ASHBY BUT ON PAGE 17 IT APPEARS THERE ARE BUS BOARDING ISLANDS AT ASHBY. CAN STAFF CLARIFY THIS? YOU KNOW,

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GIVEN WE HAVE ANOTHER CROSS TOWN BUS RUNNING ON ASHBY THAT WE FOUGHT FOR. I'M STILL REALLY HAPPY ABOUT. MY OWN PREFERENCE WOULD BE FOR THOSE BUS STOPS TO BE RIGHT THERE NEAR THAT INTERSECTION.

>> MAYOR ISHII: WHILE THEY ARE LOOKING, DID YOU HAVE ANY MORE QUESTIONS?

>> M. HUMBERT: NO, THAT'S IT. PRETTY MUCH MY STATEMENT. I STARTED OUT TODAY WOBBLY ABOUT ONE OR TWO VERSUS 3B, BUT I'M FIRMLY NOW IN THE 3B CAMP.

>> CAN YOU CLARIFY THE DIAGRAM YOU ARE REFERRING TO?

>> M. HUMBERT: YEAH, I DON'T HAVE IT RIGHT IN FRONT OF ME. IT'S PDF PAGES 15 AND 17 OF THE STAFF REPORT. ON PAGE 15, IT APPEARS THERE ARE NO BUS BOARDING ISLANDS ON ASHBY. PAGE 17 IT APPEARS THERE ARE. I GUESS IT DOESN'T MATTER WHERE ARE THE BUS BOARDING ISLANDS NEAR OR AT ASHBY, ARE THEY THERE?

>> THESE ARE DETAILS THAT WILL BE FULLY FLUSHED OUT DURING ENGINEERING.

>> M. HUMBERT: IT'S NOT CONFIRMED THEY WILL BE RIGHT THERE YET? OKAY, THANKS, THAT'S ALL YOU HAVE.

>> MAYOR ISHII: OKAY, FOLKS, IT'S LIKE 11:45, PLEASE KEEP YOUR COMMENTS BRIEF. COUNCILMEMBERS TAPLIN, LUNAPARRA, BARTLETT AND THEN O'KEEFE.

>> T. TAPLIN: THANK YOU AND MANY THANKS TO THE TEAM. IF I WERE

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TO BE SURVEYED MY PREFERENCE WOULD BE FOR OPTION 1. I DO APPRECIATE AND I AM ASSURED ABOUT THE WORK TO MITIGATE TRANSIT DELAY WILL CONTINUE. BUT I'M FULLY COMMITTED TO SEEING BUS LANES UP AND DOWN TELEGRAPH AND I WOULD WHOLEHEARTEDLY VOTE FOR OPTION 1. THAT SAID I WOULD VOTE FOR OPTION 3B IF IT INCLUDED CLOSURE OF SLIP LANE. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU, I WANT TO START WITH SOMETHING SERIOUS, I DON'T KNOW IF YOU HAVE RIDDEN BUS 6 BETWEEN WHITEHORSE AND CAMPUS. IT IS SO MUCH FUN AND SO INSANELY PACKED, IT WILL BE LIKE 11:30 AND IT'S PACKED. THIS IS A BIGGER, MUST ULTIMATE POINT IN THIS, THERE'S SUCH A LARGE SUB SECT OF OUR POPULATION THAT DOESN'T HAVE A CAR. THAT ENABLES US TO EXPERIENCE THE CITY. BOTH THE CITY OF BERKELEY AND OAKLAND IN SO MANY DIFFERENT WAYS AND SAFE WAYS AND I THINK THAT'S REALLY IMPORTANT. I THINK COUNCILMEMBER TAPLIN AND I MIGHT BE THE ONLY COUNCILMEMBERS THAT DON'T HAVE A CAR. I THINK THAT'S TRUE. AND REGULARLY RELY ON BIKES AND PUBLIC TRANSIT TO GET AROUND. SO I, AS BOTH TRANSIT RIDER AND CYCLIST TO GET FROM SOUTH SIDE TO OAKLAND, IT IS SO DAUNTING, EITHER WAY, IT'S DAUNTING. BECAUSE THE 6 BUS WHEN IT GETS TO OAKLAND ESPECIALLY AROUND TEMESCAL, IT GETS REALLY SLOW. THIS IS SOMETHING I HAVE BEEN WEIGHING SO DEEPLY. I ALSO UNDERSTAND THE CONCERNS AROUND SAFETY AROUND THE

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FIRE DEPARTMENT IS SAYING, AROUND LOADING THAT CREATED OPTION 3B AND I APPRECIATE YOUR WORK TO PUT TOGETHER A LOT OF DIFFERENT OPINIONS. SO I'M COMFORTABLE MOVING FORWARD WITH 3B BUT I DO REALLY WANT TO EMPHASIZE THE IMPORTANCE OF PRIORITIZING TRANSIT RELIABILITY. AND SPEED. I THINK THAT EVEN 10% INCREASE IS REALLY DEBILITATING FOR PEOPLE WHO RELY ON IT. I ALSO THINK IF POSSIBLE WE SHOULD CREATE A FULL DESIGN WHERE WE CAN CHOOSE TO IMPLEMENT A BUS LANE IN A RELATIVELY EASY MANNER IN THE FUTURE, IF WE THINK THAT IS NECESSARY. WITHOUT HAVING TO DO A HUGE INFRASTRUCTURE REDESIGN. SO IT'S SOMETHING THAT I WOULD ADVOCATE FOR. AND FINALLY, AND POSSIBLY MOST IMPORTANTLY, WE REALLY NEED TO CLOSE THAT SLIP LANE SO BADLY. SO I WOULD APPRECIATE THAT BEING PART OF THE MOTION. I THINK A COUPLE DIFFERENT DESIGNS HOW WE COULD CLOSE THE SLIP LANE WOULD BE IDEAL. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU. AND WONDERFUL WORK HERE. I INHERITED THIS PART OF MY DISTRICT IN THE LAST ELECTION A LITTLE OVER A YEAR AGO. TO GET CAUGHT UP AND TALK TO EVERYONE OVER THERE. THERE'S A STRONG GROUP OF MERCHANTS THERE, SERVICE PROVIDERS, DENTISTS AND THINGS LIKE THAT. THEY ARE NERVOUS BECAUSE WE DO HAVE -- BLESS YOU. WE DO HAVE SOFT RETAIL THROUGHOUT THE CITY. EACH MONTH IS RISKY. AND SO I DO THINK YOU HAVE DONE A GREAT JOB WITH AMELIORATING THOSE CONCERNS AND ACHIEVING THE TRADE-OFFS TO

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KEEP THESE PEOPLE OPEN FOR BUSINESS WHILE YOU REMOVE THE PARKING FOR THE CUSTOMERS, RIGHT? BUT LEAVING ENOUGH FOR THEM TO OPERATE. JOB WELL DONE. YOU SUPPORT THE RECOMMENDATION WHOLEHEARTEDLY AND I SUPPORT CLOSING THE SLIP ON DWIGHT.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: ALL RIGHT, I WILL TRY TO BE BRIEF, BECAUSE I'M TIRED, I'M WORRIED I WILL BE SHITTY AND NO ONE WILL AGREE WITH ME. I DON'T LIKE THIS, IT'S BEAUTIFULLY ENGINEERED, YOU GUYS DID GREAT WORK. BUT I HATE TEMESCAL, I HATE IT SO MUCH. I UNDERSTAND IT'S A DISAGREEMENT, AND THAT'S FINE. BUT THERE ARE A LOT OF PEOPLE, INCLUDING BIKERS, I'M A DAILY BIKE COMMUTER. YOU DON'T PARTICULARLY LIKE THEY SEPARATED THE CLASS 4 BIKE LANES, THAT'S WHAT I DON'T WANT TO GET IN. I'M GOING TO VOTE AGAINST THIS, SORRY. PROBABLY THE ONLY ONE, THAT'S FINE. I COULD NEVER LIVE WITH MYSELF IF I VOTED FOR THIS OUT OF SOCIAL PRESSURE. I JUST WANT TO RESPOND TO ONE THING COUNCILMEMBER HUMBERT SAID. YES, TEMESCAL, YES YOU SLOW DOWN AND THAT'S GOOD AND SAFER, I'M SURE. THAT'S TOTALLY APPROPRIATE FOR A COUPLE BLOCKS WHERE THERE'S A LOT OF PEDESTRIAN ACTIVITY AND COMMERCE. BUT TELEGRAPH IS AN ARTERIOLE FOR CARS AND WE ARE TALKING ABOUT TAKING THAT SLOW FRUSTRATING DIFFICULT PROGRESS AND EXTENDING IT ALL THE WAY UP TELEGRAPH AND WE ARE LOSING A CAR ARTERIOLE. THAT STREET IS ACTUALLY, IT'S IMPORTANT FOR CARS. I AM A PROPONENT OF BIKE

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BOULEVARDS, THE ARGUMENT THAT CAN BIKES BE ON BIKE BOULEVARDS WAS DISMISSED IN THE STAFF REPORT IN A WAY I DON'T AGREE WITH, BUT ONCE AGAIN, WE CAN DISAGREE. I THINK IT WOULD BE BETTER TO MAKE TELEGRAPH SAFER FOR PEDESTRIANS, ABSOLUTELY, WITHOUT MAKING IT IMPOSSIBLE FOR CARS TO GET ANYWHERE FAST ON IT AND STILL MAKE OTHER EXCELLENT SAFE BIKE INFRASTRUCTURE THAT COULD GET PEOPLE ANYWHERE THEY WANTED TO GO, THAT'S WHAT I THINK, AND IT'S OKAY IF NOBODY ELSE THINKS THAT THAT'S HOW YOU FEEL. THANK YOU FOR LISTENING.

>> [APPLAUSE]

>> MAYOR ISHII: OKAY, COUNCILMEMBER TREGUB? I HAVE TO EXTEND AGAIN.

>>

>> M. HUMBERT: I MOVE TO EXTEND ANOTHER 10 MINUTES.

>> MAYOR ISHII: CAN WE JUST SAY 15 MINUTES?

>> CITY CLERK: EXTEND TO 12:15, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: FINE.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: YES TO 3:15 A.M.

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>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: SURE, WHATEVER.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: ENTHUSIASTICALLY YES, BECAUSE I'M REALLY HAPPY ABOUT GETTING THIS DONE.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES. HERE WE GO, COUNCILMEMBER TREGUB, PLEASE?

>> I. TREGUB: COUNCILMEMBER LUNAPARRA, I CAN CONFIRM WHAT YOU SAID. NOWADAYS I FEEL YOUNGER WHEN I TAKE THE 6 BUS AROUND THE TIME IN THE EVENING. BUT IT'S A WONDERFUL COMMUNITY BUILDING EXPERIENCE. SO I, YEAH. JUST TO ECHO WITHOUT BELABORING POINTS THAT HAVE BEEN MADE ALREADY. I DID HAVE SOME CONCERNS ABOUT THE 10% INCREASE IN TRAVEL TIME BY BUS. BUT I THINK THOSE HAVE BEEN LARGELY RESOLVED JUST FROM HEARING FROM STAFF AND THANK YOU. I, TOO, -- AND I FULLY SUPPORT AND I'M ON RECORD SUPPORTING A DEDICATED BUS LANE FOR THE SIX BLOCKS OF TELEGRAPH NEAREST CAMPUS AND I WISH IT COULD BE EXTENDED BEYOND. IF I WAS VOTING WITH MY HEART OF HEARTS IT WOULD BE OPTIONS 1 OR 2. BUT I THINK 3B IS A REALLY JUST ELEGANT COMPROMISE THAT DOES ITS BEST. AND I

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THINK IT'S ALSO VERY RESPECTFUL OF COMMUNITY INPUT THAT'S BEEN RECEIVED. I LOOK FORWARD TO SUPPORTING STAFF AND AC TRANSIT WITH WHATEVER THEY CAN COME UP WITH TO FULLY RESOLVE THE INCREASE IN TRAVEL TIME. I WOULD LIKE TO ALSO SEE MYSELF WITH COMMENTS MADE BY TAPLIN AND LUNAPARRA AND PERHAPS OTHERS ABOUT SUPPORTING FULL CLOSURE OF THE SLIP LANE ON DWIGHT AND TELEGRAPH. AND LASTLY, I JUST WANT TO SAY, A FEW MONTHS AGO I STARTED MEETING WITH MEMBERS OF THE DISABILITY COMMUNITY JUST HOW THEY EXPERIENCE CROSSING BUSY ARTERIOLES. IT OPENED MY EYES. AND WHILE THERE ARE, THESE ARE RECOMMENDATIONS THAT THEY HAVE MADE THAT ARE NOT SPECIFIC TO ANY PARTICULAR ALTERNATIVE, I WILL CONTINUE TO JUST ENGAGE WITH STAFF TO MAKE SURE THAT WE ARE ABLE TO, WHEN WE MAKE THESE IMPROVEMENTS, WE DON'T INADVERTENTLY CREATE A SITUATION THAT IS MORE DANGEROUS FOR MEMBERS OF THAT COMMUNITY.

>> MAYOR ISHII: THANK YOU.

>> I. TREGUB: WITH THAT, I'M READY TO VOTE.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER KESARWANI HASN'T GONE YET SO I WILL LET HER GO FIRST AND THEN COUNCILMEMBER LUNAPARRA AND I HAVE VERY BRIEF COMMENTS AND THEN WE CAN TAKE A VOTE.

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. I WANT TO THANK YOU FOR THE PRESENTATION AT THIS LATE HOUR AND EXPRESS MY SUPPORT FOR THIS. YOU KNOW, FOR ME IT JUST COMES DOWN TO THAT EVALUATION MATRIX THAT YOU HAVE ON ONE OF THESE SLIDES. IT SEEMS

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CONCEPT 3B ACHIEVES ALL OF OUR OBJECTIVES, BUT FOR THE TRAVEL TIME AND RELIABILITY. I KNOW, SO THAT IS SOMETHING YOU WILL CONTINUE TO WORK ON, OKAY. THAT'S ALL YOU HAVE, THANK YOU VERY MUCH.

>> MAYOR ISHII: COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: I WILL MAKE A MOTION TO MOVE FORWARD WITH 3B WITH ADDITION TO THE DIRECTION THAT THE FINAL DESIGN A PRIORITIZES DECREASING TRANSIT TRAVEL TIME, B CREATES POSSIBILITY FOR BERKELEY TO EVENTUALLY CHANGE COURSE TO REPLACE PARKING WITH A DEDICATED BUS LANE AND CLOSE THE DWIGHT TRIANGLE SLIP LANE ONCE AND FOR ALL.

>> I. TREGUB: SECOND.

>> MAYOR ISHII: SO BRIEFLY JUST WANT TO SAY THANK YOU AGAIN FOR ALL YOUR COMMUNITY OUTREACH, ESPECIALLY TO ALL THE DIFFERENT COMMUNITIES. I LOVE YOU WENT DOOR TO DOOR, BUSINESSES, DISABILITY, STUDENTS, AWESOME. REDUCING TRANSIT DELAY IS IMPORTANT TO ME AS WELL AS WELL AS CLOSURE OF THE DWIGHT TRIANGLE SLIP LANE. THANK YOU ALL FOR BEING HERE SO LATE IN THE EVENING. PLEASE TAKE THE ROLL, CLERK.

>> CITY CLERK: OKAY. ON THE MOTION, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

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>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: NO BUT YOU REALLY DID A NICE JOB.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES. THANK YOU, EVERYONE. OUR MEETING ISN'T OVER. NOW WE WERE SUPPOSED TO HAVE DONE THE ADU ITEM, WE AREN'T DOING THAT BUT WE STILL NEED TO LEAVE IT OPEN IN CASE ANYONE HAS COMMENTS ON ITEM 32, TO ALLOW SEPARATE SALE OF ADU'S. ANY PUBLIC COMMENT? ANY PUBLIC COMMENT ONLINE?

>> CITY CLERK: THIS IS ONLY PUBLIC COMMENT ON THE ADU ITEM. THERE'S ONE RAISED HAND.

>> MAYOR ISHII: OKAY.

>> CITY CLERK: CALLER ENDING IN 000?

>> HI, GOOD EVENING, AS MANY OF YOU KNOW I SPENT DECADES AT U.C.

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BERKELEY AS PROFESSOR IN PHYSICS, WE DEFINITELY ARE CREATING CATASTROPHIC GLOBAL WARMING. WE NEED MORE WALKING, LESS CARS. ALSO VERY PROUD TO SAY THAT MY COMPANY PAID THE CITY OF BERKELEY OVER $1 MILLION DURING OUR GOLDEN YEARS OF GREAT BUSINESS IN BUSINESS LICENSE AS WELL AS SALES TAX. HELP US WE ARE DOING BUSINESS ONLINE BUT WE NEED CRITICAL SPACE IN BERKELEY, LOOK FORWARD TO HEARING FROM MAYOR ISHII. THANK YOU, YOU ARE WONDERFUL PEOPLE.

>> MAYOR ISHII: THANK YOU. ANYONE ELSE ON ADU? GREAT. AND FINALLY, IS THERE ANY PUBLIC COMMENT FOR ITEMS NOT LISTED ON THE AGENDA? ANYBODY IN PERSON? ANYBODY ONLINE? PUBLIC COMMENT, ITEMS NOT LISTED ON THE AGENDA?

>> CITY CLERK: I THINK WE JUST HEARD IT.

>> MAYOR ISHII: OKAY, VERY GOOD. I WANT TO JUST SAY I AM SO GRATEFUL FOR ALL OF MY COLLEAGUES. WE DIDN'T ALWAYS AGREE ON EVERYTHING TONIGHT BUT WE CAME OUT IN THE END AND WE ARE STILL SMILING. I'M THANKFUL FOR ALL OF YOU, THANK YOU TO STAFF FOR STAYING, SETTING UP, PRESENTING, ANSWERING OUR QUESTIONS. I WILL ENTERTAIN A MOTION TO ADJOURN.

>> T. TAPLIN: SO MOVED.

>> I. TREGUB: SECOND.

>> MAYOR ISHII: PLEASE TAKE THE ROLL, CLERK.

>> CITY CLERK: TO ADJOURN. [ROLL CALL]

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>> B. BLACKABY: NO. [LAUGHTER]

>> CITY CLERK: [ROLL CALL]

>> MAYOR ISHII: YES, MEETING IS ADJOURNED. MIDNIGHT. RIGHT BEFORE MIDNIGHT. THANK YOU, EVERYONE. [ADJOURNED 11:59 P.M.]

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